ARTICLE 4:
BUILDING & LOT/BUILDING SITE STANDARDS

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Section 4.1
GENERAL.

This Article applies to all Buildings and Lots or Building Sites located or proposed within the City, except as otherwise provided in Section 1.21 with respect to Nonconformities.

Section 4.2
PLAN REQUIRED.

No Building shall be constructed, re-constructed, or Enlarged, and no Lot or Building Site or other land shall be Developed, re-Developed, Improved, subdivided, or re-subdivided, and none of the same shall be Used, except in compliance with this **Article 4**, the Zoning Map, and pursuant to a Zoning Permit for Development, Construction, or Activity that is exempt from Site Plan Review, or a Site Plan, as applicable, that conforms with and has been prepared, submitted, reviewed and approved in accordance with **Article 8 (Administration, Procedures & Enforcement)**, this **Article 4**, and all other standards and requirements applicable thereto.

Section 4.3
BUILDING & LOT/BUILDING SITE STANDARDS.

4.3.1 District Buildings & Lots/ Building Sites.

The standards for Buildings and Lots/Building Sites within Districts are set forth in **Tables 4.3.1–A – 4.3.1–O (District Standards)** and elsewhere in this **Article 4**.

4.3.2 Civic District Buildings & Lots.

A. Definitions.

The terms Civic District, Civic Space and Civic Building are defined in **Article 9 (Definitions)**.

B. Design; Compliance.

If a Building, Structure, Lot or Building Site is located within an area designated on the Zoning Map as Civic District, Civic Space or Civic Building: **Table 5.2.3–A (Civic Space Types – Summary)** and **Table 5.2.3–B (Civic Space Types – Specific Standards)**.

1. Civic Space shall be designed generally as described in **Table 5.2.3–A (Civic Space Types – Summary)** and **Table 5.2.3–B (Civic Space Types – Specific Standards),** as related to the Adjacent District, or if Adjacent to more than one, as related to the Adjacent District with the largest number of linear feet of common boundary with the Civic Space.

2. Development, re-Development, Buildings, Lots or Building Sites, Structures, and Improvements and Use thereof within Civic Districts must comply with the applicable standards and requirements of **Table 4.3.1–O (District Standards – Civic)**, subject, however, to Section 4.3.2.B.4.

3. Without limitation to Section 4.3.2.B.2, Civic Buildings within Civic Districts must comply with the standards and requirements of **Table 4.3.1–O (District Standards – Civic)** and any other requirements of these regulations.

4. Buildings operated for Civic purposes but not located within a Civic District must comply with the applicable District standards of the District in which they are situated.

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CD-1L TABLE 4.3.1-A DISTRICT STANDARDS: SUB-URBAN LARGE LOT COMMUNITY DISTRICT

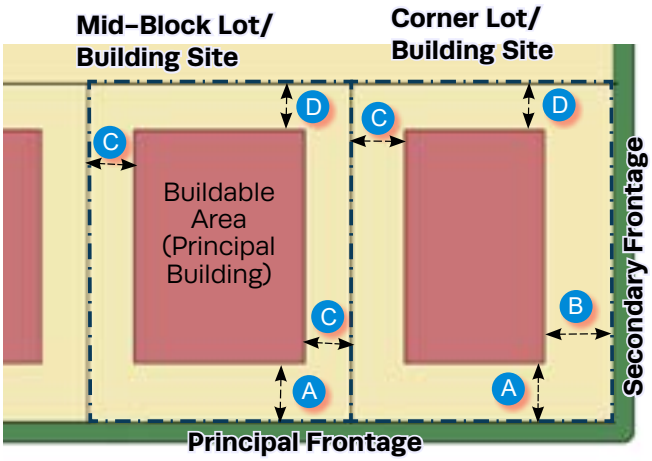


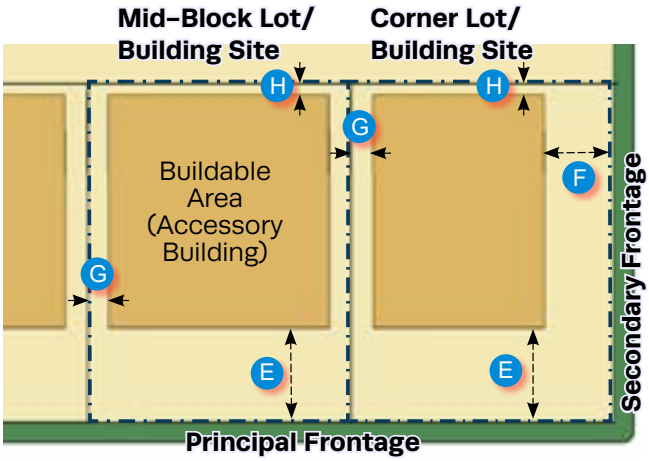
General Description

The CD-1L Sub-urban Large Lot Community District consists of primarily a low density single-family detached Residential area. It has large lots, medium-to-deep front Setbacks and medium-to-wide side Setbacks. Religious facilities and other Institutional Uses may also be allowed.

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CD-1L TABLE 4.3.1-A DISTRICT STANDARDS: SUB-URBAN LARGE LOT COMMUNITY DISTRICT





Lot Occupation

Lot/Building Site Width	150 ft. min
Lot/Building Site Area	43,560 sq. ft.
Impervious Surface Coverage	1. For Lot or Building Site Area < 6,250 square feet: a. Building Coverage 35% max. b. Impervious Surface Coverage 50% max. 2. For Lot or Building Site Areas of 6,251 square feet to 12,499 square feet: a. Building Coverage is 2,186 square feet plus 20% of every additional square foot of Lot or Building Site Area greater than 6,251 square feet up to 12,499 square feet of Lot or Building Site Area. b. Impervious Surface Coverage is 50% of Lot or Building Site Area minus 1% for every additional 400 square feet of Lot or Building Site Area up to 12,499 squafe feet of Lot or Building Site Area. 3. For Lot or Building Site Area of 12,500 square feet or more: a. Building Coverage 25% max. b. Impervious Surface Coverage 35% max. 4. Impervious Surface Coverage can be increased to 60% for Lot or Building Site(s) less than 12,500 square feet in Lot or Building Site Area provided the increase in volume of runoff during a 100-year storm event is retained on-site. In addition, if the Lot or Building Site abuts an inland wetlands or tidal Watercourse or Wetland, a minimum fifteen (15) foot vegetated buffer, consisting of climate tolerant, native plantings is installed.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a Street via Driveway, Easement, or Alley.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1L TABLE 4.3.1-A DISTRICT STANDARDS: SUB-URBAN LARGE LOT COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	40 ft. min.	A	Front Setback, Principal Frontage	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	40 ft. min.	B	Front Setback, Secondary Frontage	40 ft. min.	F
Side Setback, each side	30 ft. min.	C	Side Setback, each side	30 ft. min	G
Rear Setback	30 ft. min.	D	Rear Setback	5 ft. min.	H

Block Size*

Applicable only to Development Parcels.

Block Perimeter	3500 ft. max.

Private Frontage Types

Common Yard	P	Gallery	NP
Porch	P	Arcade	NP
Fence	P	Commercialfront	NP
Terrace/Lightwell	NP	Dining Yard	NP
Forecourt	NP	Commercial Porch	NP
Stoop	NP	Boardwalk	NP
Stepfront	NP	Loading Dockfront	NP
Shopfront	NP		

See Table 4.3.7.A (Private Frontage Types)

Civic Space Types*

Applicable only to Development Parcels.

Park	P	Playground	P
Green	P	Sport Field	P
Square	NP	Community Garden	P
Plaza	NP	Pocket Park	P

See Table 5.2.3-A (Civic Space Types – Summary) and Table 5.2.3-B (Civic Space – Specific Standards)

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1L TABLE 4.3.1-A DISTRICT STANDARDS: SUB-URBAN LARGE LOT COMMUNITY DISTRICT

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Number of Buildings

Principal Building	1 max.
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	Stories: 2.5 max, Building Height: 35 feet max., Total Building Height: 40 feet max.
Accessory Building	Except as otherwise permitted in these Regulations, 1.5 Stories max., Building Height: 15 feet max., Total Building Height: 20 feet max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards).*

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

Facade

NR

Roof Type & Pitch

NR

Building Materials

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1L TABLE 4.3.1-A DISTRICT STANDARDS: SUB-URBAN LARGE LOT COMMUNITY DISTRICT

Building Types

Cottage	P	Jewel Box	NP
House	P	Commercial	*P
Estate House	P	Mixed Use	NP
Duplex	NP	Flex	NP
Townhouse	NP	Mid-Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	P
Live/Work	NP		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)
**See Table 4.3.8.A (Building, Lot & Building Site Principal Uses) and Section 4.3.9.F Uses Permitted by Right with Limitations for Use Limitations*

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Required Parking Spaces	P provided that Parking Spaces are located beyond the front yard setback, except as permitted per Section 4.3.12.B.4
Domestic Vehicles Parking	P provided that vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1L **TABLE 4.3.1-A DISTRICT STANDARDS:**
SUB-URBAN LARGE LOT COMMUNITY DISTRICT

Parking & Circulation (continued)

Additional Parking Requirements

Off-street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface
Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space.
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	10 ft. max. within 20 ft. of Frontage Line, except as permitted per Section 4.3.12.B.4
Parking Structures	NP
Parking Structure Pedestrian Exit Location	NA

Bicycle Parking

See Section 4.3.13

Loading & Access

NR

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types - Summary) and Table 7.1.2.B-2 (Sign Types - Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1L TABLE 4.3.1-A DISTRICT STANDARDS: SUB-URBAN LARGE LOT COMMUNITY DISTRICT

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P	P	P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

Private Landscaping and Fencing

Landscaping

NR

Walls & Fencing (not including Screens)

NR

Materials

NR

Additional Standards

Retaining walls	10 ft. min. from Lot/Building Site Line and 4 ft. max. Height and in accordance with Section 4.3.16.M.

Screens, Streetscreens & Buffers

Height

NR

Materials

NR

Additional Standards

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1L **TABLE 4.3.1-A DISTRICT STANDARDS:**
SUB-URBAN LARGE LOT COMMUNITY DISTRICT

Additional Standards for Overlays and Other Districts

See following pages for additional standards for the Silvermine Tavern Village District Overlay. Where these standards are in conflict with other standards within these Regulations, the standards for the Silvermine Tavern Village District Overlay shall control. For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies – Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1L TABLE 4.3.1-A DISTRICT STANDARDS: SUB-URBAN LARGE LOT COMMUNITY DISTRICT

GENERAL VILLAGE DISTRICT REVIEW STANDARDS

All Uses, Buildings and Structures located in the Village District Overlays including the demolition in whole or in part of the Alteration of any Building or structure, shall be subject to design review in accordance with the following standards:

1. The Planning and Zoning Commission shall hire a Village District Consultant, who shall be an architect, landscape architect or certified planner, with pertinent experience, which may include historic preservation, to review the design of new Construction and substantial rehabilitation of all properties within the District. The report of such consultant shall be entered into the public hearing record and considered by the Planning and Zoning Commission in making its decision.

2. Criteria: New Construction and substantial rehabilitation of existing Structures, including those listed on the Norwalk Historic Resources Inventory, shall be harmoniously related to their surroundings and shall be consistent with the Secretary of the Interior's Standards for Rehabilitation, as applicable. All Applications shall demonstrate how such Development is consistent with the criteria defined in Connecticut General Statutes Section 8-2j Village Districts, including but not limited to the following criteria, subject to final review and approval by the Commission:

a. Building Design, Scale & compatibility: The color, size, Height, location, proportion of openings, roof treatments, Building materials, and any proposed Signs, Accessory Buildings and lighting shall be consistent with the local architectural motif and with the unique elements of the District, including maintenance of historic Buildings, Structures, monuments and landscape. The removal or disruption of historic or significant Structures or architectural elements shall be minimized.

b. Streetscape Standards & Landscape: All spaces, Structures and related site Improvements visible from public roadways shall be designed to be consistent with the elements of the District in and around the proposed modification. All utilities and Loading Areas shall be designed to limit their exposure to the street and to Adjacent Residential properties.

SILVERMINE TAVERN VILLAGE DISTRICT OVERLAY (O-STVD)

1. The Height, Bulk, location and Use of all Buildings in existence at the time of adoption of this section are hereby declared to be in conformance with the requirements of this section, provided that if such Buildings are destroyed in whole or in part, by fire, explosion, act of God or act of public enemy to an extent exceeding fifty percent (50%) of their assessed value, they may be reconstructed only if the Height, Bulk, location and Use of the Building is exactly as it had previously existed, except as modified where necessary to conform with the Flood Hazard Zone provisions of these Regulations. The owners of such properties shall document, by an A-2 Survey or other means, the Height, Bulk, location and Use of the Building as it had previously existed.

2. All Village District Principal Uses shall be located within an existing historic Structure(s), except as noted below, located on a Lot or Lots maintained in single ownership and comprising a minimum area of three (3) acres or more. Said Lot(s) may include land area located on parcels separated by Streets and include land area partially covered by water; and

3. In addition to the clustered Single-Family Dwellings permitted by-right with limitations, a new barn Structure up to a maximum of two thousand (2,000) square feet that will replace an existing barn Structure to be removed; and additions to existing Structures, up to a maximum gross floor area of one thousand (1,000) square feet total for all

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existing Buildings. Such work on Additions shall be allowed only if required by codes and ordinances of the City or ordered by any City official charged with protecting the health, safety, and public welfare. The new barn Structure shall be permitted subject to the following criteria:

a. The front Facade of such Structure(s) shall be located no closer than fifteen (15) feet and no more than twenty-five (25) feet from the Frontage Line with entry doors facing the street, and shall not exceed fifty (50) feet in depth; and

b. The length of the new Structure shall occupy a minimum of fifty (50) feet at the Front Setback line; and

c. The new Structure shall be a maximum of thirty-five (35) in Height and

d. All required Parking shall be adequately screened with a fifteen (15) foot landscaped Buffer strip along the street, with no Garage openings directly facing the street.

e. Porches and a valet Parking booth shall be permitted and are exempt from the above limits on Lot width and gross Floor Area.

f. Following Special Permit approval, the barn Structure may be used for Event Space, separately or collectively with other buildings, structures and uses within an approved Silvermine Tavern Village District site plan.

4. Off-street Parking and loading requirements. See Section 4.3.12, except that:

a. Off-street Parking facilities shall be provided on the same Lot where the Use occurs or on a Lot located within six hundred (600) feet measured along Adjacent Streets. All such off-premises Parking sites shall be subject to approval by the Planning and Zoning Director for accessibility, safety, convenience, and ready identification. An instrument (deed restriction), approved by the Planning and Zoning Director, which dedicates the Use of such off-premises Parking site shall be recorded in the Norwalk land records.

b. All new Parking Areas shall be designed to provide a landscaped year-round Buffer on all sides Abutting CD-1L or CD-2 zoned properties and shall be designed with pervious surfaces. Drop-off areas between Buildings and the street shall not require a Setback and shall be designed with articulated paving materials (i.e., Belgian block, brick pavers, cobblestones, and the like). Up to six (6) Parking Spaces for Use by an Inn and located behind the Front Setback on the Inn property may utilize a drop-off area for backing out of such Parking Spaces; provided that no Parking shall be permitted in the drop off-area.

c. Parking requirements may be reduced with a valet Parking credit of up to twenty-five percent (25%) and tandem spaces may be utilized for valet Parking. Valet Parking shall be limited to parcels a minimum of one (1) acre in size and shall require that a detailed Parking plan be submitted, subject to review and approval by the Planning and Zoning Commission. The Planning and Zoning Commission may require that police officers be hired to manage traffic during special events.

5. Waterfront access see Section 4.3.3.H.5.

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CD-1M TABLE 4.3.1-B DISTRICT STANDARDS: SUB-URBAN MEDIUM LOT COMMUNITY DISTRICT

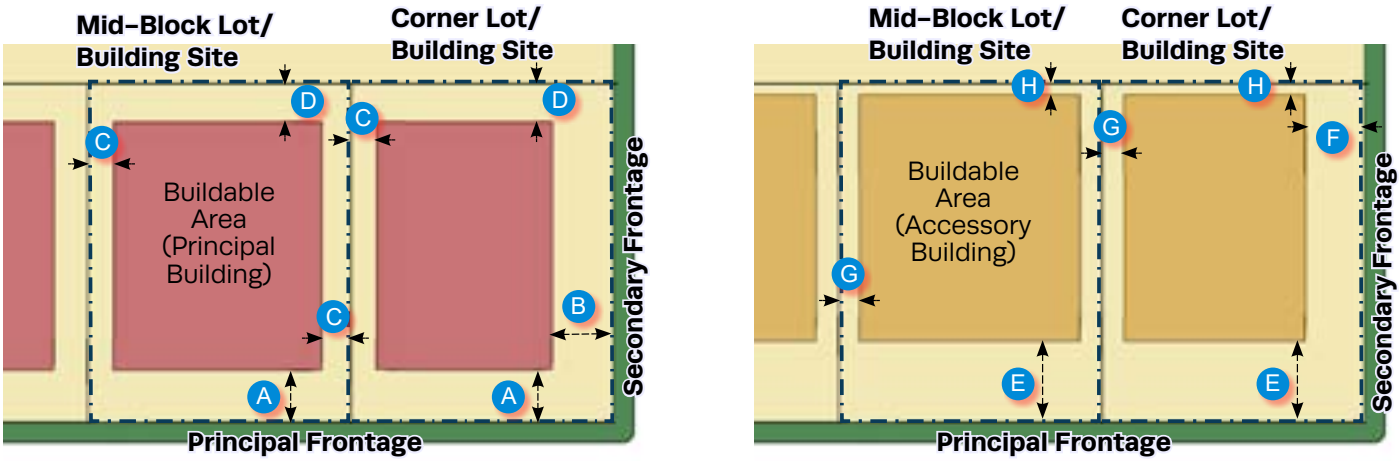


General Description

The CD-1M Sub-Urban Medium Lot Community District consists of primarily a low density single-family detached Residential area. It has medium-to-deep front Setbacks and medium-to-wide side Setbacks. Religious facilities and other institutional Uses may also be allowed.

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CD-1M TABLE 4.3.1-B DISTRICT STANDARDS: SUB-URBAN MEDIUM LOT COMMUNITY DISTRICT



Lot Occupation

Lot/Building Site Width	100 ft. min
Lot/Building Site Area	12,500 sq. ft.
Impervious Surface Coverage	1. For Lot or Building Site Area < 6,250 square feet: a. Building Coverage 35% max. b. Impervious Surface Coverage 50% max. 2. For Lot or Building Site Areas of 6,251 square feet to 12,499 square feet: a. Building Coverage is 2,186 square feet plus 20% of every additional square foot of Lot or Building Site Area greater than 6,251 square feet up to 12,499 square feet of Lot or Building Site Area. b. Impervious Surface Coverage is 50% of Lot or Building Site Area minus 1% for every additional 400 square feet of Lot or Building Site Area up to 12,499 squafe feet of Lot or Building Site Area. 3. For Lot or Building Site Area of 12,500 square feet or more: a. Building Coverage 25% max. b. Impervious Surface Coverage 35% max. 4. Impervious Surface Coverage can be increased to 60% for Lot or Building Site(s) less than 12,500 square feet in Lot or Building Site Area provided the increase in volume of runoff during a 100-year storm event is retained on-site. In addition, if the Lot or Building Site abuts an inland wetlands or tidal Watercourse or Wetland, a minimum fifteen (15) foot vegetated buffer, consisting of climate tolerant, native plantings is installed.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1M TABLE 4.3.1-B DISTRICT STANDARDS: SUB-URBAN MEDIUM LOT COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	30 ft. min.*	A	Front Setback, Principal Frontage	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	30 ft. min.	B	Front Setback, Secondary Frontage	30 ft. min.	F
Side Setback, each side	10 ft. min.	C	Side Setback, each side	10 ft. min.	G
Rear Setback	20 ft. min.	D	Rear Setback	5 ft. min.	H

**Wherever the Common Council shall have established a Building line or wherever the Common Council may in the future establish a Building line, as provided in the Charter of the City of Norwalk, then such Building line shall be the Setback line upon the Lot in lieu of the provision above.*

Block Size*

***Applicable only to Development Parcels.**

Block Perimeter	3500 ft. max.

Private Frontage Types

Common Yard	P	Gallery	NP
Porch	P	Arcade	NP
Fence	P	Commercialfront	*P
Terrace/Lightwell	NP	Dining Yard	*P
Forecourt	NP	Commercial Porch	NP
Stoop	NP	Boardwalk	NP
Stepfront	NP	Loading Dockfront	NP
Shopfront	*P	*See Table 4.3.7.A (Private Frontage Types)*	

**See Table 4.3.8.A (Building, Lot & Building Site Principal Uses) and Section 4.3.9.F Uses Permitted by Right with Limitations for Use Limitations*

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1M TABLE 4.3.1-B DISTRICT STANDARDS: SUB-URBAN MEDIUM LOT COMMUNITY DISTRICT

Civic Space Types*

Applicable only to Development Parcels.

Park	P	Playground	P
Green	P	Sport Field	P
Square	NP	Community Garden	P
Plaza	NP	Pocket Park	P

See Table 5.2.3-A (Civic Space Types – Summary) and Table 5.2.3-B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Number of Buildings

Principal Building	1 max.
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	Stories: 2.5 max., Building Height: 35 feet max., Total Building Height: 40 feet max.
Accessory Building	Except as otherwise permitted in these Regulations, 1.5 Stories max., Building Height: 15 feet max, Total Building Height: 20 feet max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards).*

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

Facade

NR

Roof Type & Pitch

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1M **TABLE 4.3.1-B DISTRICT STANDARDS:**
SUB-URBAN MEDIUM LOT COMMUNITY DISTRICT

Building Standards (continued)

NR

Building Materials

NR

Building Types

Cottage	P	Jewel Box	NP
House	P	Commercial	*P
Estate House	P	Mixed Use	NP
Duplex	NP	Flex	NP
Townhouse	NP	Mid-Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	P
Live/Work	NP		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)
**See Table 4.3.8.A (Building, Lot & Building Site Principal Uses) and Section 4.3.9.F Uses Permitted by Right with Limitations for Use Limitations*

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Required Parking Spaces	P proviced that Parking Spaces are located beyond the front yard setback, except as permitted per Section 4.3.12.B.4
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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CD-1M TABLE 4.3.1-B DISTRICT STANDARDS: SUB-URBAN MEDIUM LOT COMMUNITY DISTRICT

Vehicular Parking Requirements (continued)

Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

Additional Parking Requirements

Off-street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface
Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space.
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	10 ft. max. within 10 ft. of Frontage Line, except as permitted per Section 4.3.12.B.4
Parking Structures	NP
Parking Structure Pedestrian Exit Location	NA

Bicycle Parking

See Section 4.3.13

Loading & Access

NR

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P	P	P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1M **TABLE 4.3.1-B DISTRICT STANDARDS:**
SUB-URBAN MEDIUM LOT COMMUNITY DISTRICT

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types - Summary) and Table 7.1.2.B-2 (Sign Types - Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Private Landscaping and Fencing

Landscaping

NR

Walls & Fencing (not including Screens)

NR

Materials

NR

Additional Standards

Retaining walls	10 ft. min. from Lot/Building Site Line and 4 ft. max. height and in accordance with Section 4.3.16.M.

Screens, Streetscreens & Buffers

Height

NR

Materials

NR

Additional Standards

NR

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies - Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1S TABLE 4.3.1-C DISTRICT STANDARDS: SUB-URBAN SINGLE FAMILY COMMUNITY DISTRICT

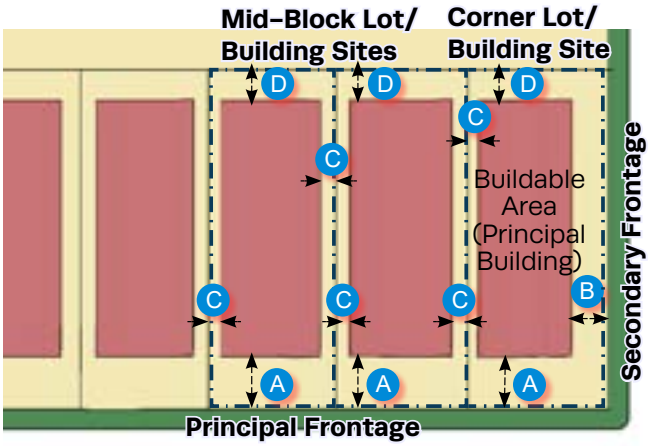


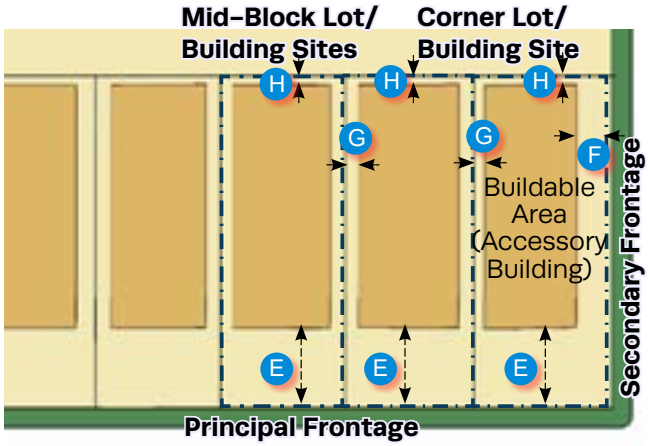
General Description

The CD-1S Sub-Urban Single Family Community District consists of primarily a low density single-family detached Residential area. It has medium-to-deep front Setbacks and medium-to-wide side Setbacks. Religious facilities and other institutional Uses may also be allowed.

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CD-1S TABLE 4.3.1-C DISTRICT STANDARDS: SUB-URBAN SINGLE FAMILY COMMUNITY DISTRICT





Lot Occupation

Lot/Building Site Width	50 ft min.
Lot/Building Site Area	6,250 sq. ft.
Impervious Surface Coverage	1. For Lot or Building Site Area < 6,250 square feet: a. Building Coverage 35% max. b. Impervious Surface Coverage 50% max. 2. For Lot or Building Site Areas of 6,251 square feet to 12,499 square feet: a. Building Coverage is 2,186 square feet plus 20% of every additional square foot of Lot or Building Site Area greater than 6,251 square feet up to 12,499 square feet of Lot or Building Site Area. b. Impervious Surface Coverage is 50% of Lot or Building Site Area minus 1% for every additional 400 square feet of Lot or Building Site Area up to 12,499 squafe feet of Lot or Building Site Area. 3. For Lot or Building Site Area of 12,500 square feet or more: a. Building Coverage 25% max. b. Impervious Surface Coverage 35% max. 4. Impervious Surface Coverage can be increased to 60% for Lot or Building Site(s) less than 12,500 square feet in Lot or Building Site Area provided the increase in volume of runoff during a 100-year storm event is retained on-site. In addition, if the Lot or Building Site abuts an inland wetlands or tidal Watercourse or Wetland, a minimum fifteen (15) foot vegetated buffer, consisting of climate tolerant, native plantings is installed.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1S TABLE 4.3.1–C DISTRICT STANDARDS: SUB–URBAN SINGLE FAMILY COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	30 ft. min.*	A	Front Setback, Principal Frontage	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	20 ft. min.	B	Front Setback, Secondary Frontage	20 ft. min.	F
Side Setback, each side	6 ft. min.	C	Side Setback, each side	6 ft. min.	G
Rear Setback	15 ft. min.	D	Rear Setback	5 ft. min.	H

**Wherever the Common Council shall have established a Building line or wherever the Common Council may in the future establish a Building line, as provided in the Charter of the City of Norwalk, then such Building line shall be the Setback line upon the Lot in lieu of the provision above.*

Block Size*

***Applicable only to Development Parcels.**

Block Perimeter	3000 ft. max.

Private Frontage Types

Common Yard	P	Gallery	NP
Porch	P	Arcade	NP
Fence	P	Commercialfront	NP
Terrace/Lightwell	NP	Dining Yard	NP
Forecourt	NP	Commercial Porch	NP
Stoop	P	Boardwalk	NP
Stepfront	NP	Loading Dockfront	NP
Shopfront	NP	*See Table 4.3.7.A (Private Frontage Types)*	

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1S TABLE 4.3.1-C DISTRICT STANDARDS: SUB-URBAN SINGLE FAMILY COMMUNITY DISTRICT

Civic Space Types*

**Applicable only to Development Parcels.*

Park	P	Playground	P
Green	P	Sport Field	NP
Square	NP	Community Garden	P
Plaza	NP	Pocket Park	P

See Table 5.2.3-A (Civic Space Types – Summary) and Table 5.2.3-B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Number of Buildings

Principal Building	1 max.
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	Stories: 2.5 max., Building Height: 32 feet max., Total Building Height: 40 feet max
Accessory Building	Except as otherwise permitted in these Regulations, 1.5 Stories max., Building Height: 15 feet max., Total Building Height: 20 feet max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap

Facade

NR

Roof Type & Pitch

NR

Building Materials

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1S TABLE 4.3.1-C DISTRICT STANDARDS: SUB-URBAN SINGLE FAMILY COMMUNITY DISTRICT

Building Types

Cottage	P	Jewel Box	NP
House	P	Commercial	P
Estate House	P	Mixed Use	NP
Duplex	NP	Flex	NP
Townhouse	NP	Mid-Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	P
Live/Work	NP		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Required Parking Spaces	P provided that Parking Spaces are located beyond the front yard setback, except as permitted per Section 4.3.12.B.4
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

Additional Parking Requirements

Off-street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface
Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1S TABLE 4.3.1–C DISTRICT STANDARDS: SUB–URBAN SINGLE FAMILY COMMUNITY DISTRICT

Vehicular Parking Requirements (continued)

Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	10 ft. max. within 10 ft. of Frontage Line, except as permitted per Section 4.3.12.B.4
Parking Structures	NP
Parking Structure Pedestrian Exit Location	NA

Bicycle Parking

See Section 4.3.13

Loading & Access

NR

Non–Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P	P	P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1S **TABLE 4.3.1–C DISTRICT STANDARDS:**
SUB–URBAN SINGLE FAMILY COMMUNITY DISTRICT

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B–1 (Sign Types – Summary) and Table 7.1.2.B–2 (Sign Types – Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Private Landscaping and Fencing

Landscaping

NR

Walls & Fencing (not including Screens)

NR

Materials

NR

Additional Standards

Retaining walls	5 ft. min. from Lot/Building Site Line and 4 ft. max. Height and in accordance with Section 4.3.16.M unless modified by the Commission through the granting of a Special Permit.

Screens, Streetscreens & Buffers

Height

NR

Materials

NR

Additional Standards

NR

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies – Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10.

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-1S TABLE 4.3.1–C DISTRICT STANDARDS: SUB–URBAN SINGLE FAMILY COMMUNITY DISTRICT

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CD–2 TABLE 4.3.1–D DISTRICT STANDARDS: SUB–URBAN SINGLE– AND TWO–FAMILY COMMUNITY DISTRICT

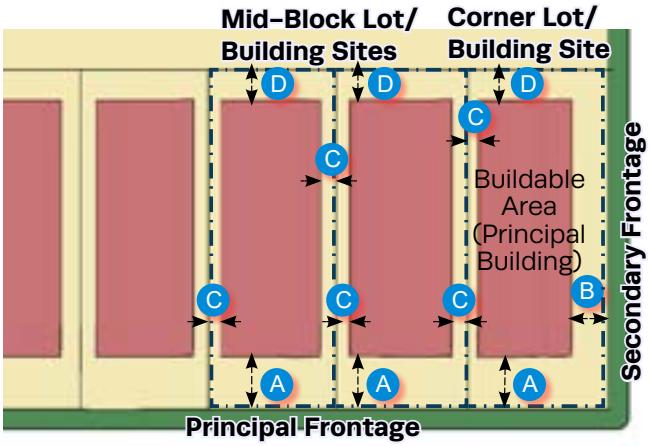


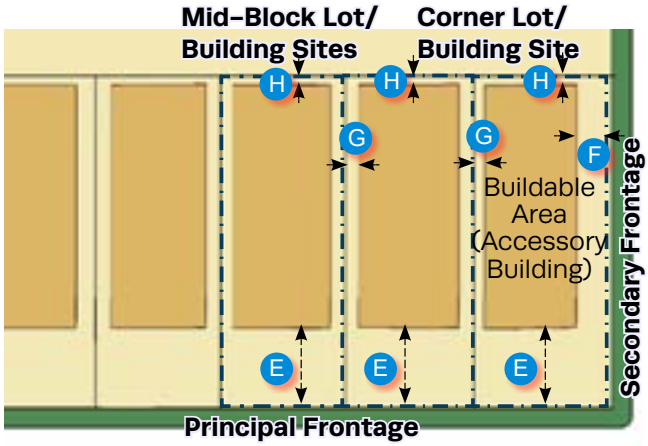
General Description

The CD–2 Sub–Urban Single– and Two–Family Community District consists of primarily a low density single–family detached and two–family Residential area. It has medium–to–deep front Setbacks and medium–to–wide side Setbacks. Religious facilities and other institutional Uses may also be allowed.

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CD-2 TABLE 4.3.1-D DISTRICT STANDARDS: SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT





Lot Occupation

Lot/Building Site Width	50 ft min.
Lot/Building Site Area	5,000 sq. ft.
Impervious Surface Coverage	1. For Lot or Building Site Area < 6,250 square feet: a. Building Coverage 35% max. b. Impervious Surface Coverage 50% max. 2. For Lot or Building Site Areas of 6,251 square feet to 12,499 square feet: a. Building Coverage is 2,186 square feet plus 20% of every additional square foot of Lot or Building Site Area greater than 6,251 square feet up to 12,499 square feet of Lot or Building Site Area. b. Impervious Surface Coverage is 50% of Lot or Building Site Area minus 1% for every additional 400 square feet of Lot or Building Site Area up to 12,499 squafe feet of Lot or Building Site Area. 3. For Lot or Building Site Area of 12,500 square feet or more: a. Building Coverage 25% max. b. Impervious Surface Coverage 35% max. 4. Impervious Surface Coverage can be increased to 60% for Lot or Building Site(s) less than 12,500 square feet in Lot or Building Site Area provided the increase in volume of runoff during a 100-year storm event is retained on-site. In addition, if the Lot or Building Site abuts an inland wetlands or tidal Watercourse or Wetland, a minimum fifteen (15) foot vegetated buffer, consisting of climate tolerant, native plantings is installed.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-2 TABLE 4.3.1-D DISTRICT STANDARDS: SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	30 ft. min.* for Dwellings with attached street-facing Garage(s) 20 ft. min* for Dwellings with detached Garage(s) and/or non-street facing Garage(s)	A	Front Setback, Principal Frontage	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	20 ft. min.	B	Front Setback, Secondary Frontage	20 ft. min.	F
Side Setback, each side	5 ft. min.	C	Side Setback, each side	5 ft. min.	G
Rear Setback	15 ft. min.	D	Rear Setback	5 ft. min.	H

**Wherever the Common Council shall have established a Building line or wherever the Common Council may in the future establish a Building line, as provided in the Charter of the City of Norwalk, then such Building line shall be the Setback line upon the Lot in lieu of the provision above.*

Block Size*

***Applicable only to Development Parcels.**

Block Perimeter	3000 ft. max.

Private Frontage Types

Common Yard	P	Gallery	NP
Porch	P	Arcade	NP
Fence	P	Commercialfront	*P
Terrace/Lightwell	NP	Dining Yard	*P
Forecourt	NP	Commercial Porch	NP
Stoop	P	Boardwalk	NP
Stepfront	NP	Loading Dockfront	NP
Shopfront	*P	*See Table 4.3.7.A (Private Frontage Types)*	

**See Table 4.3.8.A (Building, Lot & Building Site Principal Uses) and Section 4.3.9.F Uses Permitted by Right with Limitations for Use Limitations*

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-2 TABLE 4.3.1-D DISTRICT STANDARDS: SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT

Civic Space Types*

**Applicable only to Development Parcels.*

Park	P	Playground	P
Green	P	Sport Field	NP
Square	NP	Community Garden	P
Plaza	NP	Pocket Park	P

See Table 5.2.3-A (Civic Space Types – Summary) and Table 5.2.3-B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Number of Buildings

Principal Building	1 max.
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	Stories: 2.5 max., Building Height: 32 feet max., Total Building Height: 40 feet max.
Accessory Building	Except as otherwise permitted in these Regulations, 1.5 Stories max., Building Height: 15 feet max., Total Building Height: 20 feet max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-2 TABLE 4.3.1-D DISTRICT STANDARDS: SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT

Facade*	**applicable to Duplex Building Type only*
Main Entrance	R prominently located on Facade at Principal Frontage
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line
Facade & Facade Element Design Proportions	Must be vertically proportioned
Blank Walls	NP at Frontage
Facade Articulation	NA
Window Shape	Square or vertical in proportion, except for transoms, rounded or circular.
Window Alignment	Upper floor windows and other features must generally be aligned with those of first Floor.
Window Types	Except for transoms and sidelights, Windows in Facade and Front & Side Yards must be single-hung, double-hung, casement or awning types.
Facade Glazing Material	Clear and/or stained glass R for all Elevations.
Window Trim in Front Yard	Min. 3 in. trim with sill and top plate if siding surrounding window; soldier course above lintel and rollock course below sill if brick or stone surrounds window
Facade Window Sill Height	If Residential: 30 in. min. above finished floor elevation at Facade
Porch Frontages	Min. 8 ft. clear, excluding rails, pillars, columns or other features
Shopfront Frontages	NA

Roof Type & Pitch*	**applicable to Duplex Building Type only*
Flat	NP
Shed	P at rear only and if ridge is attached to an exterior Building wall; except for porches, stoops or dormers which may have a shed roof anywhere on the Building
Hip	P
Gable	P
Mansard	P
Pitch	8:12 – 14:12, except for shed roofs which may be 3:12 – 14:12 and except roof pitch may match the primary roof pitch of an existing Building that is less than 8:12

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-2 TABLE 4.3.1-D DISTRICT STANDARDS: SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT

Building Materials*

*applicable to Duplex Building Type only

Primary Building Material on Facades	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Vertical Aluminum siding	NP
	Cementitious siding	P	Horizontal Aluminum siding	P
	Corrugated and/or sheet metal	NP	Vinyl siding	P

Changes in Building Materials	Primary materials must continue along side Elevations through Side Yard. Primary materials shall continue for entire length of all Facades facing a Frontage. Any material changes must coincide with form, structural, or massing changes and shall not occur at outside corner of such change.
Building Colors	Up to 3 colors, including the natural color of any allowed materials, but excluding trim colors
Foundation Cladding	R; brick or natural stone
Porch Pier Cladding	R; brick or natural stone, with any space under Porch concealed by painted or stained latticework between piers
Chimney Cladding	R; brick, natural stone, or material matching primary material of Facade

Building Types

Cottage	P	Jewel Box	NP
House	P	Commercial	*P
Estate House	P	Mixed Use	NP
Duplex	P	Flex	NP
Townhouse	NP	Mid-Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	P
Live/Work	NP		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)
**See Table 4.3.8.A (Building, Lot & Building Site Principal Uses) and Section 4.3.9.F Uses Permitted by Right with Limitations for Use Limitations.*

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-2 **TABLE 4.3.1-D DISTRICT STANDARDS:**
SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Required Parking Spaces	P provided that: 1. For Single-Family Detached Dwellings, Parking Spaces must be located beyond the front yard setback, except aspermitted per Section 4.3.12.B.4. 2. For Two-Family Detached Dwellings/Duplexes with attached street-facing Garage: a. One Parking Space for each Dwelling Unit must be within and/or behind the Principal Structure; and b. Each Dwelling Unit may have tandem parking spaces per Section 4.3.12.B.19. 3. For Two-Family Detached Dwellings/Duplexes with detached Garage or non-street-facing Garage: a. Parking Space(s) must be within and/or behind the Principal Structure; and b. Each Dwelling Unit may have tandem parking spaces per Section 4.3.12.B.19.
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

Additional Parking Requirements

Off-street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface
Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space. For Two-Family Detached Dwellings and Duplexes, if Garage is attached and faces street: max. Garage width is 20 ft. total and shall be offset from the Principal Entrance by a min. of six (6) feet.
Driveway/Vehicular Entrance Location	P in any Yard

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-2 **TABLE 4.3.1-D DISTRICT STANDARDS:**
SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT

Vehicular Parking Requirements (continued)

New Driveway/Vehicular Entrance Maximum Width	3. There shall be a maximum of one (1) driveway: d. For Single-Family Detached Dwellings: 10 ft. max within 10 ft. of Frontage Line, except as permitted per Section 4.3.12.B.4 e. For Two-Family Detached Dwellings and Duplexes with detached Garage(s) and/or non-street facing Garage(s): 10 ft. max. within 10 ft. of Frontage Line. f. For Two-Family Detached Dwellings and Duplexes with street-facing Garage(s): 20 ft. max.
Parking Structures	NP
Parking Structure Pedestrian Exit Location	NA

Bicycle Parking

See Section 4.3.13

Loading & Access

NR

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P	P	P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-2 **TABLE 4.3.1-D DISTRICT STANDARDS:**
SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types - Summary) and Table 7.1.2.B-2 (Sign Types - Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Private Landscaping and Fencing

Landscaping

NR

Walls & Fencing (not including Screens)

NR

Materials

NR

Additional Standards

Retaining walls	5 ft. min. from Lot/Building Site Line and 4 ft. max. Height and in accordance with Section 4.3.16.M; except that Two-Family Detached Dwellings/Duplexes with detached Garage(s) and/or non-street-facing Garage(s) shall have 0 ft. min. from Lot/Building Site Line and 4 ft. max. Height

Screens, Streetscreens & Buffers

Height

NR

Materials

NR

Additional Standards

NR

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies - Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10.

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-2 TABLE 4.3.1-D DISTRICT STANDARDS: SUB-URBAN SINGLE- AND TWO-FAMILY COMMUNITY DISTRICT

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CD–3 TABLE 4.3.1–E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

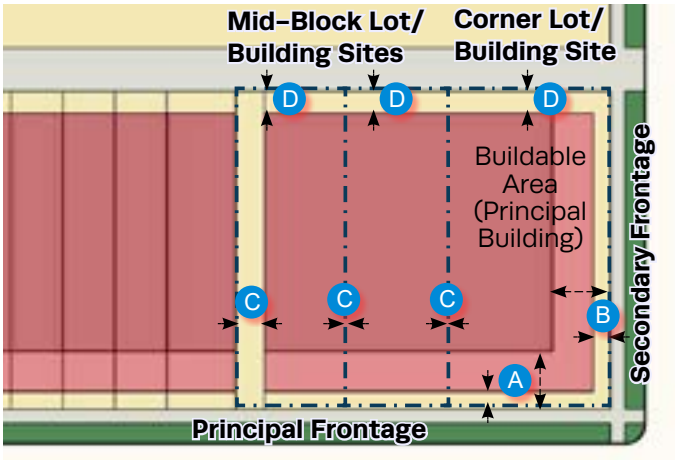


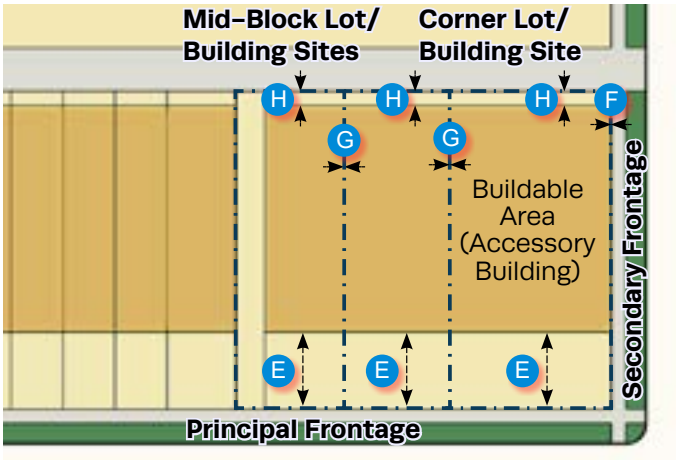
General Description

The CD–3 General Urban Community District consists of a medium density area that has a mix of Building Types and primarily Residential, Lodging, Office, Commercial, Civic, and Institutional Uses; there are medium, narrow or no front Setbacks and narrow–to–medium side Setbacks; it has variable private landscaping; and it has streets with curbs, Sidewalks, and trees that define medium–sized blocks.

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT





Lot Occupation

Lot/Building Site Width	50 ft. min.; 100 ft. max; 18 ft. min for Townhouse
Frontage Buildout	60% min.
Lot/Building Site Area	NR
Impervious Surface Coverage	80% max.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.
Waterfront Access	See Section 4.3.3.H.3.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	6 ft. min., 12 ft. max. (once the min. Frontage Buildout requirement is met, the max. front yard setback shall not apply to additional Principal Structure(s))	A	Front Setback, Principal Frontage	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	6 ft. min., 12 ft. max. (once the min. Frontage Buildout requirement is met, the max. front yard setback shall not apply to additional Principal Structure(s))	B	Front Setback, Secondary Frontage	0 ft. min.	F
Side Setback, each side	0 ft. min.	C	Side Setback, each side	0 ft. min	G
Rear Setback	3 ft. min; or 15 ft. min. from center line of Rear Alley	D	Rear Setback	5 ft. min.	H

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	2400 ft. max.

Private Frontage Types

Common Yard	P	Gallery	P
Porch	P	Arcade	NP
Fence	P	Commercialfront	P
Terrace/Lightwell	P	Dining Yard	P
Forecourt	P	Commercial Porch	P
Stoop	P	Boardwalk	P
Stepfront	P	Loading Dockfront	NP
Shopfront	P	*See Table 4.3.7.A (Private Frontage Types)*	

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

Civic Space Types*

Applicable only to Development Parcels.

Park	P	Playground	P
Green	P	Sport Field	P
Square	P	Community Garden	P
Plaza	P	Pocket Park	P

See Table 5.2.3-A (Civic Space Types – Summary) and Table 5.2.3-B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Density

1 Dwelling Unit and/or Dormitory room per 1,650 sq. ft.

Number of Buildings

Principal Building	NR
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	3.5 Stories max.
Accessory Building	Except as otherwise permitted in these Regulations, 1.5 Stories max., Building Height: 15 feet max., Total Building Height: 20 feet max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

May not exceed 13 ft. from finished floor to finished floor, except for a first floor Business/Commercial, Office, Retail/ Personal Service, or Lodging Use which must be a minimum of 15 ft. with a maximum of 23 ft.

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3 **TABLE 4.3.1-E DISTRICT STANDARDS:**
GENERAL URBAN COMMUNITY DISTRICT

Building Standards (continued)

Facade	
Main Entrance	Main Entrance must be in Facade of Principal Frontages. If Shopfront Frontage at corner, Main Entrance may be at Principal Frontage or at corner.
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line
Facade & Facade Element Design Proportions	Must be vertically proportioned
Blank Walls	NP at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Articulation	NA
Facade Glazing	Except for Single-Family Detached Dwellings and Two-Family Detached Dwellings/Duplexes: 10% min. of total Facade area; 20% min. of first Story Facade area for Gallery, Arcade, Commercial Front, and Commercial Porch Private Frontage Types; 70% min. of first Story Facade area for Shopfront Private Frontage Type.
Window Shape	Square or vertical in proportion, except for transoms, rounded or circular.
Window Alignment	Upper floor windows and other features must generally be aligned with those of first floor.
Window Types	Except in Shopfront or Gallery Frontage, and except for transoms and sidelights, Windows in Facade and Front & Side Yards must be single-hung, double-hung, casement or awning types.
Facade Glazing Material	Clear and/or stained glass R for all Elevations.
Window Trim in Front Yard	Min. 3 in. trim with sill and top plate if siding surrounding window; soldier course above lintel and rollock course below sill if brick or stone surrounds window
Porch Frontages	Min. 8 ft. clear, excluding rails, pillars, columns or other features
Shopfront Frontages	12 in.-24 in. knee wall required at Frontage
Facade Variety	No identical Facade may exist more than once on a Block Face or within view of the same Facade

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

Building Standards (continued)

Roof Type & Pitch

Flat	P
Shed	P at rear only and if ridge is attached to an exterior Building wall; except for Porches, Stoops or Dormers which may have a shed roof anywhere on the Building
Hip	P
Gable	P
Mansard	P
Pitch	8:12 – 14:12, except for shed roofs which may be 3:12 – 14:12 and except roof pitch may match the primary roof pitch of an existing Building that is less than 8:12

Building Materials

Primary Building Material on Facades	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Aluminum vinyl siding	NP
	Cementitious siding	P	Vinyl siding	P
	Corrugated and/or sheet metal	NP		

Changes in Building Materials	Primary materials must continue along side Elevations through Side Yard. Primary materials shall continue for entire length of all Facades facing a Frontage. Any material changes must coincide with form, structural, or massing changes and shall not occur at outside corner of such change.
Building Colors	Up to 3 colors, including the natural color of any allowed materials, but excluding trim colors
Foundation Cladding	R; brick or natural stone
Porch Pier Cladding	R; brick or natural stone, with any space under Porch concealed by painted or stained latticework between piers
Chimney Cladding	R; brick, natural stone, or material matching primary material of Facade

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

Building Types

Cottage	P	Jewel Box	P
House	P	Commercial	P
Estate House	NP	Mixed Use	P
Two-Family Detached Dwelling	P	Flex	P
Townhouse	P	Mid-Rise	NP
Small Multifamily Building	P	Large Scale Commercial	NP
Large Multifamily Building	P	Civic	P
Live/Work	P		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Required Parking Spaces	P provided that: 1. For Single-Family Detached Dwellings, Parking Spaces must be located beyond the front yard setback, except as permitted per Section 4.3.12.B.4. 2. For all other Uses, Parking Spaces must be within and/or behind the Principal Structure; see Additional Parking Requirements and Additional Standards within the Screens, Streetscreens & Buffers section of this Table.
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commerical Vehicle(s))

Additional Parking Requirements

Off-street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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CD-3 **TABLE 4.3.1-E DISTRICT STANDARDS:**
GENERAL URBAN COMMUNITY DISTRICT

Vehicular Parking Requirements (continued)

Garage Location	P for all Uses other than a Single-Family Detached Dwelling: permitted in the Rear Yard only
Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space. Except for Single-Family Detached Dwellings, if Garage faces street: max. Garage width 30% of total of Garage + Facade width.
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	1. For Single-Family Detached Dwellings and Two-Family Detached Dwellings/ Duplexes: 10 ft. max. within 10 ft. of Frontage Line 2. For all other Uses, 24. ft. max. in Front Yard, regardless if shared or not
Parking Structures	P, if Screened from Frontage by Liner Buildings
Parking Structure Pedestrian Exit Location	Via pedestrian access to Frontage

Bicycle Parking

See Section 4.3.13

Loading & Access

Off-street Loading and Storage	P in Rear Yard only.
Utility Box & Service Meter* Locations *(*Not including water meters)*	P in Rear Yard only.
Off-street Trash Receptacle Locations	P in Rear Yard only.
Off-street Dumpster Locations	P in Rear Yard only.
Drive-Through Locations	NP

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P	P	P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types - Summary) and Table 7.1.2.B-2 (Sign Types - Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Private Landscaping and Fencing

Landscaping

R 1 Tree per 50 ft of frontage if Front Yard ≥ 15 ft deep, planted in Front Yard; if Front Yard ≥ 10 ft, min of 30% of Front Yard must be landscaped in compliance with Section 4.3.16.

Walls & Fencing (not including Screens)

Height	4 ft. max. at Frontage; otherwise 6 ft. max; Height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well-maintained, in upright condition and free of missing or broken parts and graffiti.

Materials

Natural Wood	P Only picket type allowed at Frontage; other types allowed on sides and at rear	Chain Link	P at sides and rear only
Brick, Natural Stone, or Stucco over Masonry	P	Barbed/razor/concertina wire	NP

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3 **TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT**

Private Landscaping and Fencing (continued)

Wrought Iron or Aluminum	P	Exposed or painted aggregate concrete	NP
Vinyl	NP	Smooth or split-faced block	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	R
Retaining Walls	5 ft. min. from Lot/Building Site Line and 4 ft. max. Height and in accordance with Section 4.3.16.M.

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3 ft. to 3.5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	3 ft. to 3.5 ft	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3 ft. to 3.5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

Additional Standards

Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive-Throughs, Trash Receptacles/Dumpsters, HVAC, Antennas, and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened from Frontage and Civic Space by Building or Streetscreen; or by Building, wall, hedge or fence not at Frontages or Adjacent to Civic Space.
Satellite Dish Screen	R

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3 **TABLE 4.3.1-E DISTRICT STANDARDS:**
GENERAL URBAN COMMUNITY DISTRICT

Self-Storage Warehouse Screening	NA (not permitted in District)
Streetscreen Location	Side Yard
Lot or Building Site Buffer	Section 4.3.11.H.

Additional Standards for Overlays and Other Districts

See following pages for additional standards for the following Village District Overlays: East Avenue Village District Overlay and East Norwalk Village TOD Overlay. Where these standards are in conflict with other standards within these Regulations, the standards for Village District Overlays shall control. For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies - Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

Additional Standards for Village District Overlays in CD-3

GENERAL VILLAGE DISTRICT REVIEW STANDARDS

All Uses, Buildings and Structures located in the Village District Overlays shall be subject to design review in accordance with the following standards:

1. The Planning and Zoning Commission shall hire a Village District Consultant, who shall be an architect, landscape architect or certified planner, with pertinent experience, which may include historic preservation, to review the design of new Construction and substantial rehabilitation of all properties within the District. The report of such consultant shall be entered into the public hearing record and considered by the Planning and Zoning Commission in making its decision.

2. Criteria: New Construction and substantial rehabilitation of existing Structures, including those listed on the Norwalk Historic Resources Inventory, shall be harmoniously related to their surroundings and shall be consistent with the Secretary of the Interior's Standards for Rehabilitation, as applicable. All Applications shall demonstrate how such Development is consistent with the criteria defined in Connecticut General Statutes Section 8-2j Village Districts, including but not limited to the following criteria, subject to final review and approval by the Commission:

a. Building Design, Scale & compatibility: The color, size, Height, location, proportion of openings, roof treatments, Building materials, and any proposed Signs, Accessory Buildings and lighting shall be consistent with the local architectural motif and with the unique elements of the District, including maintenance of historic Buildings, monuments and landscape. The removal or disruption of historic or significant Structures or architectural elements shall be minimized.

b. Streetscape Standards & Landscape: All spaces, Structures and related site Improvements visible from public roadways shall be designed to be consistent with the elements of the District in and around the proposed modification. All utilities and Loading Areas shall be designed to limit their exposure to the street and to Adjacent Residential properties.

EAST AVENUE VILLAGE DISTRICT OVERLAY (O-EAVD)

1. The maximum Impervious Surface Coverage in the O-EAVD is 60%.

2. All multi-family Dwellings shall provide an open recreation area of not less than one hundred fifty (150) square feet per Dwelling Unit, which shall be located with due concern for the safety and convenience of the residents for whose Use it is intended. At least 50% of the minimum required recreation area shall be located outside on ground level and devoted exclusively to recreational activities and recreational equipment and facilities, such as play equipment, swimming pools, tennis courts and gardens. The recreation area shall be suitably screened with landscaping in accordance with Section 4.3.16 Private Landscape Standards.

EAST NORWALK VILLAGE TOD OVERLAY (O-EVTZ)

1. Any redevelopment of a parcel and new Construction or remodeling of the exterior of a Building shall be consistent with the standards within the East Norwalk Village TOD Design Guidelines.

2. Historically significant Buildings constructed on or before 1965, are hereby declared to be in compliance with the Height and Bulk requirements of this section. Modifications and Additions to such Buildings shall conform to and be compliant with the Height and Bulk requirements of this section and the East Norwalk Village TOD District Review Standards.

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

3. Public Open Space shall include landscaped areas, pedestrian plazas, courtyards, walkways, recreation areas and the like. Such Open Space shall be permitted on the roof of a Structure. Publicly accessible Open Space must be connected to a public right-of-way with signage indicating that the Open Space is available to the public.

4. All Buildings constructed within the O-EVTZ, and as indicated in yellow on the map below, shall be constructed with a minimum first floor ceiling Height of fifteen (15) feet to potentially accommodate commercial tenants.



5. All Buildings constructed on a parcel fronting on East Avenue that intersects with any other street, must contain a street-activating Use that comprises at least fifty percent (50%) of the ground floor, for a minimum of fifty percent (50%) of its East Avenue frontage and at least fifty (50) feet on each intersecting street.

a. street-activating Uses shall include one (1) or more of the following:

(1) Artist Workspace, if studios are open to the public at least twice a year;

(2) Brewpubs/Distilleries;

(3) Boutique Manufacturing as accessory to permitted retail Use;

(4) Cultural Arts and Entertainment Facilities;

(5) Maker space;

(6) Museum, galleries, libraries;

(7) Parks, Playgrounds, and Community Centers;

(8) Professional offices, such as medical;

(9) Restaurants and Taverns;

(10) Retail stores and Personal Service Establishments;

(11) Nursery and child day-care centers;

(12) Farmers' Market, if year-round.

b. Pedestrian access shall be provided to street-activating Uses from any intersecting street. Access to any street activating Use, as well as any other ground floor Use on the street level fronting the street, shall be a welcoming external and active street presence, regardless of whether the internal opening leads to a single Building, a through-block Arcade, or additional Buildings within the same Development.

6. All new or rehabilitated development within the O-EVTZ shall provide Sidewalks with a minimum width of eight (8) feet, which includes a three (3) foot amenity zone for tree planting and other green space located between the road surface and Sidewalk, and a minimum of a five (5) foot Sidewalk, which always maintains clearance from any obstruction.

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

Permanent obstructing features, including utilities, shall be limited and approved by the Planning and Zoning Commission. Unless impossible to locate otherwise, utilities shall be placed underground. Any Sidewalk area constructed on private property may be counted toward the required Public Realm.

7. Lots/Building Sites shall devote ten percent (10%) of the Lot/Building Site Area to Public Realm space(s) in accordance with Section 4.3.19.

Specification and Applicability of Amenities

1. Amenity types. The following constitute site amenities, each of which is defined below and which are hereby deemed to be mutually exclusive and cumulative:

a. Indoor pedestrian seating: a continuous, Open Space enclosed within a Structure that is within thirty (30) feet of a public right-of-way or plaza, provided that:

(1) it is clearly designated as open to the public during business hours common to the area;

(2) there is a minimum of one (1) linear foot of seating space per thirty (30) square feet of dedicated floor area;

(3) it contains a minimum horizontal dimensions of twenty-five (25) feet;

(4) there is a minimum area of five hundred (500) square feet;

(5) it is contiguous with an active public ground floor Use along at least fifty percent (50%) of its perimeter.

b. Outdoor pedestrian plaza: a continuous Open Space no more than three (3) feet above or below the center-line elevation of the street and Abutting a designated pedestrian right-of-way, provided that:

(1) the plaza is open to the public at all times;

(2) a minimum of one (1) linear foot of seating space per thirty (30) square feet of plaza;

(3) a minimum street frontage and horizontal width of twenty-five (25) feet;

(4) a minimum area of five hundred (500) square feet, and a maximum area of five thousand (5,000) square feet;

(5) at least twenty percent (20%) of the plaza must be landscaped with shrubbery and trees, and the remaining area shall be a hard surface, which conforms to the streetscape standards;

(6) adequate sun exposure is provided; and

(7) the plaza may be available for Use by properly licensed street vendors.

c. Public Art: works of art which are permanently on display and available for public viewing, interaction and enjoyment. The Planning and Zoning Commission shall refer the request to the Arts Commission for comment prior to making a decision.

d. Public Parking facilities: Parking Spaces provided in excess of those required for the approved project and dedicated for Use by the general public for short-term (transient) Parking. These spaces should be located on the level of Parking closest to the street and/or primary entrance to the project(s) and shall be clearly designated as available for public Parking.

2. Amenity Points. The amenities above are assigned the points in **Table 4.3.1-D.A.**

3. Should an Applicant propose an amenity which is similar to and in keeping with the intent of the regulations, the Planning and Zoning Commission may allow this amenity in addition to the other amenities in this section.

4. Amenity Calculations. The Applicant must

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achieve the points required below to be eligible for the following bonuses:

a. If 15 points are achieved, provided that at least ten points must be Sustainable Amenities:

(1) The Residential Density may be increased from 1 Dwelling unit per 1,650 square feet of Lot area to 1 Dwelling unit per 1,250 square feet of Lot area.

b. If 20 points are achieved, provided that at least thirteen points must be Sustainable Amenities:

(1) The Residential Density may be increased from 1 Dwelling Unit per 1,650 square feet of Lot area to 1 Dwelling Unit per 825 square feet of Lot area.

5. Compliance. The Commission must make affirmative findings that the proposed amenities are compliant with the provisions of this section, including the following criteria:

a. The overall design of the project and the specific amenities proposed are appropriate to the site, consistent with the East Norwalk Village TOD District Design Guidelines and contribute to the Improvement of the downtown pedestrian environment.

b. The Applicant records a covenant on the land records which ensures the continuous operation and maintenance of the amenity and that such covenant shall run with the land. The Applicant will be responsible for the continuous operation and maintenance of the amenity. The amenity, once designated, shall only be changed with the approval of a 2/3 majority vote of the Commission.

c. The amenity must be clearly identified as a facility available for public use.

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CD–3 TABLE 4.3.1–E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

TABLE 4.3.1–E.A EVTZ AMENITY POINTS

Amenity	Infrastructure Related Amenities Description/Point System	Total Maximum Points Available per Amenity
Public restroom[1], which is: 1. Clearly designated as open to the public during business hours common to the area. 2. Gender–neutral. 3. Contains an infant changing station.		3
Wider Sidewalks[2] To provide a better pedestrian environment, ten (10) foot sidewalks are desired		1 (per 8 ft. Sidewalks) 2 (per 10 ft. Sidewalks)
Public Art[3] Works of art which are permanently on display and available for public viewing, interaction and enjoyment. The Commission may refer the request to the Arts Commission for comment prior to making a decision.		2
Public Bicycle Racks[4] Provided for a minimum of five (5) bicycles. Consistent with EVTZ Guidelines.		1 (per site)
Public Bicycle Repair Station[5]		1 (per site)

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CD-3 **TABLE 4.3.1-E DISTRICT STANDARDS:**
GENERAL URBAN COMMUNITY DISTRICT

TABLE 4.3.1-E.A EVTZ AMENITY POINTS

Amenity	Infrastructure Related Amenities Description/Point System	Total Maximum Points Available per Amenity
Indoor Pedestrian Seating[6]: a continuous open space, enclosed within a structure, that is within fifteen (15) feet of a public right-of-way or plaza, provided that: 1. It is clearly designated as open to the public during business hours common to the area; 2. There is a minimum of one (1) linear foot of seating space per thirty (30) square feet of dedicated floor area; 3. It contains a minimum 4. horizontal dimensions of twenty-five feet; 5. There is a minimum of five hundred (500) sq. ft.; 6. It is contiguous with an active public ground floor use along at least 50% of its perimeter. 1 point per five hundred (500) square feet of plaza, provided that plazas under 2,000 sq. ft. contain 2 unique features indicated below and plazas greater than 2,000 sq. ft. contain all 4 features		7

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CD-3 **TABLE 4.3.1-E DISTRICT STANDARDS:**
GENERAL URBAN COMMUNITY DISTRICT

TABLE 4.3.1-E.A EVTZ AMENITY POINTS

Amenity	Infrastructure Related Amenities Description/Point System	Total Maximum Points Available per Amenity
Outdoor Pedestrian Plaza[7]: A continuous open space, no more than three (3) feet above or below the center-line ele-vation of the street and abut-ting a designated pedestrian right-of-way, provided that: 1. The plaza is open to the pub-lic at all times; 2. There is a minimum of one (1) linear foot of seating space per thirty (30) square feet of dedicated floor area; 3. A minimum street frontage and horizontal width it con-tains a minimum of twenty- five feet; 4. There is a minimum of five hundred (500) SF; 5. There is a maximum of thir-ty-five hundred (3,500) SF; 6. It is contiguous with an active public ground floor use along at least 50% of its pe-rimeter; 7. At least twenty percent (20%) of the plaza must be landscaped with shrubbery and trees, and the remaining area shall be a pervious hard-surface, which conforms to the landscape standards; 8. Adequate sun exposure is provided. 9. All seating is adequately shaded 1 point per five hundred (500) square feet of plaza, provided that plazas under 2,000 SF con-tain 2 unique features indicated below and plazas greater than 2,000 SF contain all 4 features		7

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CD-3 **TABLE 4.3.1-E DISTRICT STANDARDS:**
GENERAL URBAN COMMUNITY DISTRICT

TABLE 4.3.1-E.A EVTZ AMENITY POINTS

Amenity	Unique Features Within Indoor or Outdoor Seating Plazas	Total Maximum Points Available per Amenity
Floor Junction Box[8]		0
Powered Seating[9]		0
Free Wi-Fi[10]		0
Water Filler[11]		0

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

TABLE 4.3.1-E.A EVTZ AMENITY POINTS

Amenity	Sustainable Amenities Description/Point System	Total Maximum Points Available per Amenity
Net Zero Building	The Development must demonstrate, through third party verification, in the form of an affidavit from a qualified professional, that all Building construction and all Building's Delivered Energy Usage is less than or equal to renewable exported energy.	10
For Buildings demonstrating Certification as: · Passive House / PHIUS / EnerPHit, or · LEED Zero, or Enterprise Green Communities Plus,or · Zero Energy Ready Homes, or Living Building Challenge. Certification shall be through third party verification, in the form of an affidavit from a qualified professional. Buildings seeking credit for a Net Zero Building, are not eli-gible for this category.	Proof of actual construction, to be confirmed in writing by an industry certified professional, prior to obtaining a Zoning Certificate of Compliance Passive House: https://passivehouse.com/03_certification/03_certification.htm LEED: https://www.usgbc.org/leed Enterprise Green Communities: https://www.enterprisecommunity.org/impact-areas/resilience/green-communities Zero Energy Ready: https://www.energy.gov/eere/buildings/zero-energy-ready-home-program Living Building Challenge: https://living-future.org/lbc/basics4-0/	5
Rainwater Retention, including utilization of LID techniques, subject to submittal and approval of an ongoing maintenance plan	1 point for the retention of every 25% of runoff generated by a 10-year 24-hour storm, as defined by NOAA, beyond what is required within the City of Norwalk Drainage Manual. Rain Gardens included within a drainage plan under this category, do not get points in addition to the points available in this amenity.	4

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CD-3 **TABLE 4.3.1-E DISTRICT STANDARDS:**
GENERAL URBAN COMMUNITY DISTRICT

TABLE 4.3.1-E.A EVTZ AMENITY POINTS

Amenity	Sustainable Amenities Description/Point System	Total Maximum Points Available per Amenity
EV Level 3 Charging Station[12] 1 point for every Level 3 EV Charger Installed. Charging stations must be available for public use, in spaces designated for public parking.		2
Green Wall[13] (minimum 500 SF)		2
Community Gardens[14] (minimum 1,000 sq. ft.)		2
Rain Gardens[15] which: 1. Are a minimum 500 sq. ft. 2. Capture a minimum of 25% of the site's stormwater		2
Integrated Rain Garden[16], which are: 1. Viewable by the Public 2. Capture a minimum of 25% of the site's stormwater 3. Includes building drainage 4. Contain public art; 5. and are minimum 500 sq. ft.		3

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CD-3 TABLE 4.3.1–E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

TABLE 4.3.1–E.A EVTZ AMENITY POINTS

Amenity	Sustainable Amenities Description/Point System	Total Maximum Points Available per Amenity
Pollinator Habitat[17] (minimum 500 sq. ft.) An area that offers a variety of native pollinating flowering plants, providing food and nesting places for pollinators.	 	2
Geothermal[18] Used as the primary heating and cooling source for the structure(s) Buildings seeking credit for a Net Zero Building, are not eligible for this category. 1 point for every 5,000 sq. ft. of gross floor area		5
Porous Pavement[19] (concrete or asphalt, constructed over runoff storage bed of uniformly graded broken stone. Or Permeable Pavers with storage with surface voids constructed over structural bed of sand and crushed stone. Both subject to a maintenance Plan, as well as submission of an annual compliance report, including no use of sand or cinders in winter. 1 point for 2,500 sq. ft.	 	5

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CD-3 TABLE 4.3.1-E DISTRICT STANDARDS: GENERAL URBAN COMMUNITY DISTRICT

TABLE 4.3.1-E.A EVTZ AMENITY POINTS

Amenity	Parking Amenities Description/Point System	Total Maximum Points Available per Amenity
Public parking facilities: parking Spaces provided in excess of those required for the approved project and dedicated for use by the general public for short-term (transient) parking. These spaces should be located on the level of a parking closest to the street and/or primary entrance to the project(s) and shall be clearly designated with signage as available for public parking.	1 point for every 2 spaces, must be permanently dedicated to unpaid public use with appropriate signage	6
	1 point for every 2 spaces of parking reduced by implementing shared parking best practices. Shared parking shall be calculated using relevant shared parking guidelines and research, published by a reputable organization, nationally recognized in the estimation of parking demand and shared parking factors by use and/or time of day for the subject development.	5

Amenity	Miscellaneous Amenities Description/Point System	Total Maximum Points Available per Amenity
Additional Workforce Housing Units	2 points for every additional 5% (rounded up) of the total number of Workforce Housing Units within a Development	4
Rent Reduction	2 points for each 10% reduction in annual market-rate rent for five years from initial date of tenancy. Reduction must be offered to one or more tenants who occupy no less than 50% of the ground floor area. Ground floor use must be an active, publicly accessible Use and not used for building leasing or amenity space.	4

Image sources:

1. https://www.arkansasbusiness.com/article/arkansas-bathroom-bill-condemned-as-too-extreme-is-revamped and https://publicrestroomcompany.com/options/
2. https://streets.mn/2023/07/19/if-we-want-a-shift-to-walking-we-need-to-prioritize-dignity/
3. https://ids.si.edu/ids/deliveryService?id=SAAM-SCA001837_2b
4. https://forum.thefreedictionary.com/poststt6798p19_COLLECTION-OF-BIKES.aspx
5. https://m.facebook.com/NorwalkBikeCoop/
6. https://www.businessinsider.com/backbar-in-meatpacking-district-2013-12
7. https://www.pinterest.co.kr/pin/367113807105607037/
8. https://www.floorboxoutlet.com/products/ob-1-sh-lewelectric-outdoor-floor-box-hex-stainless
9. https://www.ferozepower.com/solar-bench/
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12. https://www.islandernews.com/local/business/this-is-a-pretty-brutal-space-electric-vehicle-industry-overestimated-demand-cut-back-production-increases/article_27a4af08-770b-11ee-9c1b-b772dc81ee2b.html
13. https://www.ccr-mag.com/brome-burgers-shakes-welcomes-with-green-wall/
14. https://texanbynature.org/projects/westbury-community-garden/
15. https://www.portlandoregon.gov/bes/article/123776
16. https://www.pinterest.com/pin/862931978570272707/
17. https://www.tehamacountyrcd.org/xerces-society-monarch-butterfly-breeding-habitat-plant-kit and https://www.gapphotos.com/imagedetails.asp?view=a-contemporary-urban-garden-designed-to-encourage-wildlife-and-insects-the-urban-pollinator-garden-rhs-hampton-court-palace-garden-festival-2019--&imageno=1380956
18. https://www.roejanlibrary.org/services/
19. https://www.hotcore.info/babki/pervious-asphalt-pavement.htm and https://hotcore.info/babki/porous-asphalt-pavement-specification.htm

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CD-3W TABLE 4.3.1-F DISTRICT STANDARDS: GENERAL URBAN – WATER COMMUNITY DISTRICT

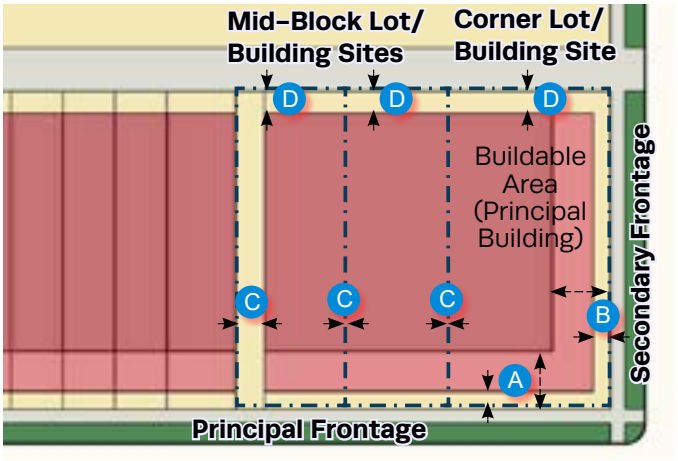


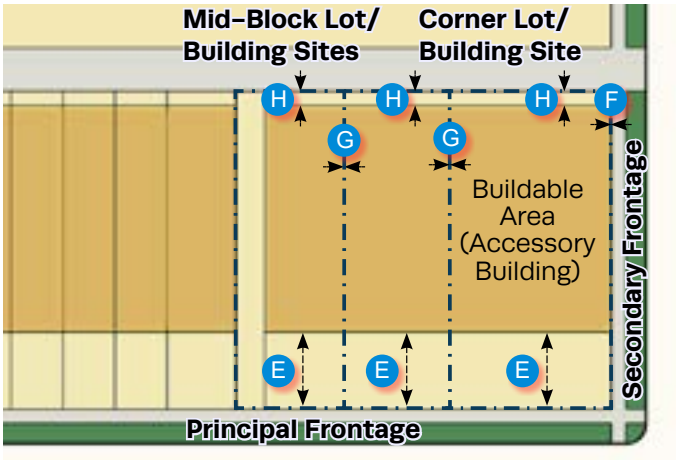
General Description

The CD-3W General Urban – Water Community District consists of a medium density area that has a mix of Building Types and primarily Residential, Lodging, Office, Commercial, and Civic Uses near the waterfront, as well as Marine Uses; there are medium, narrow or no front Setbacks and narrow-to-medium side Setbacks; it has variable private landscaping; and it has streets with curbs, Sidewalks and trees that define medium-sized blocks.

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CD-3W TABLE 4.3.1-F DISTRICT STANDARDS: GENERAL URBAN – WATER COMMUNITY DISTRICT





Lot Occupation

Lot/Building Site Width	50 ft. min.; 100 ft. max; 18 ft min for Townhouses
Frontage Buildout	60% min.
Lot/Building Site Area	NR
Impervious Surface Coverage	80% max.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley. All multi-family development proposed within the Flood Hazard Zone Overlay must satisfactorily demonstrate a route(s) for emergency access into the building(s) and safe pedestrian egress to a public street witihin the 100-year flood zone. Multi-family development with ten (10) or more units proposed within the Flood Hazard Overlay Zone must provide a written evacuation plan.
Waterfront Access	See Section 4.3.3.H.3

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W TABLE 4.3.1–F DISTRICT STANDARDS: GENERAL URBAN – WATER COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	6 ft. min., 12 ft. max. (once the minimum Frontage Buildout requirement is met, the max. front yard setback shall not apply to additional Principal Structure(s))	A	Front Setback, Principal Frontage	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	6 ft. min., 12 ft. max. (once the minimum Frontage Buildout requirement is met, the max. front yard setback shall not apply to additional Principal Structure(s))	B	Front Setback, Secondary Frontage	0 ft. min.	F
Side Setback, each side	0 ft. min.	C	Side Setback, each side	0 ft. min	G
Rear Setback	15 ft. min.	D	Rear Setback	3 ft. min.	H

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	2400 ft. max.

Private Frontage Types

Common Yard	P	Gallery	P
Porch	P	Arcade	NP
Fence	P	Commercialfront	P
Terrace/Lightwell	P	Dining Yard	P
Forecourt	P	Commercial Porch	P
Stoop	P	Boardwalk	P
Stepfront	P	Loading Dockfront	NP
Shopfront	P	*See Table 4.3.7.A (Private Frontage Types)*	

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W TABLE 4.3.1-F DISTRICT STANDARDS: GENERAL URBAN – WATER COMMUNITY DISTRICT

Civic Space Types*

**Applicable only to Development Parcels.*

Park	P	Playground	P
Green	P	Sport Field	NP
Square	P	Community Garden	P
Plaza	P	Pocket Park	P

See Table 5.2.3-A (Civic Space Types – Summary) and Table 5.2.3-B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Density

1 Dwelling Unit per 1,650 sq. ft.

Number of Buildings

Principal Building	NR
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	2.5 Stories max.
Accessory Building	Except as otherwise permitted in these Regulations, 1.5 Stories max., Building Height: 15 feet max., Total Building Height: 20 feet max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

May not exceed 13 ft. from finished floor to finished floor, except for:
1. a first floor Business/Commercial, Office, Restaurant, Retail/Personal Service, or Lodging Use which must be a minimum of 15 ft. with a maximum of 23 ft.
2. Auditoriums, Community Centers or Places of Assembly, Event Venues, Museums, Performing Arts Theaters, and Places of Worship

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W TABLE 4.3.1-F DISTRICT STANDARDS: GENERAL URBAN – WATER COMMUNITY DISTRICT

Building Standards (continued)

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

Facade

Main Entrance	Main Entrance must be in Facade of Principal Frontages. If Shopfront Frontage at corner, Main Entrance may be at Principal Frontage or at corner.
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line
Facade & Facade Element Design Proportions	Must be vertically proportioned
Blank Walls	NP at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Articulation	NA
Facade Glazing	Except for Single-Family Detached Dwellings and Two-Family Detached Dwellings/Duplexes: 10% min. of total Facade area; 20% min. of first Story Facade area for Gallery, Arcade, Commercial Front, and Commercial Porch Private Frontage Types; 70% min. of first Story Facade area for Shopfront Private Frontage Type.
Window Shape	Square or vertical in proportion, except for transoms, rounded or circular.
Window Alignment	Upper floor windows and other features must generally be aligned with those of first floor.
Window Types	Except in Shopfront or Gallery Frontage, and except for transoms and sidelights, Windows in Facade and Front & Side Yards must be single-hung, double-hung, casement or awning types. In Stories above first, Facade Glazing must be ≤ 50% of total Facade area.
Facade Glazing Material	Clear and/or stained glass R for all Elevations.
Window Trim in Front Yard	Min. 3 in. trim with sill and top plate if siding surrounding window; soldier course above lintel and rollock course below sill if brick or stone surrounds window
Porch Frontages	Min. 8 ft. clear, excluding rails, pillars, columns or other features
Shopfront Frontages	12 in.–24 in. knee wall required at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Variety	No identical Facade may exist more than once on a Block Face or within view of the same Facade

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W **TABLE 4.3.1-F DISTRICT STANDARDS:**
GENERAL URBAN – WATER COMMUNITY DISTRICT

Building Standards (continued)

Roof Type & Pitch

Flat	NP
Shed	P at rear only and if ridge is attached to an exterior Building wall; except for Porches, Stoops or Dormers which may have a shed roof anywhere on the Building
Hip	P
Gable	P
Mansard	P
Pitch	8:12 – 14:12, except for shed roofs which may be 3:12 – 14:12 and except roof pitch may match the primary roof pitch of an existing Building that is less than 8:12

Building Materials

Primary Building Material on Facades	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Aluminum siding	NP
	Cementitious siding	P	Vinyl siding	NP
	Corrugated and/or sheet metal	NP		

Changes in Building Materials	Primary materials must continue along side Elevations through Side Yard. Primary materials shall continue for entire length of all Facades facing a Frontage. Any material changes must coincide with form, structural, or massing changes and shall not occur at outside corner of such change.
Building Colors	Up to 3 colors, including the natural color of any allowed materials, but excluding trim colors
Foundation Cladding	R; brick or natural stone
Porch Pier Cladding	R; brick or natural stone, with any space under Porch concealed by painted or stained latticework between piers
Chimney Cladding	R; brick, natural stone, or material matching primary material of Facade

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W TABLE 4.3.1-F DISTRICT STANDARDS: GENERAL URBAN – WATER COMMUNITY DISTRICT

Building Types

Cottage	P	Jewel Box	P
House	P	Commercial	P
Estate House	P	Mixed Use	P
Two-Family Detached Dwelling	P	Flex	NP
Townhouse	P	Mid-Rise	NP
Small Multifamily Building	P	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	P
Live/Work	P		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Required Parking Spaces	P provided that: 1. For Single-Family Detached Dwellings, Parking Spaces must be located beyond the front yard setback, except as permitted per Section 4.3.12.B.4. 2. For all other Uses, Parking Spaces must be within and/or behind the Principal Structure; see Additional Parking Requirements and Additional Standards within the Screens, Streetscreens & Buffers section of this Table.
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W **TABLE 4.3.1-F DISTRICT STANDARDS:**
GENERAL URBAN – WATER COMMUNITY DISTRICT

Vehicular Parking Requirements (continued)

Additional Parking Requirements

Off-street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface
Garage Location	P for all Uses other than a Single-Family Detached Dwelling: permitted in Rear Yard only.
Garage Design	**Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space.** **Except for Single-Family Detached Dwellings, if attached Garage faces the street: max. Garage width 30% of total of Garage + Facade width.**
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	1. For Single-Family Detached Dwellings and Two-Family Detached Dwellings/ Duplexes: 10 ft. max. within 10 ft. of Frontage Line. 2. For all other Uses, 24. max. in Front Yard, regardless if shared or not.
Parking Structures	P, if Screened from Frontage by Liner Buildings
Parking Structure Pedestrian Exit Location	Via pedestrian access to Frontage

Bicycle Parking

See Section 4.3.13

Loading & Access

Off-street Loading and Storage	P in Rear Yard only.
Utility Box & Service Meter* Locations *(*Not including water meters)*	P in Rear Yard only.
Off-street Trash Receptacle Locations	P in Rear Yard only.
Off-street Dumpster Locations	P in Rear Yard only.
Drive-Through Locations	NP

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W TABLE 4.3.1-F DISTRICT STANDARDS: GENERAL URBAN – WATER COMMUNITY DISTRICT

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P if Screened from water
Solar Panels	NP	P	P if Screened from water
Antennas & Satellite Equipment	P	P	P if Screened from water
Swimming Pools, Hot Tubs and Spas	NP	NP	P if Screened from water
Electric Vehicle Charging Equipment	P	P	P if Screened from water

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types – Summary) and Table 7.1.2.B-2 (Sign Types – Specific Standards)

Lighting

Private Landscaping and Fencing

Landscaping

R 1 Tree per 50 ft. of frontage if Front Yard ≥ 15 ft. deep, planted in Front Yard; if Front Yard ≥ 10 ft, min of 30% of Front Yard must be landscaped in compliance with Section 4.3.16.

Walls & Fencing (not including Screens)

Height	4 ft. max. at Frontage; otherwise 6 ft. max; height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well-maintained, in upright condition and free of missing or broken parts and graffiti.

Materials

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W **TABLE 4.3.1-F DISTRICT STANDARDS:**
GENERAL URBAN – WATER COMMUNITY DISTRICT

Private Landscaping and Fencing (continued)

Natural Wood	P Only picket type allowed at Frontage; other types allowed on sides and at rear	Chain Link	P at sides and rear only
Brick, Natural Stone, or Stucco over Masonry	P	Barbed/razor/concertina wire	NP
Wrought Iron or Aluminum	P	Exposed or painted aggregate concrete	NP
Vinyl	NP	Smooth or split-faced block	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	R
Retaining Walls	5 ft. min. from Lot/Building Site Line and 4 ft. max. Height and in accordance with Section 4.3.16.M.

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3 ft. to 3.5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	3 ft. to 3.5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3 ft. to 3.5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3W TABLE 4.3.1-F DISTRICT STANDARDS: GENERAL URBAN – WATER COMMUNITY DISTRICT

Additional Standards	
Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive-Throughs, Trash Receptacles/Dumpsters, HVAC, Antennas, and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened from Frontage and Civic Space by Building or Streetscreen; or by Building, wall, hedge or fence not at Frontages or Adjacent to Civic Space.
Satellite Dish Screen	R
Self-Storage Warehouse Screening	NA (not permitted in District)
Streetscreen Location	Side Yard
Lot or Building Site Buffer	Section 4.3.11.H.

Additional Standards for Overlays and Other Districts

See following pages for additional standards for Rowayton Avenue Village District Overlay. Where these standards are in conflict with other standards within these Regulations, the standards for Village District Overlays shall control. For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies – Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD–3W **TABLE 4.3.1–F DISTRICT STANDARDS:**
GENERAL URBAN – WATER COMMUNITY DISTRICT

Additional Standards for Village District Overlays in CD–3W

GENERAL VILLAGE DISTRICT REVIEW STANDARDS

All uses and Structures located in the Village District Overlays shall be subject to design review in accordance with the following standards:

1. The Commission shall hire a Village District Consultant, who shall be an architect, landscape architect or certified planner, with pertinent experience, which may include historic preservation, to review the design of new Construction and substantial rehabilitation of all properties within the District. The report of such consultant shall be entered into the public hearing record and considered by the Commission in making its decision.

2. Criteria: New Construction and substantial rehabilitation of existing Structures, including those listed on the Norwalk Historic Resources Inventory, shall be harmoniously related to their surroundings and shall be consistent with the Connecticut Historical Commission – Secretary of the Interior's Standards for Rehabilitation, as applicable. All Applications shall demonstrate how such Development is consistent with the criteria defined in Connecticut General Statutes Section 8–2j Village Districts, including but not limited to the following criteria, subject to final review and approval by the Commission:

a. Building Design, Scale & compatibility: The color, size, Height, location, proportion of openings, roof treatments, Building materials, and any proposed Signs, Accessory Buildings and lighting shall be consistent with the local architectural motif and with the unique elements of the District, including maintenance of historic Buildings, monuments and landscape. The removal or disruption of historic or significant Structures or architectural elements shall be minimized.

b. Streetscape Standards & Landscape: All spaces, Structures and related site Improvements visible from public roadways shall be designed to be consistent with the elements of the District in and around the proposed modification. All utilities and Loading Areas shall be designed to limit their exposure to the street and to Adjacent Residential properties.

ROWAYTON AVENUE VILLAGE DISTRICT OVERLAY (O–RAVD)

1. Any redevelopment of a parcel and new construction or remodeling of the exterior of a Building shall be consistent with the standards within the Rowayton Avenue Village District Design Guidelines.

2. The Height, Bulk, location and Use of all Buildings in existence at the time of adoption of this section are hereby declared to be in conformance with the requirements of this section, provided that if such Buildings are destroyed by fire, explosion, act of God or act of public enemy to an extent exceeding fifty percent (50%) of their assessed value, they may be reconstructed only if the Height, Bulk, location and Use of the Building is exactly as it had previously existed, except as modified where necessary to conform with the Flood Hazard Zone and Coastal Area Management Overlay provisions of these Regulations. The owners of such properties shall document, by an A–2 Survey or other means, the Height, Bulk, location and Use of the Building as it had previously existed.

3. Multifamily Dwellings shall not exceed a density of one (1) unit per one thousand six hundred fifty (1,650) square feet of Lot area.

4. Historically significant Buildings constructed on or before 1900, said year to be determined by

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the records of the Office of the Tax Assessor of the City of Norwalk, are hereby declared to be in compliance with the Height and Bulk requirements of this section. Modifications and Additions to such Buildings shall conform to and be compliant with the Height and Bulk requirements of this section and the Village District Review Standards. However, the Planning and Zoning Commission may, upon written request, waive up to thirty (30%) percent of the Height and Bulk requirements for modifications and Additions to such Buildings, where it is determined that such waiver(s) would assist in the preservation and reuse of historic Structures, and compliance with the Village District Design Guidelines.

5. Waterfront Lots are subject to Section 4.3.3.H and Section 6.10.4.

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CD-3C TABLE 4.3.1-G DISTRICT STANDARDS: GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

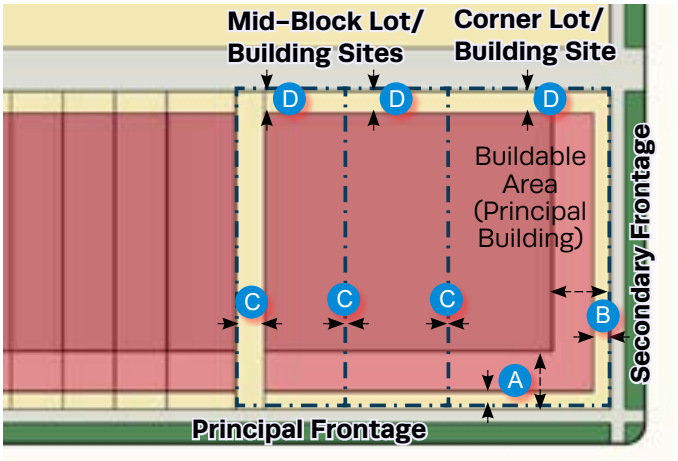


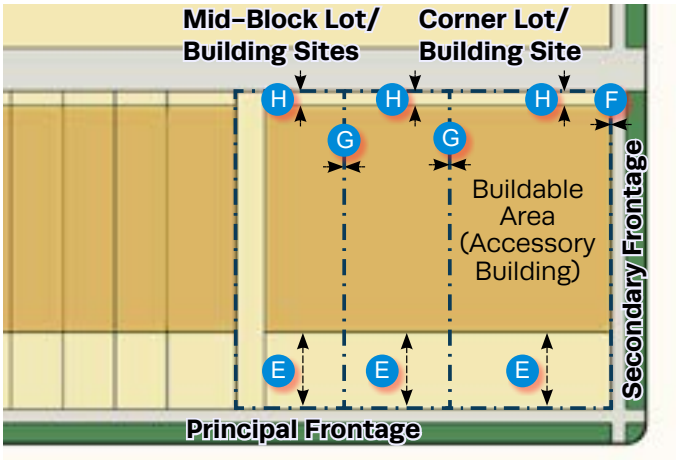
General Description

The CD-3C General Urban – Corridor Community District consists of a medium density area along a corridor. It provides for a balanced automobile- and pedestrian-oriented built environment and a mix of Building Types and primarily Residential, Lodging, Office, Commercial, Civic, and Institutional Uses; there are medium, narrow or no front Setbacks and narrow-to-medium side Setbacks; it has variable private landscaping; and it has Streets with curbs, Sidewalks and trees that define medium-sized blocks.

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CD-3C TABLE 4.3.1-G DISTRICT STANDARDS: GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT





Lot Occupation

Lot/Building Site Width	50 ft. min.; 100 ft. max.; 18 ft. min. for Townhouse; 300 ft. max. for Large Scale Commercial
Frontage Buildout	60% min.
Lot/Building Site Area	NR
Impervious Surface Coverage	80% max. except that Imperious Surface may be increased to 90% for Developments of 30 or more Dwelling Units, provided that 10% of the Lot or Building Site Area is devoted to Public Realm and 10% of the Lot or Building Site Area is Landscaping.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3C TABLE 4.3.1-G DISTRICT STANDARDS: GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	6 ft. min., 12 ft. max. (once the minimum Frontage Buildout requirement is met, the max front yard setback shall not apply to additional Principal Structure(s))	A	Front Setback, Principal Frontage	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	6 ft. min., 12 ft. max. (once the minimum Frontage Buildout requirement is met, the max front yard setback shall not apply to additional Principal Structure(s))	B	Front Setback, Secondary Frontage	0 ft. min.	F
Side Setback, each side	0 ft. min.	C	Side Setback, each side	0 ft. min	G
Rear Setback	3 ft. min; or 15 ft. min. from center line of Rear Alley	D	Rear Setback	3 ft. min. or 5 ft. min. if Garage door faces Rear Alley	H

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	2400 ft. max.

Private Frontage Types

Common Yard	P	Gallery	P
Porch	P	Arcade	P
Fence	P	Commercialfront	P
Terrace/Lightwell	P	Dining Yard	P
Forecourt	P	Commercial Porch	NP
Stoop	P	Boardwalk	NP
Stepfront	NP	Loading Dockfront	NP
Shopfront	P	*See Table 4.3.7.A (Private Frontage Types)*	

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3C TABLE 4.3.1-G DISTRICT STANDARDS: GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

Civic Space Types*

Applicable only to Development Parcels.

Park	P	Playground	P
Green	P	Sport Field	NP
Square	P	Community Garden	P
Plaza	P	Pocket Park	P

See Table 5.2.3-A (Civic Space Types – Summary) and Table 5.2.3-B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Density

1 Dwelling Unit, Extended Stay Hotel room and/or Dormitory room per 1,650 sq. ft.

Number of Buildings

Principal Building	NR
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	2 Stories min., 4 Stories max.
Accessory Building	2 Stories max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

May not exceed 13 ft. from finished floor to finished floor, except for:

1. A first floor Business/Commercial, Office, Restaurant, Retail/Personal Service, or Lodging Use which must be a minimum of 15 ft. with a maximum of 25 ft.
2. Auditoriums, Community Centers or Places of Assembly, Commercial Recreation Establishments, Event Venues, Museums, Performing Arts Theaters, and Places of Worship

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3C TABLE 4.3.1-G DISTRICT STANDARDS: GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

Building Standards (continued)

Facade	
Main Entrance	Main Entrance must be in Facade of Principal Frontages. If Shopfront Frontage at corner, Main Entrance may be at Principal Frontage or at corner.
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line
Facade & Facade Element Design Proportions	Must be vertically proportioned
Blank Walls	NP at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Articulation	R per Section 4.3.5.A.3
Facade Glazing	10% min. of total Facade area; 20% min. of first Story Facade area for Gallery, Arcade, Commercial Front, and Commerical Porch Private Frontage Types; 70% Min. of first Story Facade area for Shopfront Private Frontage Type
Window Shape	Square or vertical in proportion, except for transoms, rounded or circular.
Window Alignment	Upper floor windows and other features must generally be aligned with those of first floor.
Window Types	Except in Shopfront or Gallery Frontage, and except for transoms and sidelights, Windows in Facade and Front & Side Yards must be single-hung, double-hung, casement or awning types. In Stories above first, Facade Glazing must be ≤ 50% of total Facade area.
Facade Glazing Material	Clear and/or stained glass R for all Elevations.
Window Trim in Front Yard	Min. 3 in. trim with sill and top plate if siding surrounding window; soldier course above lintel and rollock course below sill if brick or stone surrounds window
Porch Frontages	Min. 8 ft. clear, excluding rails, pillars, columns or other features
Shopfront Frontages	12 in.-24 in. knee wall required at Frontage
Facade Variety	No identical Facade may exist more than once on a Block Face or within view of the same Facade
Roof Type & Pitch	
Flat	P
Shed	P at rear only and if ridge is attached to an exterior Building wall; except for Porches, Stoops or Dormers which may have a shed roof anywhere on the Building
Hip	P
Gable	P
Mansard	P

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3C **TABLE 4.3.1-G DISTRICT STANDARDS:**
GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

Building Standards (continued)

Pitch	8:12 – 14:12, except for shed roofs which may be 3:12 – 14:12 and except roof pitch may match the primary roof pitch of an existing Building that is less than 8:12

Building Materials

Primary Building Material on Facades	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Aluminum siding	NP
	Cementitious siding	P	Vinyl siding	NP
	Corrugated and/or sheet metal	NP		

Changes in Building Materials	Primary materials must continue along side Elevations through Side Yard. Primary materials shall continue for entire length of all Facades facing a Frontage. Any material changes must coincide with form, structural, or massing changes and shall not occur at outside corner of such change.
Building Colors	Up to 3 colors, including the natural color of any allowed materials, but excluding trim colors
Foundation Cladding	R; brick or natural stone
Porch Pier Cladding	R; brick or natural stone, with any space under Porch concealed by painted or stained latticework between piers
Chimney Cladding	R; brick, natural stone, or material matching primary material of Facade

Building Types

Cottage	P	Jewel Box	NP
House	P	Commercial	P
Estate House	NP	Mixed Use	P
Two-Family Detached Dwelling	P	Flex	P
Townhouse	P	Mid-Rise	P
Small Multifamily Building	P	Large Scale Commercial	P
Large Multifamily Building	P	Civic	P
Live/Work	P		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3C **TABLE 4.3.1-G DISTRICT STANDARDS:**
GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Required Parking Spaces	P provided that: 1. For Single-Family Detached Dwellings, Parking Spaces must be located beyond the front yard setback, except as permitted per Section 4.3.12.B.4. 2. For all other Uses, Parking Spaces must be within and/or behind the Principal Structure; see Additional Parking Requirements and Additional Standards within the Screens, Streetscreens & Buffers section of this Table.
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

Additional Parking Requirements

Off-street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface
Garage Location	P in Rear Yard only
Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space. Except for Single-Family Detached Dwellings, if Garage faces street: max. Garage width 30% of total of Garage + Facade width.
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	1. For Single-Family Detached Dwellings and Two-Family Detached Dwellings/ Duplexes: 10 ft. max within 10 ft. of Frontage Line 2. For all other Uses, 24 ft. max. in Front Yard, regardless if shared or not
Parking Structures	P, if Screened from Frontage by Liner Buildings
Parking Structure Pedestrian Exit Location	Via pedestrian access to Frontage

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3C **TABLE 4.3.1-G DISTRICT STANDARDS:**
GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

Vehicular Parking Requirements (continued)

Bicycle Parking

See Section 4.3.13

Loading & Access

Off-street Loading and Storage	P in Rear Yard only.
Utility Box & Service Meter* Locations *(*Not including water meters)*	P in Rear Yard only.
Off-street Trash Receptacle Locations	P in Rear Yard only.
Off-street Dumpster Locations	P in Rear Yard only.
Drive-Through Locations	P in Rear Yard only.

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P	P	P
Outdoor Grilling Equipment	NP	NP	P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types – Summary) and Table 7.1.2.B-2 (Sign Types – Specific Standards)

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3C **TABLE 4.3.1-G DISTRICT STANDARDS:**
GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Public Realm

Lots/Building Sites shall devote 10% of the Lot/Building Site Area to Public Realm space(s) in accordance with Section 4.3.19 (Public Realm Requirements).

Private Landscaping and Fencing

Landscaping

R continuous shrubs around foundation at Facade if Front Yard is ≥ 3 ft. deep, plus if Front Yard is ≥ 15 ft. deep, 1 tree planted in Front Yard. Landscaping must comply with Section 4.3.16.

Walls & Fencing (not including Screens)

Height	3.5–4 ft. at Frontage; otherwise 6 ft. max; Height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well-maintained, in upright condition and free of missing or broken parts and graffiti.

Materials

Natural Wood	P Only picket type allowed at Frontage; other types allowed on sides and at rear	**Chain Link**	P at sides and rear only
Brick, Natural Stone, or Stucco over Masonry	P	**Barbed/razor/concertina wire**	NP
Wrought Iron or Aluminum	P	**Exposed or painted aggregate concrete**	NP
Vinyl	NP	**Smooth or split-faced block**	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	R
Retaining Walls	5 ft. min. from Lot/Building Site Line and 4 ft. max. Height and in accordance with Section 4.3.16.M.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-3C **TABLE 4.3.1-G DISTRICT STANDARDS:**
GENERAL URBAN – CORRIDOR COMMUNITY DISTRICT

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3.5 ft. to 5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	NP	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3 ft. to 5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

Additional Standards

Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive-Throughs, Trash Receptacles/Dumpsters, HVAC, Antennas, and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened from Frontage and Civic Space by Building or Streetscreen; or by Building, wall, hedge or fence not at Frontages or Adjacent to Civic Space.
Satellite Dish Screen	R
Solar Equipment Screen	NR
Self-Storage Warehouse Screening	R
Streetscreen Location	Side Yard
Lot or Building Site Buffer	Section 4.3.11.H.

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies-Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

ARTICLE 4

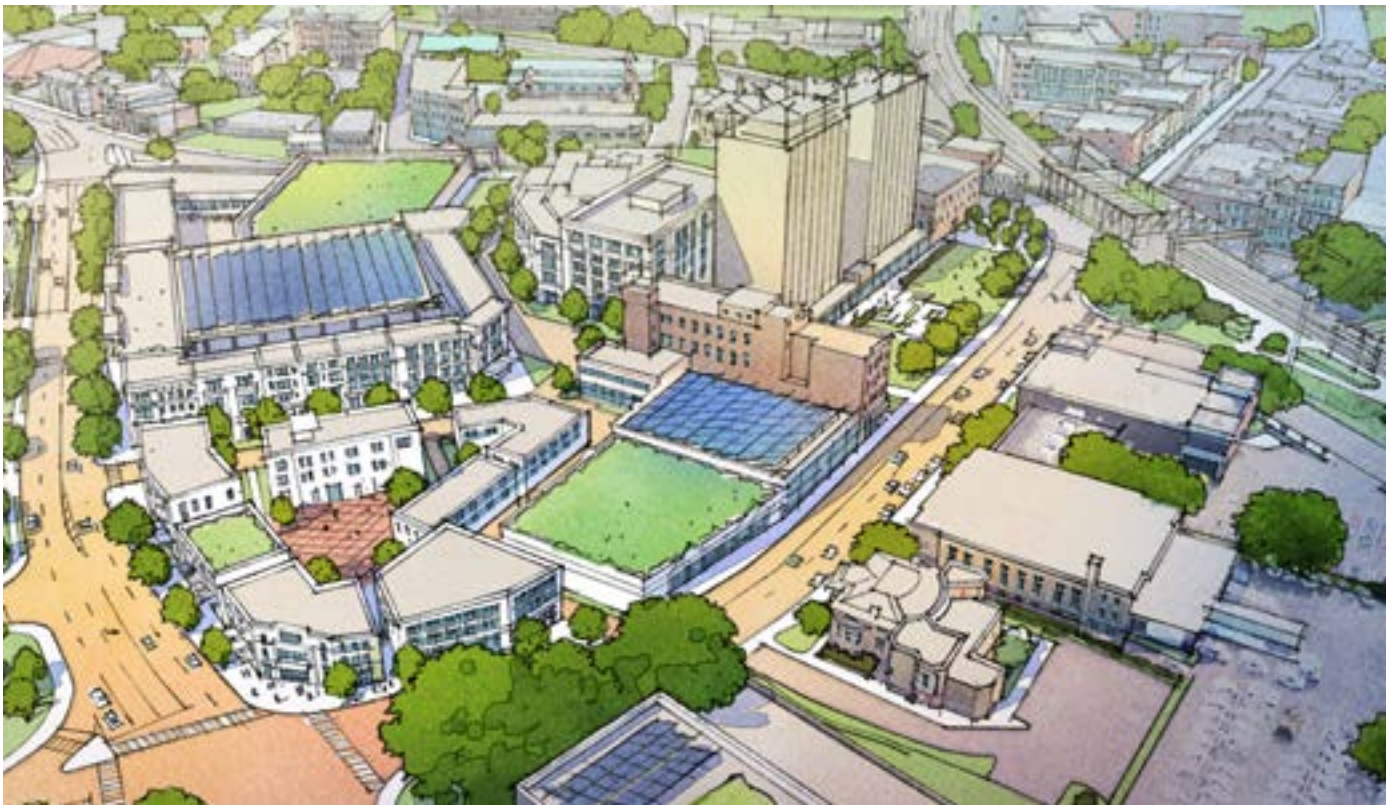
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CD-4 **TABLE 4.3.1-H DISTRICT STANDARDS:**
URBAN CENTER COMMUNITY DISTRICT

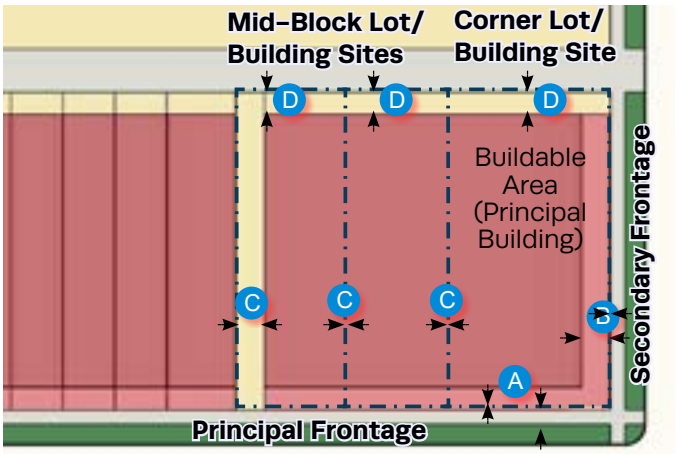


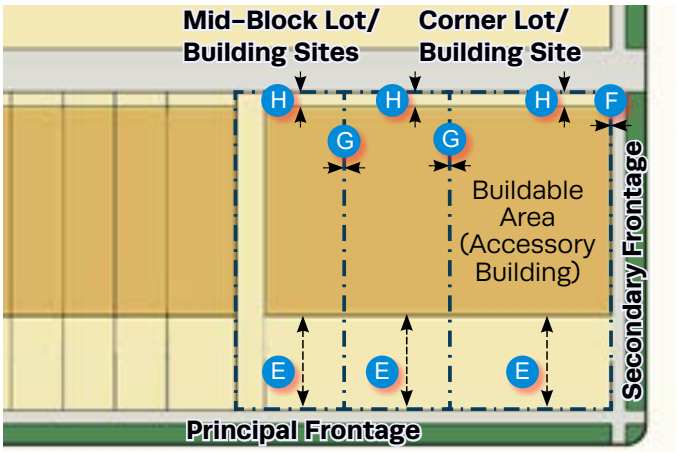
General Description

The CD-4 Urban Center Community District consists of higher density Mixed Use areas. It has a tight network of Streets with side Sidewalks, street lights and regular tree spacing, defining medium-sized blocks. Buildings are set close to the Sidewalks.

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CD-4 TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT





Lot Occupation

Lot/Building Site Width	300 ft. max.
Frontage Buildout	80% min.
Lot/Building Site Area	NR
Impervious Surface Coverage	80% MAX, except that Imperious Surface may be increased to 90% for Developments of 30 or more Dwelling Units, provided that 10% of the Lot or Building Site Area is devoted to Public Realm and 10% of the Lot or Building Site Area is Landscaping.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.
Waterfront Access	See Section 4.3.3.H.3

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4 TABLE 4.3.1–H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	0 ft. min., 12 ft. max. from the property line or from the edge of any public improvements required as a part of the Development, 50 ft. max. where the Principal Frontage is a Watercourse (once the min. Frontage Buildout requirement is met, the max. front yard setback shall not apply to additional Principal Structure(s)).	A	**Front Setback, Principal Frontage**	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	0 ft. min., 12 ft. max. from the property line or from the edge of any public improvements required as a part of the Development, 50 ft. max. where the Principal Frontage is a Watercourse (once the min. Frontage Buildout requirement is met, the max. front yard setback shall not apply to additional Principal Structure(s)).	B	**Front Setback, Secondary Frontage**	0 ft. min	F
Side Setback, each side	0 ft. min.	C	**Side Setback**	0 ft. min	G
Rear Setback	3 ft. min.	D	**Rear Setback**	3 ft. min. or 5 ft min. if Garage door faces Rear Alley	H

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	2,000 ft. max. or 3,000 ft. max. if a Parking Structure provided within Block

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4 TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT

Private Frontage Types

Common Yard	NP	Gallery	P
Porch	NP	Arcade	P
Fence	NP	Commercialfront	P
Terrace/Lightwell	P	Dining Yard	P
Forecourt	P	Commercial Porch	NP
Stoop	P	Boardwalk	NP
Stepfront	P	Loading Dockfront	NP
Shopfront	P	Pocket Park	P

See Table 4.3.7.A (Private Frontage Types)

Civic Space Types*

***Applicable only to Development Parcels.**

Park	P	Playground	P
Green	P	Sport Field	NP
Square	P	Community Garden	P
Plaza	P	Pocket Park	P

See Table 5.2.3-A (Civic Space Types – Summary) and Table 5.2.3-B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Density

1 Dwelling Unit, Extended Stay Hotel room and/or Dormitory room per 500 sq. ft.

Number of Buildings

Principal Building	NR
Accessory Buildings	NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4 TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT

Building Standards

Building Height*

Principal Building	2 Story min.; 6.5 Stories max.; except that the number of Stories shall not exceed 3.5 Stories max within fifty (50) feet of a property line that abuts the CD-2; or 4.5 Stories max within fifty (50) feet of a property line that abuts the CD-3. 4 Stories max for Washington St., Commerce St., and Maple St. 4 Stories max for Wall St., except that 5 Stories is Permitted subject to Special Permit. 12 Stories max. for the Webster Street redevelopment block. 15 Stories max. for the O-MSVD.
Accessory Building	2 Story max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

May not exceed 13 ft. from finished floor to finished floor, except for:
1. a first floor Business/Commercial, Office, Restaurant, Retail/Personal Service, or Lodging Use which must be a minimum of 15 ft. with a maximum of 23 ft.
2. Auditoriums, Community Centers or Places of Assembly, Commercial Recreation Establishments, Event Venues, Museums, Performing Arts Theaters, and Places of Worship

Building Composition

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4 TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT

Building Standards (continued)

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap Except within the O-MSVD, for buildings that exceed 4 stories, the floor of the uppermost Story must be set back a minimum of ten (10) feet from the second-floor building façade. Architectural features may project into the ten (10) foot setback for a length that does not exceed ten percent (10%) of each Facade. However, through the granting of a special permit, the Commission may eliminate the 10-foot upper story setback requirement provided they make an affirmative finding that: a. The proposal provides for excellence in design which enhances the pedestrian experience and overall streetscape; and b. Due to the location of the proposed use and the size of existing neighboring structures, no neighboring property will be adversely impacted by such Structure.
Ground Floor Elevation	36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

Facade

Main Entrance	Main Entrance must be in Facade of Principal Frontages. If Shopfront Frontage at corner, Main Entrance may be at Principal Frontage or at corner.
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line
Facade & Facade Element Design Proportions	Must be vertically proportioned
Blank Walls	NP at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Articulation	R, per Section 4.3.5.A.3
Facade Glazing	10% min. of total Facade area; 20% min. of first Story Facade area for Gallery, Arcade, Commercial Front, and Commercial Porch Private Frontage Types; 70% min. of first Story Facade area for Shopfront Private Frontage Type
Window Shape	Square or vertical in proportion, except for transoms, rounded or circular.
Window Alignment	Upper floor windows and other features must generally be aligned with those of first floor.
Window Types	Except in Shopfront or Gallery Frontage, and except for transoms and sidelights, Windows in Facade and Front & Side Yards must be single-hung, double-hung, casement or awning types. In Stories above first, Facade Glazings must be ≤ 50% of total Facade area.
Facade Glazing Material	Clear glass R for all Elevations.
Window Trim in Front Yard	Min. 3 in. trim with sill and top plate if siding surrounding window; soldier course above lintel and rollock course below sill if brick or stone surrounds window

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4 **TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT**

Building Standards (continued)

Porch Frontages	NA
Shopfront Frontages	12 in.–24 in. knee wall required at Frontage
Facade Variety	No identical Facade may exist more than once on a Block Face or within view of the same Facade

Roof Type & Pitch

Flat	P
Shed	P at rear only and if ridge is attached to an exterior Building wall; except for Porches, Stoops or Dormers which may have a shed roof anywhere on the Building
Hip	P
Gable	P
Mansard	P
Pitch	8:12 – 14:12, except for shed roofs which may be 3:12 – 14:12 and except roof pitch may match the primary roof pitch of an existing Building that is less than 8:12

Building Materials

Primary Building Material on Facades				
	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Aluminum siding	NP
	Cementitious siding	P	Vinyl siding	NP
	Corrugated and/or sheet metal	NP		

Changes in Building Materials	Primary materials must continue along side Elevations through Side Yard. Primary materials shall continue for entire length of all Facades facing a Frontage. Any material changes must coincide with form, structural, or massing changes and shall not occur at outside corner of such change.
Building Colors	Up to 3 colors, including the natural color of any allowed materials, but excluding trim colors
Foundation Cladding	R; brick or natural stone
Porch Pier Cladding	NA
Chimney Cladding	R; brick, natural stone, or material matching primary material of Facade

ARTICLE 4

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CD-4 TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT

Building Types

Cottage	NP	Jewel Box	NP
House	NP	Commercial	P
Estate House	NP	Mixed Use	P
Duplex	NP	Flex	P
Townhouse	P	Mid-Rise	P
Small Multifamily Building	P	Large Scale Commercial	NP
Large Multifamily Building	P	Civic	P
Live/Work	P		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Required Parking Spaces	P provided that Parking Spaces must be within and/or behind the Principal Structure or behind a Pocket Park as permitted in Table 4.3.7.A; see Additional Parking Requirements and Additional Standards within the Screens, Streetscreens & Buffers section of this Table.
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

Additional Parking Requirements

Off-street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4 **TABLE 4.3.1-H DISTRICT STANDARDS:**
URBAN CENTER COMMUNITY DISTRICT

Vehicular Parking Requirements (continued)

Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space. If attached Garage faces street: max. Garage width 30% of total of Garage + Facade width.
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	24 ft. max. in Front Yard, regardless if shared or not
Parking Structures	P, if Screened from Frontage by Liner Buildings
Parking Structure Pedestrian Exit Location	Via pedestrian access to Frontage

Bicycle Parking

See Section 4.3.13

Loading & Access

Off-street Loading and Storage	P in Rear Yard only.
Utility Box & Service Meter* Locations (**Not including water meters)*	P in Rear Yard only.
Off-street Trash Receptacle Locations	P in Rear Yard only.
Off-street Dumpster Locations	P in Rear Yard only.
Drive-Through Locations	NP

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P	P	P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Infrastructure	P	P	P

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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CD-4 TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types – Summary) and Table 7.1.2.B-2 (Sign Types – Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Public Realm

Lots/Building Sites shall devote 10% of the Lot/Building Site Area to Public Realm space(s) in accordance with Section 4.3.19 (Public Realm Requirements).

Private Landscaping and Fencing

Landscaping

NA if paved or ≤3 ft Front Yard; Otherwise, shrubs continuous around foundation at Facade. Landscaping must comply with Section 4.3.16.

Walls & Fencing (not including Screens)

Height	3 – 3.5 ft. at Frontage; otherwise 6 ft. max; Height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well-maintained, in upright condition and free of missing or broken parts and graffiti.

Materials

Natural Wood	P at sides and rear only	**Chain Link**	P at sides and rear only
Brick, Natural Stone, or Stucco over Masonry	P at sides and rear only	**Barbed/razor/concertina wire**	NP
Wrought Iron or Aluminum	P	**Exposed or painted aggregate concrete**	NP
Vinyl	NP	**Smooth or split-faced block**	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	R

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4 **TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT**

Private Landscaping and Fencing (continued)

Retaining Walls	5 ft. min. from Lot/Building Site Line and 4 ft. max. Height and in accordance with Section 4.3.16.M.

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3.5 ft. to 5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	NP	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3 ft. to 5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

Additional Standards

Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive-Throughs, Trash Receptacles/Dumpsters, HVAC, Antennas, and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened from Frontage and Civic Space by Building or Streetscreen; or by Building, wall, hedge or fence not at Frontages or Adjacent to Civic Space.
Satellite Dish Screen	R
Solar Equipment Screen	NR
Self-Storage Warehouse Screening	NA (not permitted in District)
Streetscreen Location	Side Yard
Lot or Building Site Buffer	Section 4.3.11.H.

Additional Standards for Overlays and Other Districts

See following pages for additional standards for the Merritt Station Village District Overlay. Where these standards are in conflict with other standards within these Regulations, the standards for Village District Overlays shall control. For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies-Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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CD-4 **TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT**

Additional Standards for Village District Overlay in CD-4

GENERAL VILLAGE DISTRICT REVIEW STANDARDS

All uses and Structures located in the Village District Overlays shall be subject to design review in accordance with the following standards:

1. The Commission shall hire a Village District Consultant, who shall be an architect, landscape architect or certified planner, with pertinent experience, which may include historic preservation, to review the design of new Construction and substantial rehabilitation of all properties within the District. The report of such consultant shall be entered into the public hearing record and considered by the Commission in making its decision.

2. Criteria: New Construction and substantial rehabilitation of existing Structures, including those listed on the Norwalk Historic Resources Inventory, shall be harmoniously related to their surroundings and shall be consistent with the Connecticut Historical Commission – Secretary of the Interior's Standards for Rehabilitation, as applicable. All Applications shall demonstrate how such development is consistent with the criteria defined in Connecticut General Statutes Section 8-2j Village Districts, including but not limited to the following criteria, subject to final review and approval by the Commission:

a. Building Design, Scale & compatibility: The color, size, Height, location, proportion of openings, roof treatments, Building materials, and any proposed Signs, Accessory Buildings and lighting shall be consistent with the local architectural motif and with the unique elements of the District, including maintenance of historic Buildings, monuments and landscape. The removal or disruption of historic or significant Structures or architectural elements shall be minimized.

b. Streetscape Standards & Landscape: All spaces, Structures and related site Improvements visible from public roadways shall be designed to be consistent with the elements of the District in and around the proposed modification. All utilities and Loading Areas shall be designed to limit their exposure to the street and to Adjacent Residential properties.

MERRITT STATION VILLAGE DISTRICT OVERLAY (O-MSVD)

Development Parks shall be permitted in accordance with the applicable Use Table, subject to the following:

1. A Development Park is only permitted within the O-MSVD.

2. Such development is in accordance with an approved Master Plan, which contain:

a. An A-2 survey of the proposed Development Park;

b. A Site development plan that shows the proposed Uses, locations of proposed Buildings, Streets, anticipated lighting, walkways, Open Space, natural features, and Signage;

c. A preliminary traffic impact analysis;

d. A preliminary drainage analysis of existing conditions and anticipated sitewide Improvements;

e. A zoning table indicated compliance with the Bulk and Height standard for each proposed Structure;

f. Architectural renderings and elevations depicting the bulk and height of the proposed structures.

g. An architectural and site Design Manual to be approved by the Commission in consultation with the Peer Review consultant.

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CD-4 TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT

3. Each phase (individual application) of the Master Plan is subject to §8.45, Site Plan Review and to the following additional Limitations:

a. Such site and building design is consistent with the Master Plan Design Manual, as verified by the Commission's peer review consultant(s).

b. The site development plans include a zoning table indicating compliance with the Master Plan, including each bulk and height standard.

c. Residential density does not exceed 1 unit per 500 square feet of the entire Development Park

d. Lot/Building Site Width, Lot/Building Site Enfrontment, Minimum building frontage buildout and Block Perimeter shall be in accordance with the approved Master Plan.

e. Maximum front setback shall not exceed 15 feet; however, buildings shall be located as close to the street as possible, except to allow for building articulation and design consideration and public improvements.

f. Retaining walls may exceed a maximum height of 4', provided they are engineered and all required permits are obtained.

g. Sustainability requirements approved as part of the Master Plan.

h. No individual Building shall exceed fifteen (15) Stories, as measured from the average grade; provided, the Commission may permit up to an additional two (2) Stories in accordance with the Development Park Design Manual.

i. A minimum of one hundred fifty (150) square feet of recreation area per Dwelling Unit be provided, which may include courtyards, indoor recreation facilities, landscaped Roofs and outdoor recreation areas.

j. A minimum of thirty percent (30%) of the total acreage of the Office Park Development Park is Open Space land either as private recreation space or publicly available Open Space, provided that a minimum of twenty percent (20%) of the overall Site is publicly available Open Space, as approved by the Commission. A public access easement shall be placed on the land, to be held by the Commission.

k. The Site is designed with the following minimum Low Impact Development (LID) or Green Development techniques:

(1) All Buildings must provide a minimum of twenty-five percent (25%) of either green roofs, blue roofs, or contain Solar Panels for that portion of such Roof not used for recreation area Improvements or utilities.

(2) All surface water shall be handled through on-Site retention. The use of rain gardens and bioswales is recommended and encouraged where feasible.

(3) All Parking Lots and Parking Structures must include electric vehicle charging stations, in an amount determined to be acceptable by the Commission.

(4) Sheltered bike Parking and storage must be provided, in an amount determined to be acceptable by the Commission.

(5) All Landscaping shall be native species, except that the perimeter Screening may contain alternate species as approved by the Commission.

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CD-4 TABLE 4.3.1-H DISTRICT STANDARDS: URBAN CENTER COMMUNITY DISTRICT

l. Individual parcels may exceed the maximum allowable Residential Density and/or Building coverage for their individual Site(s) and have less than the minimum required Public Realm, Open Space for that Site(s), provided that the Residential density and/ or Building coverage is not exceeded for the Development Park and the required Public Realm and Open Space are met within the Development Park.

m. Individual parcels may have less than the minimum required Parking for that Site(s), subject to Section 4.3.12.B.6. 8. Each Building containing Residential Dwelling Units complies with Section 6.12, Workforce Housing, if applicable.

n. All Improvements within a Development Park Master Plan made subsequent to the effective date of an Development Park Master Plan approved by Special Permit shall comply with the conditions of approval, plans, and documents filed on the Norwalk Land Records.

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CD-4W TABLE 4.3.1-I DISTRICT STANDARDS: URBAN CENTER – WATER COMMUNITY DISTRICT

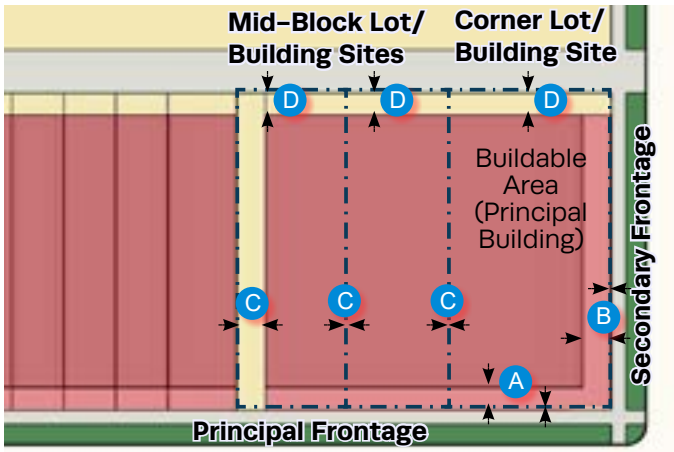


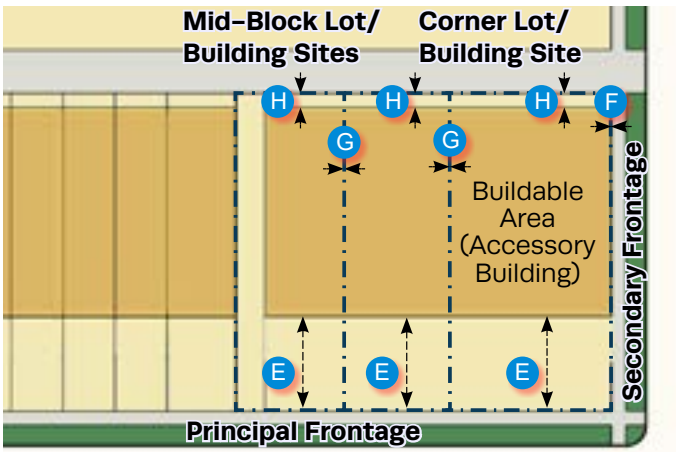
General Description

The CD-4W Urban Center – Water Community District consists of higher density Mixed Use areas along the Norwalk River waterfront, including Residential, Office, Commercial, Civic, Institutional, and Marine Uses. It has a tight network of Streets with wide Sidewalks, street lights and regular tree spacing, defining medium-sized blocks. Buildings are set close to the Sidewalks.

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CD-4W TABLE 4.3.1–I DISTRICT STANDARDS: URBAN CENTER – WATER COMMUNITY DISTRICT





Lot Occupation

Lot/Building Site Width	300 ft. max.
Frontage Buildout	80% min.
Lot/Building Site Area	NR
Impervious Surface Coverage	90% max.
Lot/Building Site Enfrontment	Must Enfront a Street, except ≤ 20% of the Lots or Building Sites within each type of Community District of a Development Parcel may Enfront a Path, Passage, or Watercourse if such Lots have legal and physical vehicular access to a Street via Driveway or Easement.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley. All multi–family development proposed within the Flood Hazard Zone Overlay must satisfactorily demonstrate a route(s) for emergency access into the building(s) and safe pedestrian egress to a public street within the 100–year flood zone. Multi–family development with ten (10) or more units proposed within the Flood Hazard Overlay Zone must provide a written evacuation plan.
Waterfront Access	See Section 4.3.3.H.3 and 4.3.3.H.4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4W TABLE 4.3.1–I DISTRICT STANDARDS: URBAN CENTER – WATER COMMUNITY DISTRICT

Setbacks

Principal Building			Accessory Building		
Front Setback, Principal Frontage	0 ft. min., 5 ft. max. (once the min. Frontage Buildout requirement is met, the max. front yard setback shall not apply to additional Principal Structure(s))	A	**Front Setback, Principal Frontage**	20 ft. min. + Principal Building Front Setback	E
Front Setback, Secondary Frontage	0 ft. min., 5 ft. max. (once the min. Frontage Buildout requirement is met, the max. front yard setback shall not apply to additional Principal Structure(s))	B	**Front Setback, Secondary Frontage**	0 ft min.	F
Side Setback, each side	0 ft. min.	C	**Side Setback**	0 ft min.	G
Rear Setback	3 ft. min.; see Section 4.3.3.H	D	**Rear Setback**	3 ft. min.	H

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4W TABLE 4.3.1–I DISTRICT STANDARDS: URBAN CENTER – WATER COMMUNITY DISTRICT

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	2,000 ft. max.

Private Frontage Types

Common Yard	NP	Gallery	P
Porch	NP	Arcade	P
Fence	NP	Commercialfront	P
Terrace/Lightwell	P	Dining Yard	P
Forecourt	P	Commercial Porch	NP
Stoop	P	Boardwalk	P
Stepfront	P	Loading Dockfront	NP
Shopfront	P		

See Table 4.3.7.A (Private Frontage Types)

Civic Space Types*

**Applicable only to Development Parcels.*

Park	NP	Playground	P
Green	P	Sport Field	NP
Square	P	Community Garden	P
Plaza	P	Pocket Park	P

See Table 5.2.3–A (Civic Space Types – Summary) and Table 5.2.3–B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Density

1 Dwelling Unit per 500 sq. ft.

Number of Buildings

Principal Building	NR
Accessory Buildings	NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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CD-4W TABLE 4.3.1–I DISTRICT STANDARDS: URBAN CENTER – WATER COMMUNITY DISTRICT

Building Standards

Building Height*

Principal Building	2 Story min.; 4.5 Stories max.
Accessory Building	2 Stories max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

May not exceed 13 ft. from finished floor to finished floor, except for:
1. a first floor Business/Commercial, Office, Restaurant, Retail/Personal Service, or Lodging Use which must be a minimum of 15 ft. with a maximum of 23 ft.
2. Auditoriums, Community Centers or Places of Assembly, Commercial Recreation Establishments, Event Venues, Museums, Performing Arts Theaters, and Places of Worship

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

Facade

Main Entrance	Main Entrance must be in Facade of Principal Frontages. If Shopfront Frontage at corner, Main Entrance may be at Principal Frontage or at corner.
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line
Facade & Facade Element Design Proportions	Must be vertically proportioned
Blank Walls	NP at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Articulation	NA
Facade Glazing	10% min. of total Facade area; 20% min. of first Story Facade area for Gallery, Arcade, Commercial Front, and Commerical Porch Private Frontage Types; 70 % min. of first Story Facade area for Shopfront Private Frontage Type
Window Shape	Square or vertical in proportion, except for transoms, rounded or circular.
Window Alignment	Upper floor windows and other features must generally be aligned with those of first floor.
Window Types	Except in Shopfront or Gallery Frontage, and except for transoms and sidelights, Windows in Facade and Front & Side Yards must be single-hung, double-hung, casement or awning types. In Stories above first, Facade Glazings must be ≤ 50% of total Facade area.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4W **TABLE 4.3.1–I DISTRICT STANDARDS:**
URBAN CENTER – WATER COMMUNITY DISTRICT

Building Standards (continued)

Facade Glazing Material	Clear and/or stained glass R for all Elevations.
Window Trim in Front Yard	Min. 3 in. trim with sill and top plate if siding surrounding window; soldier course above lintel and rollock course below sill if brick or stone surrounds window
Porch Frontages	NA
Shopfront Frontages	12 in.–24 in. knee wall required at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Variety	No identical Facade may exist more than once on a Block Face or within view of the same Facade

Roof Type & Pitch

Flat	P
Shed	P at rear only and if ridge is attached to an exterior Building Wall; except for Porches, Stoops or Dormers which may have a shed roof anywhere on the Building
Hip	P
Gable	P
Mansard	P
Pitch	8:12 – 14:12, except for shed roofs which may be 3:12 – 14:12 and except roof pitch may match the primary roof pitch of an existing Building that is less than 8:12

Building Materials

Primary Building Material on Facades	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Aluminum siding	NP
	Cementitious siding	P	Vinyl siding	NP
	Corrugated and/or sheet metal	NP		

Changes in Building Materials	Primary materials must continue along side Elevations through Side Yard. Primary materials shall continue for entire length of all Facades facing a Frontage. Any material changes must coincide with form, structural, or massing changes and shall not occur at outside corner of such change.
Building Colors	Up to 3 colors, including the natural color of any allowed materials, but excluding trim colors
Foundation Cladding	R; brick or natural stone
Porch Pier Cladding	NA

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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CD-4W TABLE 4.3.1–I DISTRICT STANDARDS: URBAN CENTER – WATER COMMUNITY DISTRICT

Building Types

Cottage	NP	Jewel Box	P
House	NP	Commercial	P
Estate House	NP	Mixed Use	P
Two–Family Detached Dwelling	NP	Flex	P
Townhouse	P	Mid–Rise	P
Small Multifamily Building	P	Large Scale Commercial	NP
Large Multifamily Building	P	Civic	P
Live/Work	P		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off–street Parking
Required Parking Spaces	P provided that Parking Spaces must be within and/or behind the Principal Structure; see Additional Parking Requirements and Additional Standards within the Screens, Streetscreens & Buffers section of this Table.
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Commercial Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

Additional Parking Requirements

Off–street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4W **TABLE 4.3.1–I DISTRICT STANDARDS:**
URBAN CENTER – WATER COMMUNITY DISTRICT

Vehicular Parking Requirements (continued)

Garage Location	P in Rear Yard only
Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space. If attached Garage faces street: max. Garage width 30% of total of Garage + Facade width.
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	24 ft max. in Front Yard, regardless if shared or not
Parking Structures	P, if Screened from Frontage by Liner Buildings
Parking Structure Pedestrian Exit Location	Via pedestrian access to Frontage

Bicycle Parking

See Section 4.3.13

Loading & Access

Off-street Loading and Storage	P in Rear Yard only.
Utility Box & Service Meter* Locations (**Not including water meters)*	P in Rear Yard only.
Off-street Trash Receptacle Locations	P in Rear Yard only.
Off-street Dumpster Locations	P in Rear Yard only.
Drive-Through Locations	NP

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4W TABLE 4.3.1–I DISTRICT STANDARDS: URBAN CENTER – WATER COMMUNITY DISTRICT

Non–Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P in Front or Side Yard if such Yard is only location possible for satisfactory reception, as set forth by the FCC.		P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

Signs

Lighting

Private Landscaping and Fencing

Landscaping

NA if paved or ≤3 ft Front Yard; Otherwise, shrubs continuous around foundation at Facade. Landscaping must comply with Section 4.3.16.

Walls & Fencing (not including Screens)

Height	3 – 3.5 ft. at Frontage; otherwise 6 ft. max; height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well–maintained, in upright condition and free of missing or broken parts and graffiti.

Materials

Natural Wood	P at sides and rear only	Chain Link	P at sides and rear only
Brick, Natural Stone, or Stucco over Masonry	P at sides and rear only	Barbed/razor/concertina wire	NP

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4W **TABLE 4.3.1–I DISTRICT STANDARDS:**
URBAN CENTER – WATER COMMUNITY DISTRICT

Private Landscaping and Fencing (continued)

Wrought Iron or Aluminum	P	Exposed or painted aggregate concrete	NP
Vinyl	NP	Smooth or split-faced block	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	R
Retaining Walls	5 ft. min. from Lot/Building Site Line and 4 ft. max. Height and in accordance with Section 4.3.16.M.

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3.5 ft. to 5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	NP	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3 ft. to 5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

Additional Standards

Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive-Throughs, Trash Receptacles/Dumpsters, HVAC, Antennas, and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened from Frontage and Civic Space by Building or Streetscreen; or by Building, wall, hedge or fence not at Frontages or Adjacent to Civic Space.
Satellite Dish Screen	R

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CD-4W TABLE 4.3.1–I DISTRICT STANDARDS: URBAN CENTER – WATER COMMUNITY DISTRICT

Solar Equipment Screen	NR
Self-Storage Warehouse Screening	NA (not permitted in District)
Streetscreen Location	Side Yard
Lot or Building Site Buffer	Section 4.3.11.H.

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies–Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

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SD-H **TABLE 4.3.1–J DISTRICT STANDARDS:**
HOSPITAL SPECIAL DISTRICT

General Description

This District is designed to provide for the Norwalk Hospital Association property in a manner compatible with the surrounding Residential neighborhood. Hospital facilities shall be designed within the capacity of the infrastructure necessary to support such operations. The provisions of this District permit Hospital facilities and specified Accessory Uses, which are supportive of, but clearly subordinate to, the primary Hospital facility.

Lot Occupation

Lot/Building Site Width	300 ft. min.
Frontage Buildout	NR
Lot/Building Site Area	15 acres min.
Impervious Surface Coverage	75% max.
Building Site Enfrontment	NR

Setbacks

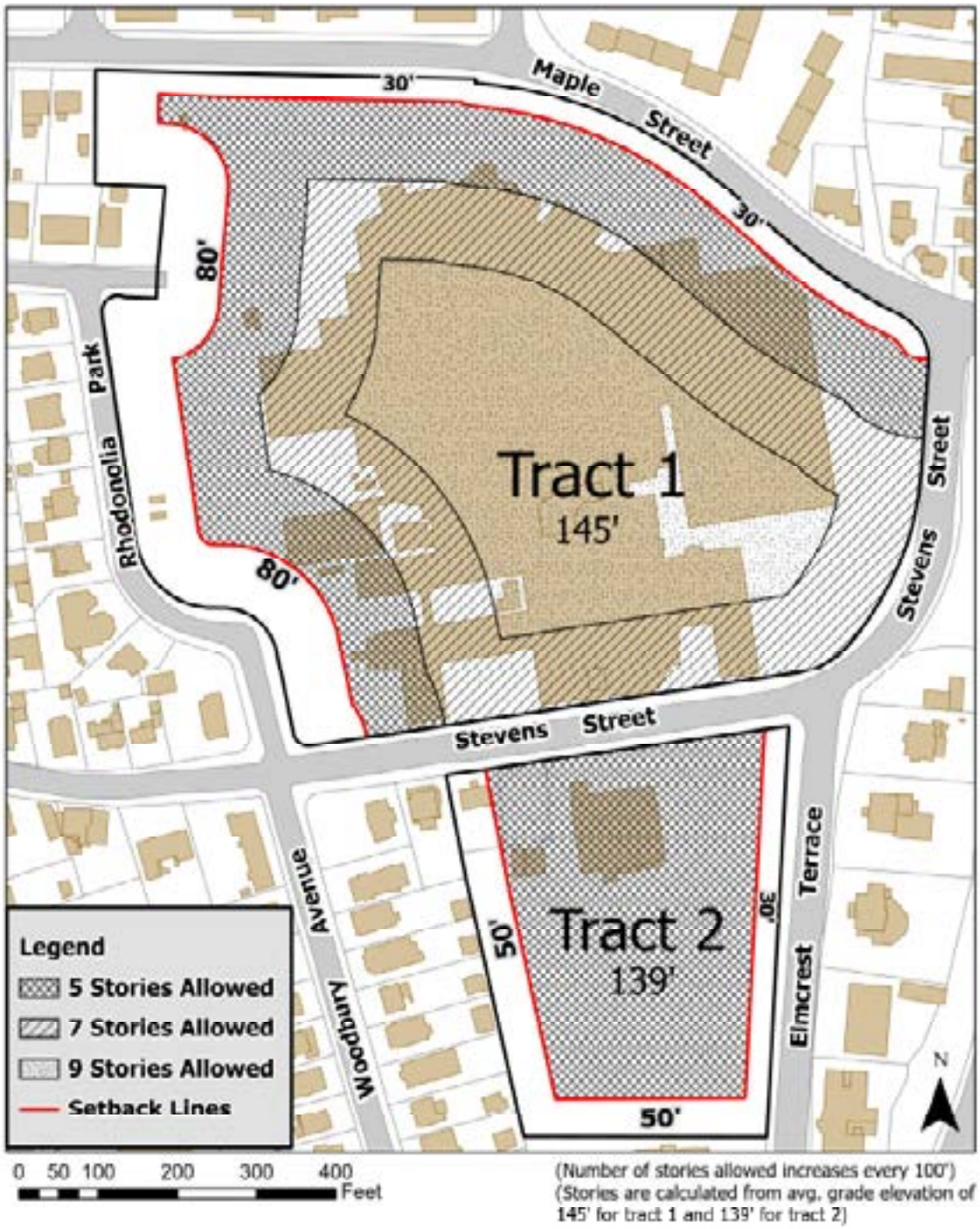
In accordance with Norwalk Hospital Zone Map.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-H **TABLE 4.3.1–J DISTRICT STANDARDS:**
HOSPITAL SPECIAL DISTRICT

Norwalk Hospital Zone Map - Setbacks and Stories Allowed



(Number of stories allowed increases every 100')
(Stories are calculated from avg. grade elevation of 145' for tract 1 and 139' for tract 2)

ARTICLE 4

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SD-H **TABLE 4.3.1–J DISTRICT STANDARDS: HOSPITAL SPECIAL DISTRICT**

Block Size*

**Applicable only to Development Parcels.*

NR Except as otherwise, approved by PZC

Private Frontage Types

NR

Civic Space Types*

**Applicable only to Development Parcels.*

NR

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Number of Buildings

Principal Building	NR
Accessory Buildings	NR

Building Standards

Building Height

In accordance with Norwalk Hospital Zone Map. The number of Stories is determined based on a Calculated Average Grade from mean sea level of 145 ft. for Tract 1 and 139 ft. for Tract 2. For the purposes of this section all Building portions below the Calculated Average Grade, do not count as Stories. However, where the ceiling, or in its absence, the floor above, is 3' or more above the Calculated Average Grade, the level shall constitute a full Story.

Ceiling Height

15 ft. max.

Building Composition

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-H TABLE 4.3.1–J DISTRICT STANDARDS:
HOSPITAL SPECIAL DISTRICT

Building Standards (continued)

Facade

NR

Roof Type & Pitch

NR

Building Materials

NR

Building Types

Cottage	NP	Jewel Box	NP
House	NP	Commercial	NP
Estate House	NP	Mixed Use	NP
Duplex	NP	Flex	P
Townhouse	NP	Mid–Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	NP
Live/Work	NP		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-H **TABLE 4.3.1–J DISTRICT STANDARDS:**
HOSPITAL SPECIAL DISTRICT

Vehicular Parking Requirements

Parking Location

15 ft. min. from Lot/Building Site Line that Abuts a Residential Use.

Additional Parking Requirements

Driveway/Vehicular Entrance Location	Located to direct traffic away from local Residential streets.

Bicycle Parking

See Section 4.3.13

Loading & Access

NR

Non–Building Components

NR

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B–1 (Sign Types – Summary) and Table 7.1.2.B–2 (Sign Types – Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-H **TABLE 4.3.1–J DISTRICT STANDARDS:**
HOSPITAL SPECIAL DISTRICT

Private Landscaping and Fencing

	Front Yard ≥ 15 ft.	Front Yard ≥ 10 ft.
1 Tree per 50 ft. of frontage	R	NA
Min. 30% of Front Yard must be Landscaped in compliance with Section 4.3.16	NA	R

Screens & Buffers

NR

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies–Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-IC TABLE 4.3.1-K DISTRICT STANDARDS: ISLAND CONSERVATION SPECIAL DISTRICT

General Description

The SD-IC Island Conservation Special District is designed to provide for protection of the fragile environment of the Norwalk Islands while permitting their development for limited Residential Uses.

Lot Occupation

Lot/Building Site Width	NR
Frontage Buildout	NR
Lot/Building Site Area	2 acre min.
Impervious Surface Coverage	25% max.
Lot/Building Site Enfrontment	NA
Lot/Building Site Access	NA

Setbacks

Principal Building	
Front Setback, Principal Frontage	25 ft min subject to Flood Zone Regulations (See Section 6.13)
Front Setback, Secondary Frontage	NA
Side Setback, each side	25 ft min subject to Flood Zone Regulations (See Section 6.13)
Rear Setback	25 ft min subject to Flood Zone Regulations (See Section 6.13)

Accessory Building	
Front Setback, Principal Frontage	25 ft min subject to Flood Zone Regulations (See Section 6.13)
Front Setback, Secondary Frontage	NA
Side Setback, each side	25 ft min subject to Flood Zone Regulations (See Section 6.13)
Rear Setback	25 ft min subject to Flood Zone Regulations (See Section 6.13)

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	NA

Private Frontage Types

NR

Civic Space Types*

**Applicable only to Development Parcels.*

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-IC TABLE 4.3.1-K DISTRICT STANDARDS: ISLAND CONSERVATION SPECIAL DISTRICT

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Density

1 Dwelling Unit per 1,650 sq. ft.

Number of Buildings

Principal Building	1 max
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	2.5 Stories max
Accessory Building	1.5 Story max

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

First story may not exceed 12 ft. from finished floor to finished ceiling. Second Story may not exceed 9 ft. from finished floor to finished ceiling.

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	18 in. min. 36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

Facade

NR

Roof Type & Pitch

NR

Building Materials

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-IC TABLE 4.3.1-K DISTRICT STANDARDS: ISLAND CONSERVATION SPECIAL DISTRICT

Building Types

Cottage	P	Jewel Box	NP
House	P	Commercial	NP
Estate House	P	Mixed Use	NP
Duplex	NP	Flex	NP
Townhouse	NP	Mid-Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	NP
Live/Work	NP		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off-street Parking
Domestic Vehicles	NA
Recreational Vehicles	NA
Heavy Equipment	NA
Tractor trailers (including trailers for storage)	NA
All Other Vehicles	NA

Additional Parking Requirements

Off-street Parking Surface	NA
Garage Location	NA
Garage Design	NA
Driveway/Vehicular Entrance Location	NA

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-IC **TABLE 4.3.1-K DISTRICT STANDARDS:**
ISLAND CONSERVATION SPECIAL DISTRICT

Vehicular Parking Requirements (continued)

New Driveway/Vehicular Entrance Maximum Width	NA
Parking Structures	NP
Parking Structure Pedestrian Exit Location	NA

Bicycle Parking

NA

Loading & Access

Off-street Loading and Storage	NA
Utility Box & Service Meter* Locations *(*Not including water meters)*	P in Rear Yard only.
Off-street Trash Receptacle Locations	NA
Off-street Dumpster Locations	NA
Drive-Through Locations	NA

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	NP	P if screened from water
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P in Front or Rear Yard, if such Yard is only location possible for satisfactory reception, as set forth by the FCC.		P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-IC **TABLE 4.3.1-K DISTRICT STANDARDS:**
ISLAND CONSERVATION SPECIAL DISTRICT

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types - Summary) and Table 7.1.2.B-2 (Sign Types - Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1. (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Private Landscaping and Fencing

NR

Screens & Buffers

NR

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies-Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

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SD-LI

TABLE 4.3.1–L DISTRICT STANDARDS: LIGHT INDUSTRIAL SPECIAL DISTRICT



General Description

The SD–LI Light Industrial Special District is intended for light Industrial and Light Manufacturing Uses, as well as Research and Development, limited Warehousing, and other Industrial Services. The majority of operations must be carried on within completely enclosed Buildings, thus providing a standard of Development that removes most adverse characteristics that affect neighboring properties. This District may be used as a buffer between other Districts and other industrial activities that have more objectionable impacts. Residential, Lodging, Office, Commercial, Retail, Civic, and Institutional Uses, as well as community facilities, utilities, and additional Uses that provide needed complementary services or are necessary for the general community welfare are also permitted with limitations.

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SD-LI

TABLE 4.3.1–L DISTRICT STANDARDS: LIGHT INDUSTRIAL SPECIAL DISTRICT

Lot Occupation

Lot/Building Site Width	50 ft. min
Frontage Buildout	NR
Lot/Building Site Area	5,000 sq. ft. min.
Impervious Surface Coverage	50% max. for Buildings; 90% max. for Buildings and Parking
Lot/Building Site Enfrontment	Must Enfront a Street
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.

Setbacks

Principal Building		**Accessory Building**	
Front Setback, Principal Frontage	10 ft. min.	**Front Setback, Principal Frontage**	30 ft. min.
Front Setback, Secondary Frontage	10 ft. min.	**Front Setback, Secondary Frontage**	30 ft. min.
Side Setback, each side	None, except 10 ft. min. if Abutting Residential Zone	**Side Setback**	None, except 10 ft. min. if Abutting Residential Zone
Rear Setback	None, except 10 ft. min. if Abutting Residential Zone	**Rear Setback**	None, except 10 ft. min. if Abutting Residential Zone

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	NR

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-LI TABLE 4.3.1–L DISTRICT STANDARDS: LIGHT INDUSTRIAL SPECIAL DISTRICT

Private Frontage Types

Common Yard	NP	Gallery	P
Porch	NP	Arcade	P
Fence	NP	Commercialfront	P
Terrace/Lightwell	NP	Dining Yard	NP
Forecourt	NP	Commercial Porch	NP
Stoop	NP	Boardwalk	NP
Stepfront	P	Loading Dockfront	P
Shopfront	P		

See Table 4.3.7.A (Private Frontage Types)

Civic Space Types*

**Applicable only to Development Parcels.*

Park	NP	Playground	P
Green	P	Sport Field	NP
Square	P	Community Garden	P
Plaza	P	Pocket Park	P

See Table 5.2.3–A (Civic Space Types – Summary) and Table 5.2.3–B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Density

1 Dwelling Unit per 1,650 sq. ft.

Number of Buildings

Principal Building	1 max
Accessory Buildings	NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-LI **TABLE 4.3.1–L DISTRICT STANDARDS:**
LIGHT INDUSTRIAL SPECIAL DISTRICT

Building Standards

Building Height*

Principal Building	4 Stories; when abutting Residential, each Story beginning with the third Floor must be set back at least 10 ft. from the Story below
Accessory Building	15 ft. max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

Principal Building	1. Shall not exceed 15 ft. from finished floor to finished floor, except that the first floor must be a minimum of 20 ft., not to exceed 30 ft. 2. When Abutting a residential Zoning District, each Story beginning with the third floor shall be setback at least ten (10) feet from the Story below. 3. A Special Permit shall be required for Structure(s) with a Total Height exceeding 65 ft.
Accessory Building	15 ft max.

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	18 in. min. 36 in. max., subject to compliance with Flood Hazard Zone Regulations (Section 6.9)

Facade

Main Entrance	Main Entrance must be in Facade of Principal Frontages, unless approved by the Planning and Zoning Commission to be located elsewhere due to Site constraints
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line
Facade & Facade Element Design Proportions	NR
Blank Walls	NP at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Articulation	NR
Facade Glazing	NR
Window Shape	NR
Window Alignment	NR
Window Types	NR
Facade Glazing Material	Clear glass R for windows at Frontage

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-LI **TABLE 4.3.1–L DISTRICT STANDARDS: LIGHT INDUSTRIAL SPECIAL DISTRICT**

Building Standards (continued)

Window Trim in Front Yard	NR
Facade Window Sill Height	NR
Porch Frontages	NA
Shopfront Frontages	12 in.–24 in. knee wall required at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Variety	NR

Roof Type & Pitch

NR

Building Materials

Primary Building Material on Facades	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Aluminum siding	NP
	Cementitious siding	P	Vinyl siding	NP
	Corrugated and/or sheet metal	NP		

Changes in Building Materials	NR
Building Colors	NR
Foundation Cladding	NR
Porch Pier Cladding	NA
Chimney Cladding	NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-LI **TABLE 4.3.1–L DISTRICT STANDARDS: LIGHT INDUSTRIAL SPECIAL DISTRICT**

Building Types

Cottage	NP	Jewel Box	P
House	NP	Commercial	NP
Estate House	NP	Mixed Use	P
Duplex	NP	Flex	P
Townhouse	NP	Mid–Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	P
Live/Work	P		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off–street Parking
Required Parking Spaces	P provided that Parking Spaces must be within and/or behind the Principal Structure; see Additional Parking Requirements and Additional Standards within the Screens, Streetscreens and Buffers section of this Table.
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations
All Other Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

Additional Parking Requirements

Off–street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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SD-LI **TABLE 4.3.1–L DISTRICT STANDARDS: LIGHT INDUSTRIAL SPECIAL DISTRICT**

Vehicular Parking Requirements (continued)

Garage Design	Min. interior dimensions 8.5 ft. x 19 ft. per vehicle Parking space. If attached Garage faces the street: max. Garage width 30% of total of Garage + Facade width
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	24 ft. max. in Front Yard if non–Residential, regardless if shared or not
Parking Structures	P, if Screened from Frontage by Liner Buildings
Parking Structure Pedestrian Exit Location	Via pedestrian access to Frontage

Bicycle Parking

See Section 4.3.13

Loading & Access

Off–street Loading and Storage	P only in any Required Side Yard or Rear Yard, unless specifically prohibited
Utility Box & Service Meter* Locations (**Not including water meters)*	P only in any Required Side Yard or Rear Yard, unless specifically prohibited
Off–street Trash Receptacle Locations	P in Rear Yard only.
Off–street Dumpster Locations	P in Rear Yard only, must be Screened from Frontage and fully enclosed on 3 sides and enclosed on the 4th side with self–closing gate.
Drive–Through Locations	P in Rear Yard only.

Non–Building Components

	Front Yard	Side Yard	Rear Yard
Electric Vehicle Charging Infrastructure, Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P in Front or Side Yard if such Yard is only location possible for satisfactory reception, as set forth by the FCC.		P
Swimming Pools, Hot Tubs and Spas	NP	NP	P
Electric Vehicle Charging Equipment	P	P	P

LEGEND The following notations are utilized in this table.

P	Permitted	NP	Not Permitted	NA	Not Applicable	R	Required	NR	Not Regulated

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SD-LI **TABLE 4.3.1–L DISTRICT STANDARDS: LIGHT INDUSTRIAL SPECIAL DISTRICT**

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B–1 (Sign Types – Summary) and Table 7.1.2.B–2 (Sign Types – Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Private Landscaping and Fencing

Landscaping

R continuous shrubs around foundation at Facade if Front Yard is ≥ 3 ft. deep, plus if Front Yard is ≥ 15 ft. deep, 1 tree per 50 ft. of Frontage width, planted in Front Yard. Landscaping must comply with Section 4.3.16.

Walls & Fencing (not including Screens)

Height	3–3.5 ft. at Frontage; otherwise 6 ft. max; height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well-maintained, in upright condition and free of missing or broken parts and graffiti.

Materials

Natural Wood	P Only picket type allowed at Frontage; other types allowed on sides and at rear	**Chain Link**	P at sides and rear only
Brick, Natural Stone, or Stucco over Masonry	P	**Barbed/razor/concertina wire**	NP
Wrought Iron or Aluminum	P	**Exposed or painted aggregate concrete**	NP
Vinyl	NP	**Smooth or split-faced block**	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	R
Retaining Walls	5 ft. min. from Lot/Building Site Line and 5 ft. max. Height in Front or Side Yards, 10 ft. max. height in Rear Yard, provided that such wall is retaining the grade from the abutting property, and in accordance with Section 4.3.16.M.

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-LI TABLE 4.3.1–L DISTRICT STANDARDS: LIGHT INDUSTRIAL SPECIAL DISTRICT

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3.5 ft. to 5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	NP	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3 ft. to 5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

Additional Standards

Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive–Throughs, Trash Receptacles/Dumpsters, HVAC, Antennas, and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened from Frontage and Civic Space by Building or Streetscreen; or by Building, wall, hedge or Fence not at Frontages or Adjacent to Civic Space.
Satellite Dish Screen	R
Solar Equipment Screen	R
Self–Storage Warehouse Screening	R; except at Driveways: Screening must be by Building, wall, hedge or fence at Frontage or Building, Wall, hedge or fence not at Frontages or Adjacent to Civic Space.
Streetscreen Location	Side Yard
Lot or Building Site Buffer	Section 4.3.11.H.

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies–Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-HI

TABLE 4.3.1-M DISTRICT STANDARDS: HEAVY INDUSTRIAL SPECIAL DISTRICT

General Description

The Heavy Industrial Special District is intended to provide suitable areas for intense Industrial operations. It is specifically intended that all newly created SD-HI Districts be so located and buffered as to prevent possible negative impact upon Adjacent land and Uses.

Lot Occupation

Lot/Building Site Width	50 ft. min
Frontage Buildout	NR
Lot/Building Site Area	5,000 sq. ft. min.
Impervious Surface Coverage	50% max. for Buildings; 90% max. for Buildings and Parking
Lot/Building Site Enfrontment	NR
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.

Setbacks

Principal Building		Accessory Building	
Front Setback, Principal Frontage	10 ft. min.	**Front Setback, Principal Frontage**	30 ft. min.
Front Setback, Secondary Frontage	10 ft. min.	**Front Setback, Secondary Frontage**	30 ft. min.
Side Setback, each side	None, except 10 ft. min. if Abutting Residential Zone	**Side Setback**	None, except 10 ft. min. if Abutting Residential Zone
Rear Setback	None, except 10 ft. min. if Abutting Residential Zone	**Rear Setback**	None, except 10 ft. min. if Abutting Residential Zone

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	NR

Private Frontage Types

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-HI **TABLE 4.3.1–M DISTRICT STANDARDS: HEAVY INDUSTRIAL SPECIAL DISTRICT**

Civic Space Types*

**Applicable only to Development Parcels.*

NR

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Number of Buildings

Principal Building	1 max

Building Standards

Building Height*

Principal Building	4 Stories; when abutting a residential zone, each Story beginning with the third Floor must be set back at least q0 ft. from the Story below.
Accessory Building	2 Stories max

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

Principal Building	1. Shall not exceed 15 ft. from finished floor to finished floor, except that the first floor must be a minimum of 20 ft., not to exceed 30 ft. 2. When Abutting a residential Zoning District, each Story beginning with the third floor shall be setback at least ten (10) feet from the Story below. 3. A Special Permit shall be required for Structure(s) with a Total Height exceeding 65 ft.
Accessory Building	15 ft. max.

Building Composition

Vertical Composition	NR

Facade

Main Entrance	Main Entrance must be in Facade of Principal Frontages, unless approved by the Planning and Zoning Commission to be located elsewhere due to Site constraints
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-HI **TABLE 4.3.1–M DISTRICT STANDARDS: HEAVY INDUSTRIAL SPECIAL DISTRICT**

Building Standards (continued)

Facade & Facade Element Design Proportions	NR
Blank Walls	NP at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C
Facade Articulation	NR
Facade Glazing	NR
Window Shape	NR
Window Alignment	NR
Window Types	NR
Facade Glazing Material	Clear glass R for windows at Frontage
Window Trim in Front Yard	NR
Facade Window Sill Height	NR
Porch Frontages	NR
Shopfront Frontages	NR
Facade Variety	NR

Roof Type & Pitch

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-HI

TABLE 4.3.1–M DISTRICT STANDARDS: HEAVY INDUSTRIAL SPECIAL DISTRICT

Building Types

Cottage	NP	Jewel Box	NP
House	NP	Commercial	NP
Estate House	NP	Mixed Use	NP
Duplex	NP	Flex	P
Townhouse	NP	Mid–Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	NP
Live/Work	NP		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off–street Parking
All Vehicles	P

Additional Parking Requirements

Off–street Parking Surface	NR
Garage Location	NR
Garage Design	NR
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	NR
Parking Structures	P, if Screened from Frontage by Liner Buildings
Parking Structure Pedestrian Exit Location	Via pedestrian access to Frontage

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-HI TABLE 4.3.1–M DISTRICT STANDARDS:
HEAVY INDUSTRIAL SPECIAL DISTRICT

Parking & Circulation (continued)

Bicycle Parking

See Section 4.3.13

Loading & Access

Off-street Loading and Storage	P only in any Required Side Yard or Rear Yard, unless specifically prohibited
Utility Box & Service Meter* Locations *(*Not including water meters)*	P only in any Required Side Yard or Rear Yard, unless specifically prohibited
Off-street Trash Receptacle Locations	P in Rear Yard only.
Off-street Dumpster Locations	P in Rear Yard only, must be Screened from Frontage and fully enclosed on 3 sides and enclosed on the 4th side with self-closing gate.
Drive-Through Locations	NA

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P in Front or Side Yard if such Yard is only location possible for satisfactory reception, as set forth by the FCC.		P
Swimming Pools, Hot Tubs and Spas	NA	NA	NA
Electric Vehicle Charging Equipment	P	P	P

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types – Summary) and Table 7.1.2.B-2 (Sign Types – Specific Standards)

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-HI **TABLE 4.3.1-M DISTRICT STANDARDS: HEAVY INDUSTRIAL SPECIAL DISTRICT**

Private Landscaping and Fencing

Landscaping

R if Front Yard ≥ 10 ft, minimum of 30% of Front Yard must be landscaped in compliance with Section 4.3.16, with continuous shrubs around foundation at Facade if Front Yard is ≥ 3 ft. deep, plus if Front Yard is ≥ 15 ft. deep, 1 tree per 50 ft. of Frontage width, planted in Front Yard. Landscaping must comply with Section 4.3.16.

Walls & Fencing (not including Screens)

Height	3.5–4 ft. at Frontage; otherwise 6 ft. max; height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well-maintained, in upright condition and free of missing or broken parts and graffiti.

Materials

Natural Wood	P Only picket type allowed at Frontage; other types allowed on sides and at rear	**Chain Link**	P at sides and rear only
Brick, Natural Stone, or Stucco over Masonry	P at sides and rear only	**Barbed/razor/concertina wire**	NP
Wrought Iron or Aluminum	P	**Exposed or painted aggregate concrete**	NP
Vinyl	NP	**Smooth or split-faced block**	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	NR
Retaining Walls	5 ft. min. from Lot/Building Site Line and 5 ft. max. Height in Front or Side Yards, 10 ft. max. height in Rear Yard, provided that such wall is retaining the grade from the Abutting property, and in accordance with Section 4.3.16.M.

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-HI TABLE 4.3.1–M DISTRICT STANDARDS: HEAVY INDUSTRIAL SPECIAL DISTRICT

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3.5 ft. to 5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	NP	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3 ft. to 5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

Additional Standards

Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive-Throughs, Trash Receptacles/Dumpsters, HVAC, Antennas, and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened from Frontage and Civic Space by Building or Streetscreen; or by Building, or Streetscreen not at Frontages or Adjacent to Civic Space.
Satellite Dish Screen	R
Solar Equipment Screen	R
Self-Storage Warehouse Screening	R; except at Driveways: Screening must be by Building, wall, hedge or fence at Frontage or Building, Wall, hedge or fence not at Frontages or Adjacent to Civic Space.
Streetscreen Location	Side Yard
Lot or Building Site Buffer	Section 4.3.11.H.

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies–Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-MC **TABLE 4.3.1-N DISTRICT STANDARDS:**
MARINE COMMERCIAL SPECIAL DISTRICT

General Description

This District is designed to protect Norwalk's highest concentration of marine industries by preserving and enhancing existing Water-dependent Uses and encouraging Development which is compatible with the area's role as an active commercial harbor. The retention of existing Boatyards, Marinas and Recreational and Commercial Fishing enterprises is essential to ensure that these navigational channels are maintained and to preserve Norwalk's role as a seaport community and a regional port facility. The proximity of active navigational channels providing access to Long Island Sound render the property within this District suitable for all types of Water-dependent Uses. Marine Mixed-Use is allowed to incentivize the kind of investment stakeholders and community members would like to see in this area to advance public benefit priorities if it meets certain requirements.

Lot Occupation

Lot/Building Site Width	100 ft. min.
Frontage Buildout	NR
Lot/Building Site Area	NR
Impervious Surface Coverage	80% max, 90% max if use LID practices and provide a vegetative buffer against the water, required access to the water shall not be included in calculations
Lot/Building Site Enfrontment	NR
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a Street via Driveway, Easement, or Alley. All multi-family development proposed within the Flood Hazard Zone Overlay must satisfactorily demonstrate a route(s) for emergency access into the building(s) and safe pedestrian egress to a public street within the 100-year flood zone. Multi-family development with ten (10) or more units proposed within the Flood Hazard Overlay Zone must provide a written evacuation plan.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-MC **TABLE 4.3.1–N DISTRICT STANDARDS: MARINE COMMERCIAL SPECIAL DISTRICT**

Setbacks

Principal Building		Accessory Building	
Front Setback, Principal Frontage	5 ft. min.	Front Setback, Principal Frontage	25 ft. min.
Front Setback, Secondary Frontage	5 ft. min.	Front Setback, Secondary Frontage	25 ft. min.
Side Setback, each side	5 ft. min.	Side Setback	5 ft. min.
Rear Setback	25 ft. from the coastal jurisdiction line in which the area must be dedicated for public Use and water quality Improvements; except that the Rear Setback may be reduced by the Planning & Zoning Commission where the proposed Use preserves and enhances water-dependent uses or where the reuse of existing Building and Structures is considered to be consistent with the purposes of the District.	Rear Setback	25 ft. from the coastal jurisdiction line, in which the area must be dedicated for public Use and water quality Improvements; except that the Rear Setback may be reduced by the Planning & Zoning Commission where the proposed Use preserves and enhances water-dependent uses or where the reuse of existing Building and Structures is considered to be consistent with the purposes of the District.

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	NR

Private Frontage Types

NR

Civic Space Types*

**Applicable only to Development Parcels.*

NR

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-MC TABLE 4.3.1–N DISTRICT STANDARDS: MARINE COMMERCIAL SPECIAL DISTRICT

Density

1 Dwelling Unit per 2,000 sq. ft.

Number of Buildings

Principal Building	NR
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	4.5 Stories max.
Accessory Building	1.5 Stories max.

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

Principal Building	Not Regulated for Principal Buildings, which do not Enfront a Street and are a listed marine use within the Table 4.3.9.A May not exceed 13 ft. from finished floor to finished floor, except for a first floor Business/ Commercial, Office, Retail/Personal Service, or Lodging Use which must be a minimum of 15 ft. with a maximum of 25 ft
Accessory Building	10 ft. max

Building Composition

Non–Residential Use required on ground Floor that is floodable, with dry access to upper Floors

Facade

Main Entrance	Main Entrance must be in Facade of Principal Frontages, unless approved by the Planning and Zoning Commission to be located elsewhere due to Site constraints
Facade Position	Parallel to straight Frontage Line or to tangent of curved Frontage Line
Facade & Facade Element Design Proportions	NR
Blank Walls	NP at Frontage, unless located within the Flood Hazard Zone Overlay and required to be elevated, then shall comply with 4.3.7.C

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-MC **TABLE 4.3.1–N DISTRICT STANDARDS: MARINE COMMERCIAL SPECIAL DISTRICT**

Building Standards (continued)

Facade Articulation	NR
Facade Glazing	NR
Window Shape	NR
Window Alignment	NR
Window Types	NR
Facade Glazing Material	Clear glass R for windows at Frontage
Window Trim in Front Yard	NR
Facade Window Sill Height	NR
Porch Frontages	NR
Shopfront Frontages	NR
Facade Variety	NR

Roof Type & Pitch

NR

Building Materials

Primary Building Material on Facades	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Aluminum siding	NP
	Cementitious siding	P	Vinyl siding	NP
	Corrugated and/or sheet metal	NP, unless a building does not Enfront a Street.		

Changes in Building Materials	NR
Building Colors	NR
Foundation Cladding	NR

LEGEND
The following notations are utilized in this table.

P	Permitted	NP	Not Permitted	NA	Not Applicable	R	Required	NR	Not Regulated

ARTICLE 4

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SD-MC **TABLE 4.3.1–N DISTRICT STANDARDS: MARINE COMMERCIAL SPECIAL DISTRICT**

Building Standards (continued)

Porch Pier Cladding	NR
Chimney Cladding	NR

Building Types

Cottage	NP	Jewel Box	P
House	NP	Commercial	P
Estate House	NP	Mixed Use	P
Duplex	NP	Flex	P
Townhouse	P	Mid–Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	P
Live/Work	P		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off–street Parking
Required Parking Spaces	P provided that Parking Spaces must be within and/or behind the Principal Structure; see Additional Parking Requirements and Additional Standards within the Screens, Streetscreens and Buffers section of this Table.
Domestic Vehicles Parking	P provided that the vehicles are parked within approved spaces and/or the driveway
Recreational Vehicles Parking	P in Rear Yard only
Heavy Equipment Parking	NP
Tractor Trailers	NP
Trailers	P in Rear Yard only, see Table 4.3.9.D for additional limitations
Vessels	P in Rear Yard only, see Table 4.3.9.D for additional limitations

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-MC **TABLE 4.3.1-N DISTRICT STANDARDS: MARINE COMMERCIAL SPECIAL DISTRICT**

Vehicular Parking Requirements (continued)

All Other Vehicles	P in Rear Yard only, see Table 4.3.9.D for additional limitations (Storage of Commercial Vehicle(s))

Bicycle Parking

See Section 4.3.13

Loading & Access

Off-street Loading and Storage	P only in any Required Side Yard or Rear Yard, unless specifically prohibited
Utility Box & Service Meter* Locations *(*Not including water meters)*	P only in any Required Side Yard or Rear Yard, unless specifically prohibited
Off-street Trash Receptacle Locations	P in Rear Yard only.
Off-street Dumpster Locations	P in Rear Yard only, must be Screened from Frontage and fully enclosed on 3 sides and enclosed on the 4th side with self-closing gate.
Drive-Through Locations	NA

Non-Building Components

	Front Yard	Side Yard	Rear Yard
Electric Vehicle Charging Infrastructure, Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P in Front or Side Yard if such Yard is only location possible for satisfactory reception, as set forth by the FCC.		P
Swimming Pools, Hot Tubs and Spas	NA	NA	NA

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B-1 (Sign Types - Summary) and Table 7.1.2.B-2 (Sign Types - Specific Standards)

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

ARTICLE 4

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SD-MC **TABLE 4.3.1–N DISTRICT STANDARDS: MARINE COMMERCIAL SPECIAL DISTRICT**

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Private Landscaping and Fencing

Landscaping

	Front Yard ≥ 15 ft.	Front Yard ≥ 10 ft.
1 tree per 50 ft. of frontage	R	NA
Min. 30% of Front Yard must be Landscaped in compliance with Sec. 4.3.16.	NA	R

Walls & Fencing (not including Screens)

Height	3.5–4 ft. at Frontage; otherwise 6 ft. max; Height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well-maintained, in upright condition and free of missing or broken parts and graffiti.

Materials

Natural Wood	P Only picket type allowed at Frontage; other types allowed on sides and at rear
Brick, Natural Stone, or Stucco over Masonry	P at sides and rear only
Wrought Iron or Aluminum	P
Vinyl	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	NR
Retaining Walls	5 ft. min. from Lot/Building Site Line and 5 ft. max. Height in Front or Side Yards, 10 ft. max. height in Rear Yard, provided that such wall is retaining the grade from the Abutting property, and in accordance with Section 4.3.16.M.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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SD-MC **TABLE 4.3.1-N DISTRICT STANDARDS: MARINE COMMERCIAL SPECIAL DISTRICT**

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3.5 ft. to 5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	NP	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3 ft. to 5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

Additional Standards

Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive-Throughs, Trash Receptacles/Dumpsters, HVAC, Antennas, and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened from Frontage and Civic Space.
Satellite Dish Screen	R
Solar Equipment Screen	R
Self-Storage Warehouse Screening	R; except at Driveways: must be screened
Streetscreen Location	Side Yard
Lot or Building Site Buffer	Section 4.3.11.H.

Additional Standards for Overlays and Other Districts

For Flood Hazard Zone Overlay Regulations see Section 6.9. For Private Frontage Strategies-Flood Hazard Zone Overlay see Section 4.3.7.C. For Coastal Area Management Overlay Regulations see Section 6.10. For Redevelopment Agency and Historic Districts see Section 3.7.4.

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CV TABLE 4.3.1–O DISTRICT STANDARDS: CIVIC DISTRICT



General Description

Civic District (CV) is assigned to areas designated for Civic purposes owned by a Governmental Agency or is land dedicated and deed restricted as Open Space. These may be Open Space of one or more Civic Space Types allowed within or Adjacent to any specific Community District or Special District, as well as sites dedicated to significant Buildings to be used for Civic purposes, such as City Halls, Post Offices, Libraries, Places of Assembly, Schools, and community centers.

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CV TABLE 4.3.1–O DISTRICT STANDARDS: CIVIC DISTRICT

Lot Occupation

Lot/Building Site Width	NR
Frontage Buildout	NR
Lot/Building Site Area	NR
Impervious Surface Coverage	80% max
Lot/Building Site Enfrontment	Must Enfront a Street, Path, Passage, pedestrian walkway, or Watercourse.
Lot/Building Site Access	All Lots must have legal and physical vehicular access to a vehicular street via Driveway, Easement, or Alley.

Setbacks

Principal Building		Accessory Building	
Front Setback, Principal Frontage	0 ft. min., 50% of Lot Depth max.; if Adjacent to CD–1L, CD–1M, CD–1S, or CD–2, Setback must match Adjacent District	Front Setback, Principal Frontage	40 ft. min.
Front Setback, Secondary Frontage	0 ft. min.; if Adjacent to CD–1L, CD–1M, CD–1S, or CD–2, Setback must match Adjacent District	Front Setback, Secondary Frontage	40 ft. min.
Side Setback, each side	0 ft. min.; if Adjacent to CD–1L, CD–1M, CD–1S, or CD–2, Setback must match Adjacent District	Side Setback, each side	15 ft. min.
Rear Setback	0 ft. min.; if Adjacent to CD–1L, CD–1M, CD–1S, or CD–2, Setback must match Adjacent District	Rear Setback	3 ft. min.

Block Size*

**Applicable only to Development Parcels.*

Block Perimeter	NR

Private Frontage Types

NR

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CV TABLE 4.3.1–O DISTRICT STANDARDS: CIVIC DISTRICT

Civic Space Types*

*Applicable only to Development Parcels.

Park	P	Playground	P
Green	P	Sport Field	P
Square	P	Community Garden	P
Plaza	P	Pocket Park	P

See Table 5.2.3–A (Civic Space Types – Summary) and Table 5.2.3–B (Civic Space – Specific Standards)

Permitted Uses

See Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), and Table 4.3.9.E (Building, Lot & Building Site Temporary Uses).

Number of Buildings

Principal Building	1 max
Accessory Buildings	NR

Building Standards

Building Height*

Principal Building	20 ft. higher than maximum Height of any Adjacent Community District, max.
Accessory Building	30 ft max

**Height further regulated by Building Type. See Table 4.3.8.B (Principal Building Types – Specific Standards)*

Ceiling Height

14 ft. min. first floor; 10 ft. min. other floors

Building Composition

Vertical Composition	Each Principal Building must have an identifiable Base, Middle, & Cap
Ground Floor Elevation	NR

Facade

Per Planning and Zoning Commission Special Permit approval

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CV **TABLE 4.3.1–O DISTRICT STANDARDS:**
CIVIC DISTRICT

Building Standards (continued)

Roof Type & Pitch

Flat	P
Shed	P at rear only and if ridge is attached to an exterior Building wall; except for Porches, Stoops or Dormers which may have a shed roof anywhere on the Building
Hip	P
Gable	P
Mansard	P
Pitch	8:12 – 14:12, except for shed roofs which may be 3:12 – 14:12 and except roof pitch may match the primary roof pitch of an existing Building that is less than 8:12

Building Materials

Primary Building Material on Facades	Brick	P	Authentic stucco over masonry	P
	Natural stone	P	Exposed concrete	NP
	Wood	P	Aluminum siding	NP
	Cementitious siding	P	Vinyl siding	NP
	Corrugated and/or sheet metal	NP		
Changes in Building Materials	Primary materials must continue along side Elevations through Side Yard. Primary materials shall continue for entire length of all Facades facing a Frontage. Any material changes must coincide with form, structural, or massing changes and shall not occur at outside corner of such change.			
Building Colors	Up to 3 colors, including the natural color of any allowed materials, but excluding trim colors			
Foundation Cladding	R; brick or natural stone			
Porch Pier Cladding	R; brick or natural stone, with any space under Porch concealed by painted or stained latticework between piers			
Chimney Cladding	R; brick, natural stone, or material matching primary material of Facade			

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CV TABLE 4.3.1–O DISTRICT STANDARDS: CIVIC DISTRICT

Building Types

Cottage	P	Jewel Box	P
House	P	Commercial	NP
Estate House	P	Mixed Use	NP
Duplex	NP	Flex	NP
Townhouse	NP	Mid–Rise	NP
Small Multifamily Building	NP	Large Scale Commercial	NP
Large Multifamily Building	NP	Civic	P
Live/Work	P		

See Table 4.3.8.A (Principal Building Types – Summary) and Table 4.3.8.B (Principal Building Types – Specific Standards)

Vehicular Parking Requirements

Parking Location

	Off–street Parking
Domestic Vehicles	P in Rear Yard only, and in Driveway
Recreational Vehicles	P in Rear Yard only, and in Driveway
Heavy Equipment	P in Rear Yard only, and in Driveway
Tractor trailers (including trailers for storage)	NP
All Other Vehicles	P in Rear Yard only, and in Driveway

Additional Parking Requirements

Off–street Parking Surface	Prepared surface of permeable pavers, gravel, asphalt, concrete or other hard surface
Garage Location	NA
Garage Design	NA
Driveway/Vehicular Entrance Location	P in any Yard
New Driveway/Vehicular Entrance Maximum Width	24 ft. max. in Front Yard and Side Yard
Parking Structures	P, if Screened from Frontage by Liner Buildings

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CV TABLE 4.3.1–O DISTRICT STANDARDS: CIVIC DISTRICT

Vehicular Parking Requirements(continued)

Parking Structure Pedestrian Exit Location	Via pedestrian access to Frontage

Bicycle Parking

See Section 4.3.13

Loading & Access

Off–street Loading and Storage	P in Rear Yard only.
Utility Box & Service Meter* Locations *(*Not including water meters)*	P in Rear Yard only.
Off–street Trash Receptacle Locations	P in Rear Yard only.
Off–street Dumpster Locations	P in Rear Yard only, must be Screened from Frontage and fully enclosed on 3 sides and enclosed on the 4th side with self–closing gate.
Drive–Through Locations	P in Rear Yard only.

Non–Building Components

	Front Yard	Side Yard	Rear Yard
Electric Vehicle Charging Infrastructure, Heating and Air Conditioning Equipment, Utility, Service and Mechanical Equipment	NP	P if Screened from Frontage	P
Solar Panels	NP	P	P
Antennas & Satellite Equipment	P in Front or Side Yard, if such Yard is only location possible for satisfactory reception, as set forth by FCC.		P
Swimming Pools, Hot Tubs and Spas	NP	NP	P

Signs

See Sign Standards in Article 7 (Sign Standards) and Table 7.1.2.B–1 (Sign Types – Summary) and Table 7.1.2.B–2 (Sign Types – Specific Standards)

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CV **TABLE 4.3.1–O DISTRICT STANDARDS: CIVIC DISTRICT**

Lighting

See Private Lighting requirements in Section 4.3.17 and Table 4.3.17.B.1 (Private Lighting Types) & Table 4.3.17.C.1 (Private Lighting Standards)

Private Landscaping and Fencing

Landscaping

NR

Walls & Fencing (not including Screens)

Height	3.5–4 ft. max. at Frontage; otherwise 6 ft. max; Height measured from avg. undisturbed grade of Adjacent property at property line
Construction	Finished side must face Adjacent property, street, Path, Passage or Watercourse
Maintenance	Must be well–maintained, in upright condition and free of missing or broken parts and graffiti

Materials

Natural Wood	P Only picket type allowed at Frontage; other types allowed on sides and at rear	**Chain Link**	P at sides and rear only
Brick, Natural Stone, or Stucco over Masonry	P	**Barbed/razor/concertina wire**	NP
Wrought Iron or Aluminum	P	**Exposed or painted aggregate concrete**	NP
Vinyl	P in Rear Yard only	**Smooth or split–faced block**	NP

Additional Standards

Pedestrian connections through to Adjacent Neighborhoods or Uses	R
Retaining Walls	5 ft. min. from Lot/Building Site Line and 5 ft. max. Height in Front or Side Yards, 10 ft. max. Height in Rear Yard, provided that such wall is retaining the grade from the Abutting property, and in accordance with Section 4.3.16.M.

ARTICLE 4

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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CV TABLE 4.3.1–O DISTRICT STANDARDS: CIVIC DISTRICT

Screens, Streetscreens & Buffers

Height

	At Frontage or Adjacent to Civic Space	Not at Frontage or Adjacent to Civic Space
Wall Screen/Streetscreen Height	3.5 ft. to 5 ft.	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Fence Screen/Streetscreen Height	NP	5 ft. to 6 ft.; Min. 6 ft. for Dumpsters and Trash Receptacles
Hedge Screen/Streetscreen Height	3.5 ft. to 5 ft. at installation	5 ft. to 6 ft. at installation

Materials

Wall Screen or Streetscreen	Brick, Natural Stone or Stucco over Masonry
Fence Screen or Streetscreen	Natural Wood, painted or unpainted
Hedge Screen or Streetscreen	Native Evergreen plants with min. 80% opacity

Additional Standards

Screening of Parking, Loading Areas, Service Areas, Outdoor Storage, Drive–Throughs, Trash Receptacles/Dumpsters, HVAC and other equipment Screened from Frontage, Civic Space and Adjacent Property	R; except at Driveways: Parking Lots and Parking Areas must be Screened
Satellite Dish Screen	R
Solar Equipment Screen	R
Self–Storage Warehouse Screening	NA (not permitted in District)
Streetscreen Location	Side Yard

LEGEND The following notations are utilized in this table.	P Permitted	NP Not Permitted	NA Not Applicable	R Required	NR Not Regulated

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4.3.3 Lots/Building Sites.

A. Yards.

1. Lots or Building Sites are comprised of three Yards, the Front Yard, the Side Yard, and the Rear Yard, as related to the Frontage, as shown in **Illustration 4.3.3.A (Yards)** and as defined in **Article 9 (Definitions)**.

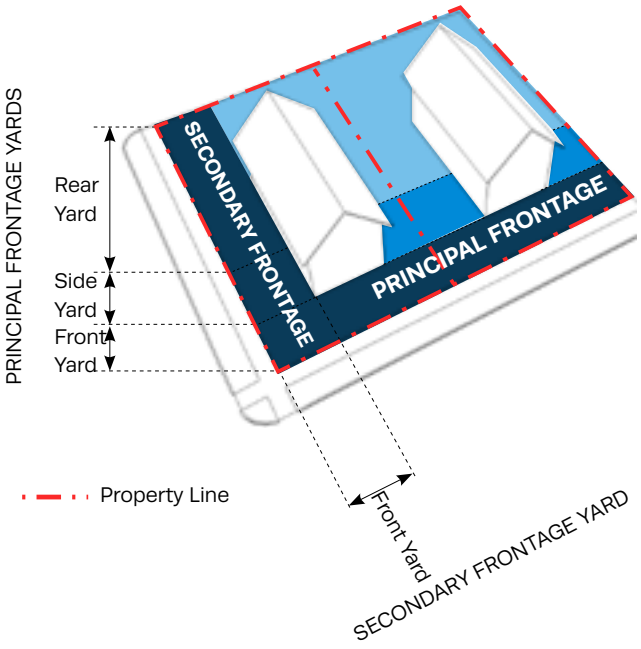
2. Yards are used to regulate in what parts of a Lot or Building Site certain Development, Building elements, and Uses are allowed or required, as set forth in **Tables 4.3.1–A – 4.3.1–O (District Standards).**

3. For Corner Lots or Building Sites, which have both a Principal Frontage and a Secondary Frontage:

a. Standards and prescriptions for the Front Yard apply to the Front Yard as related to both Frontages; and

b. Standards and prescriptions for the Side Yard and Rear Yard pertain only to such Yards as related to the Principal Frontage.

ILLUSTRATION 4.3.3.A (YARDS)



B. Dimensions.

Lots or Building Sites within each District must be dimensioned according to **Tables 4.3.1–A – 4.3.1–O (District Standards).**

C. Enfrontment.

Within all Districts and Civic Districts, each Lot or Building Site must have Frontage along a Street or Internal Drive, as provided in **Tables 4.3.1–A – 4.3.1–O (District Standards)**; provided, however, that up to twenty percent (20%) of the Lots or Building Sites in a Development Parcel may Enfront a watercourse, Civic Space, Path, or Passage.

D. Watercourse Lots/Building Sites.

Within the CD–3, CD–3W, CD–4, and CD–4W each Lot or Building Site that abuts both a Street or Internal Drive and a Watercourse and are Residential (except for Single–Family Detached Dwelling, Two–Family Detached Dwelling, or Townhouse), Lodging, Office, Commercial, Civic, and/or Institutional Use(s) as listed within Table 4.3.9.A must provide a Private Frontage Type along each Frontage in accordance with Section 4.3.7. Maximum Setbacks from the Frontage along the Watercourse shall not apply. The minimum Frontage buildout shall not be required to exceed 40% along the Frontage adjacent to the Watercourse.

E. Through Lots.

For through Lots or Building Sites, the Frontage and Front Setback regulations shall apply to both Frontages. When Permitted by Table 4.3.7.A, a Pocket Park may be used as Private Frontage for one of the Lot or Building Site(s) Frontages and the Front Setback shall be measured from the Front Lot or Building Site Line to the front of the Pocket Park.

F. Required Spaces or Areas.

1. The Setback requirements in **Tables 4.3.1–A – 4.3.1–O (District Standards)** shall be applicable to

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each Lot/Building Site.

2. All required Setbacks shall be maintained and have no obstructions or Encroachments except as allowed in **Tables 4.3.1-A – 4.3.1-O (District Standards).**

3. No Lot shall be divided or reduced so as to result in its area or dimensions not complying with the standards required by this Section 4.3.3.F, nor shall any Setback required for a Principal Building be included as part of a Setback required under these Regulations for any other Building.

4. A minimum required Lot or Setback for one (1) Structure shall not be used in whole or in part as any part of a required Lot for a second Structure.

5. The required Lot and Setback for an existing Structure shall not be diminished below the minimum requirements of these Regulations.

6. The following shall apply to common or party walls:

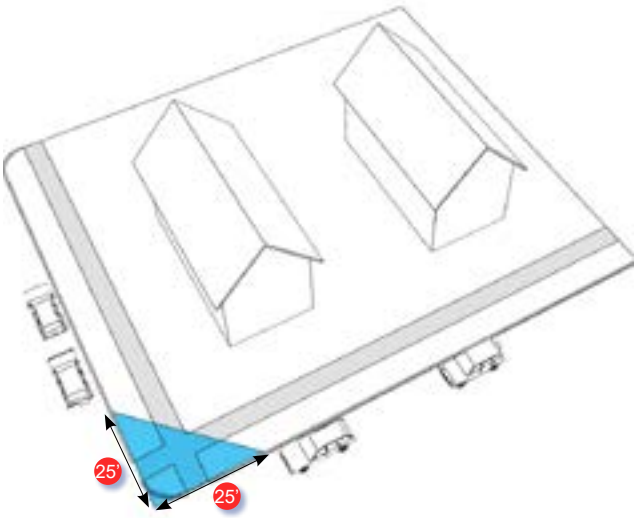
a. A firewall shall bisect the line dividing each portion of the Building, Lot, or Building Site so that 1/2 of the firewall is held by each of the abutting properties.

b. Each abutter who may share in the ownership of any firewall shall have an Easement on the property of other owner(s) for the purpose of reconstruction and protection of remaining property from the elements.

G. Visibility.

1. For all Corner Lot or Building Site(s) and for all Driveways, any Fence, Wall, hedge, Structure, or planting shall comply with the Norwalk Complete Streets Design Guide, as amended.

ILLUSTRATION 4.3.3.G.1 (SIGHT TRIANGLE – CORNER)



H. Access Requirements.

1. No Building shall be erected on a Lot or Building Site that does not Abut a Street, an approved private street or Internal Drive, or an approved private vehicular access Easement.

2. Where access is provided by an approved private street or Easement, an Easement for the same is required for each Lot, Building Site, or tract of land across which it traverses.

3. Lots/Building Sites in CD-3, CD-3W, CD-4, and CD-4W that abut the Norwalk Harbor or 5 Mile River shall provide Public Realm Adjacent to the water, which shall be a minimum of fifteen (15) feet in width, as well as access from the street to the water, subject to Planning and Zoning Commission approval. Such public accessways shall be in the form of landscaped walks, esplanades, boardwalks or piers, of suitable design to encourage active use by the public, and shall be dedicated as such in the deed to the property. Reasonable time of day restrictions may be established regarding such accessways, where justified for reasons of security or public safety. Where the Principal Use of the property is a single- or two-family Dwelling, the

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Public Realm and access requirements shall not apply. An infringement on the fifteen (15) foot wide access may be granted where the Planning and Zoning Commission finds that:

a. the integrity of the access is maintained;

b. where an improved five (5) foot wide walkway from the Street to the waterfront is provided; subject to approval by the Planning and Zoning Commission.

4. Redeveloped properties in CD-4W that abut the Norwalk Harbor or 5 Mile River shall provide a twenty-five (25) foot wide unobstructed public view corridor from the Street to the Watercourse.

5. Properties in the Silvermine Tavern Village District that abut the Silvermine River shall provide Public Realm adjacent to the water, which shall be a minimum of one hundred (100) linear feet of riverfront to provide access from the street to the water, subject to Commission approval. Reasonable time of day restrictions may be established regarding Public Realms, where justified for reasons of security or public safety. Where the Principal Use of the property is a single-family Dwelling, the Public Realm and access requirements shall not apply.

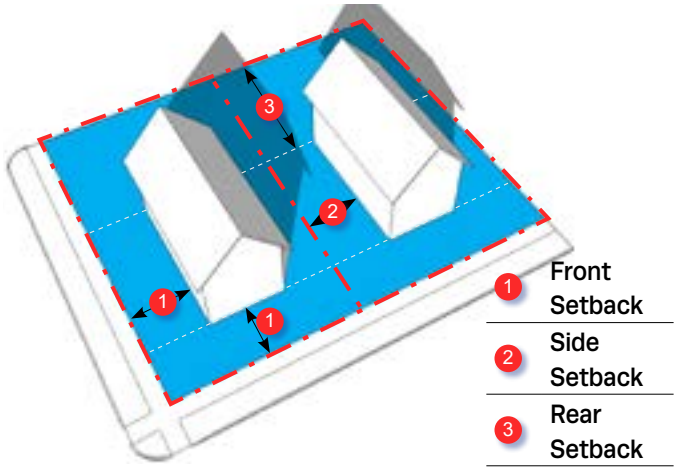
6. Additional access requirements may be found in Sections 4.3.12, 4.3.14, and 6.8.

4.3.4 Building Placement & Number

A. Building Placement.

1. Every Building shall be located on a Lot or Building Site. Buildings shall be located in relation to the boundaries of their Lots or Building Sites and shall comply with the Setback standards within each District according to **Tables 4.3.1-A – 4.3.1-O (District Standards).**

ILLUSTRATION 4.3.4.A SETBACK DESIGNATIONS



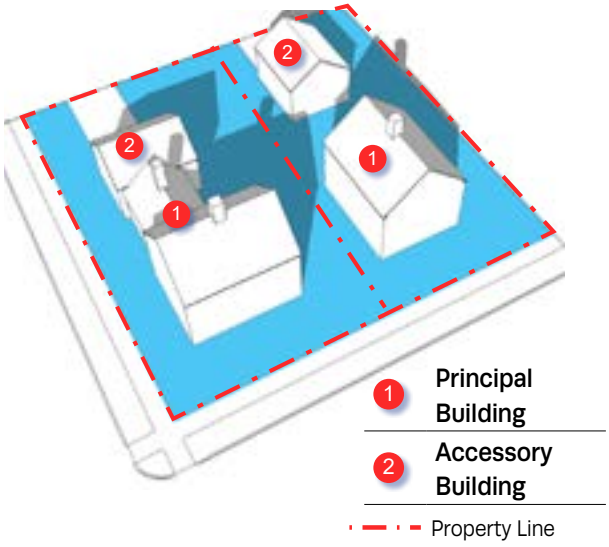
B. Principal Buildings

1. Within each District:

a. The number of Principal Buildings on each Lot or Building Site shall not exceed that indicated in **Tables 4.3.1-A – 4.3.1-O (District Standards)** and

b. Principal Buildings shall be oriented and situated as specified in **Tables 4.3.1-A – 4.3.1-O (District Standards)** and illustrated in **Illustration 4.3.4.B (Principal Building / Accessory Building)**.

ILLUSTRATION 4.3.4.B PRINCIPAL BUILDING / ACCESSORY BUILDING



ARTICLE 4

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C. Accessory Buildings

1. Within each District:

a. The number of Accessory Buildings on each Lot or Building Site must not exceed that indicated in **Tables 4.3.1–A – 4.3.1–O (District Standards)**; and

b. Any such Accessory Buildings must be located as specified in **Tables 4.3.1–A – 4.3.1–O (District Standards)** as applicable and illustrated generally in **Illustration 4.3.4.B (Principal Building / Accessory Building).**

2. Except within Civic Districts, Accessory Buildings may not be erected on a Lot or Building Site on which there is no Principal Building. In subdivisions, the Commission may allow an Accessory Building to exist on a separate Lot for a two–year maximum, subject to the posting of a surety in sufficient amount to guarantee its removal at the end of that period, if no primary Building has been constructed on that Lot.

3. Where Accessory Buildings are permitted:

a. Except within Civic Districts, the footprint of a detached Accessory Building shall not exceed 60% of the Principal Building;

b. Any Accessory Building shall be located in the Yard indicated in **Tables 4.3.1–A – 4.3.1–O (District Standards);**

c. Transmitting and/or receiving towers or antennas shall not be located in the Front Yard or Side Yard; and

d. Guy wires or any other structural supports shall not Encroach upon Adjoining property, Easements, Setback, or Setback Area areas.

4. An Accessory Building may be detached from or constructed as a structural part of a Principal Building, including those attached by means of a breezeway or a roofed passageway with open or latticed sides. If constructed as a structural part of a Principal Building, its walls shall be regarded as walls of the Principal Building in applying the standards and requirements of these Regulations.

4.3.5 Building Standards.

A. Facade.

1. Building Facades shall conform to **Tables 4.3.1–A – 4.3.1–O (District Standards)**.

2. The Facade of the Principal Building shall be built along the minimum percentage of the Front Lot Line or Building Site Line width at the Setback line, specified as Frontage Buildout on **Tables 4.3.1–A – 4.3.1–O (District Standards)**. A Streetscreen may be substituted for a Facade for up to twenty percent (20%) of the applicable Frontage Buildout requirement.

3. Facade articulation as required in **Tables 4.3.1–A – 4.3.1–O (District Standards)** shall be articulated as follows: Facades greater than 100 ft. in width must be differentiated so that it appears to be comprised of two or more Adjacent Buildings, by dividing such Facade into two (2) segments each of which includes a separate entrance and:

a. Differs from each of the other segments with respect to at least three of the following:

(1) a change in shape, sill, and header height, detail, size, spacing, rhythm, and muntin pattern of windows;

(2) a change of Building or cornice height and details;

(3) a change of wall material or wall color; a change in trim courses and other horizontal elements;

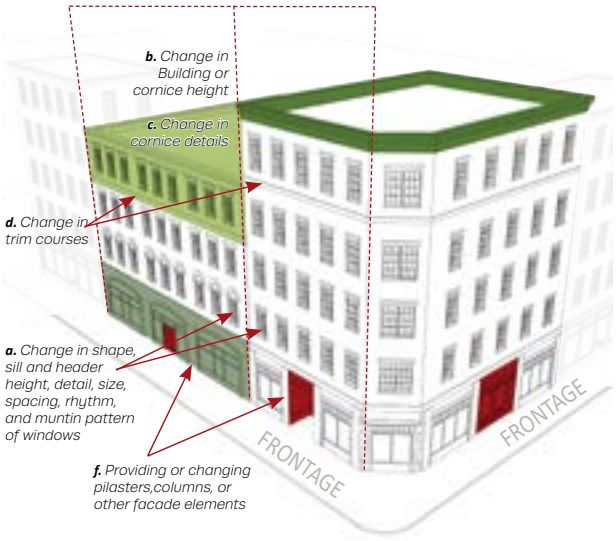
(4) a change in dormer or balcony design;

(5) providing or changing pilasters, columns, or other Facade elements; and

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b. Is composed with a defined center and edges. See **Illustration 4.3.5.A.3 (Facade Articulation)**.

ILLUSTRATION 4.3.5.A.3 (FACADE ARTICULATION)



B. Building Design & Materials.

The design and exterior materials of Buildings shall conform to **Tables 4.3.1–A – 4.3.1–O (District Standards),**

C. Building Height, Ceiling Height & Ground Floor Elevation.

Building Height, Story Height, and Ground Floor Elevation must conform to **Tables 4.3.1–A – 4.3.1–O (District Standards).**

D. Roof Type & Pitch.

Building roof type and pitch must conform to **Tables 4.3.1–A – 4.3.1–O (District Standards)**. See **Illustration 4.3.5.D–1 (Roof Types)** and **Illustration 4.3.5.D–2 (Roof Pitch).**

ILLUSTRATION 4.3.5.D–1 (ROOF TYPES)

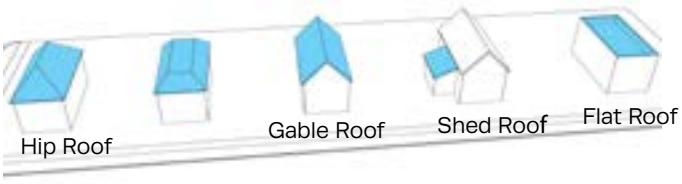
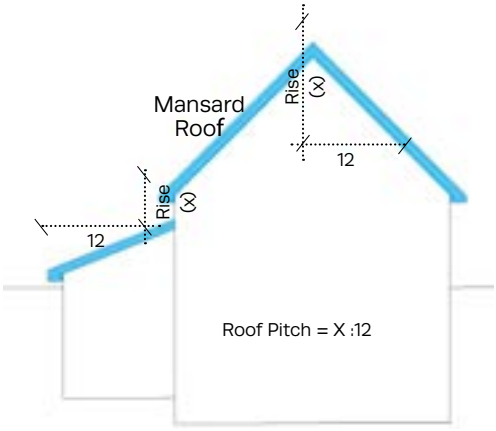


ILLUSTRATION 4.3.5.D–2 (ROOF PITCH)



4.3.6 Fences & Walls.

Within each District, Fences and non–Building Walls must comply with the applicable standards in **Tables 4.3.1–A – 4.3.1–O (District Standards).**

4.3.7 Private Frontage, Building Form & Building Type; Floor Elevation.

A. Private Frontage – General.

The Private Frontage of each Lot or Building Site must conform to and be allocated in accordance with **Table 4.3.7.A (Private Frontage Types)** and **Tables 4.3.1–A – 4.3.1–O (District Standards);** Except that in the circumstance(s) when there are multiple Principal Structures on a Lot or Building Site, Principal Structure(s) that are located behind the maximum Front Yard Setback (if applicable) and behind another Principal Structure(s) that Enfronts the Street, are not required to comply with this Section provided that the minimum Frontage Buildout requirement,

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if appilcable, has been met. In order to comply with the requirements of the Flood Hazard Overlay Zone, Section 6.9, modifications to the Private Frontage Types, may be done in accordance with Section 4.3.7.C

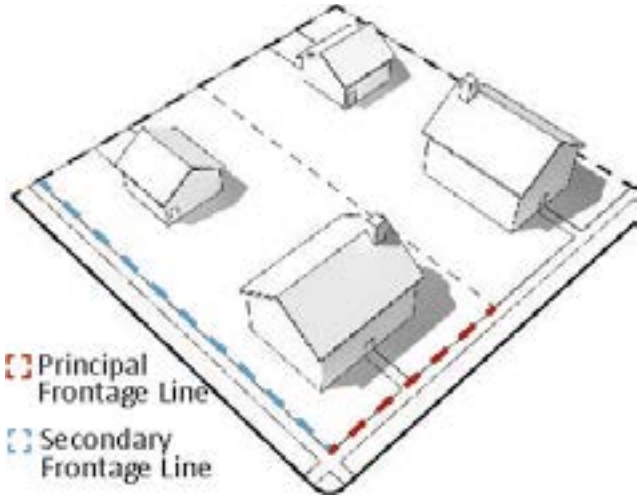
B. Private Frontage – Corner Lots / Building Sites.

Principal Buildings on Corner Lots or Building sites shall have two (2) Private Frontages:

1. a Principal Frontage and

2. a Secondary Frontage, as illustrated generally in **Illustration 4.3.7.B.2 (Frontage & Lot / Building Site Lines).**

ILLUSTRATION 4.3.7.B.2 (FRONTAGE & LOT / BUILDING SITE LINES)

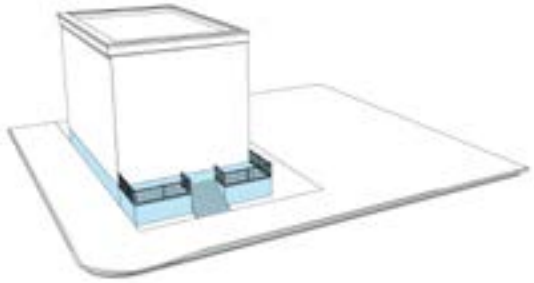


C. Private Frontage Strategies – Flood Hazard Zone Overlay.

Lots or Building Sites located within the Flood Hazard Zone Overlay that are required to be elevated shall be required to use one of the Flood Hazard Zone Overlay Private Frontage strategies in combination with **Table 4.3.7.A (Private Frontage Types)**. Any of the Private Frontage Types may be modified to work with these strategies when located in the Flood Hazard Zone Overlay. Breakaway Walls and openings are required per Section 6.19 Flood Hazard Zone Overlay.

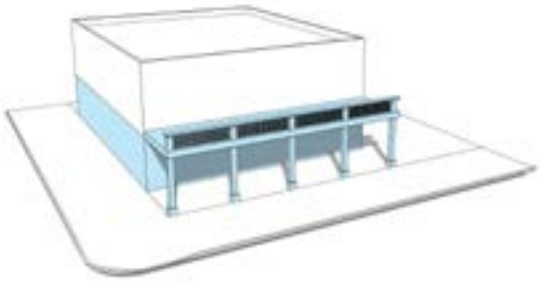
1. **Terrace Strategy**. In this strategy the Lowest Floor is raised with a terrace with stairs going down at or near Frontage Line, as illustrated generally in **Illustration 4.3.7.C.1 (Terrace Strategy)**. It is appropriate for Commercial or Residential Uses.

ILLUSTRATION 4.3.7.C.1 (TERRACE STRATEGY)



2. **Raised Walk Strategy**. In this strategy the Lowest Floor is raised above a Sub-story with a continuous walk between Lots or Building Sites.

ILLUSTRATION 4.3.7.C.2 (RAISED WALK STRATEGY)

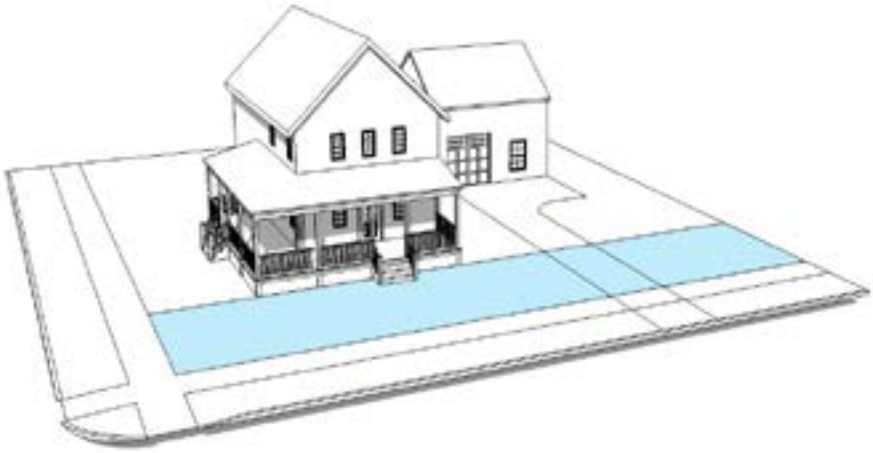


3. **Grand Stair Strategy**. In this strategy the Lowest Floor is raised above a Sub-story with a grand stair, as illustrated generally in **Illustration 4.3.7.C.3 (Grand Stair Strategy)**. Alternative stair layouts may be appropriate. This strategy is appropriate for Commercial or Residential Uses.

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COMMON YARD

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-1L | CD-1M | CD-1S | CD-2 | CD-3 | CD-3W | CD-3C

A planted Frontage wherein the Facade is set back substantially from the Frontage Line, and the Front Yard so created remains unfenced and is visually continuous with Adjacent yards, supporting a common landscape.





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POCKET PARK

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-4

A Private Frontage type wherein the Facade is set back from the Frontage Line with a small (no smaller than 500sf, no larger than 0.5 acres) predominantly green open area for unstructured passive recreation. A Pocket Park shall only be permitted as a Private Frontage type for Through Lot or Building Site(s) and may only be used as Private Frontage for one of the Lot or Building Site(s) Frontages.

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PORCH

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-1L | CD-1M | CD-1S | CD-2 | CD-3 | CD-3W | CD-3C

A planted Frontage wherein the Facade is set back from the Frontage Line with an attached exterior covered area large enough to accommodate outdoor furniture and/or gathering, which is permitted to Encroach into the Front Setback. This may be used with or without a Fence to maintain street spatial definition.





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FENCE

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-1L | CD-1M | CD-1S | CD-2 | CD-3 | CD-3W | CD-3C

A Frontage wherein the Facade is set back from the Frontage Line, and the Front Yard so created is separated from the Public Frontage by a Fence.







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TERRACE/LIGHTWELL

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 CD-3W CD-3C CD-4 CD-4W

A Frontage wherein the Facade is set back from the Frontage Line by an elevated landing and a sunken Lightwell. This type Buffers Residential Uses from urban Sidewalks with the first Story elevated from the Sidewalk for privacy, and may allow for activation of space below grade. An exterior stair and landing provides access to the entrance. This type is recommended for ground-floor Residential Use.







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FORECOURT

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 CD-3W CD-3C CD-4 CD-4W

A Frontage wherein a portion of the Facade is close to the Frontage Line and the central portion is set back creating a gathering space for residents or additional shopping or restaurant seating area within Retail / Personal Service / Art / Artisan Use areas. This type may be used in conjunction with other Frontage types.

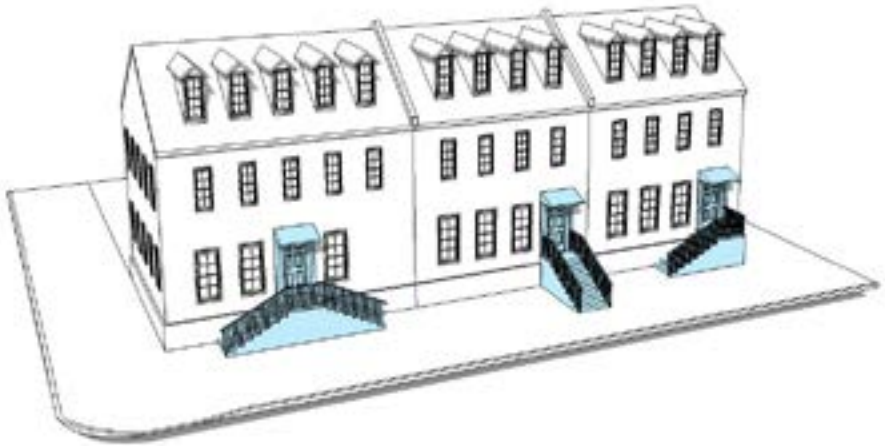




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STOOP

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-1S | CD-2 | CD-3 | CD-3W | CD-3C | CD-4 | CD-4W

A Frontage wherein the Facade is aligned close to the Frontage Line with the first Story elevated from the Sidewalk for privacy. An exterior stair and landing provides access to the entrance. This type is recommended for ground-floor Residential Use.

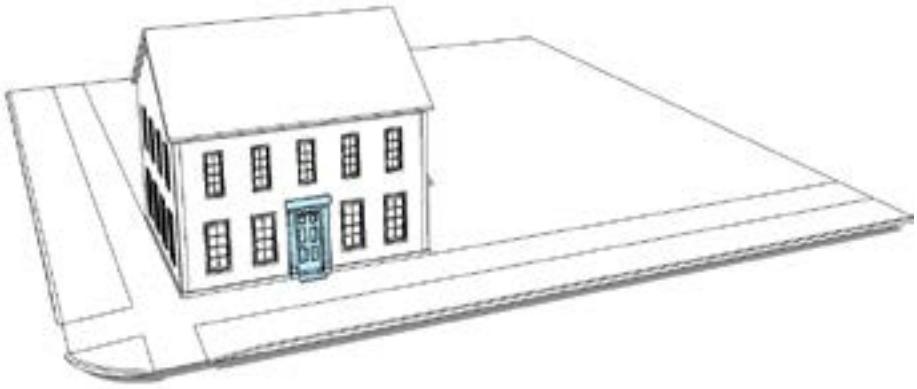




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STEPFRONT

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 | CD-3W | CD-4 | CD-4W | SD-LI

A Frontage wherein the Facade is aligned very close to the Frontage Line. The entrance is usually an exterior single step without a landing. This type is recommended for ground floor Residential / Retail / Personal Service / Art / Artisan Use.





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SHOPFRONT

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 | CD-3W | CD-4 | CD-4W | SD-LI

A Frontage conventional for Retail / Personal Service / Repair / Art / Artisan Use, wherein the Facade is aligned close to or at the Frontage Line with the Building entrance at Sidewalk grade. This Frontage has substantial glazing at the Sidewalk level and may include an Awning extending over the Sidewalk.

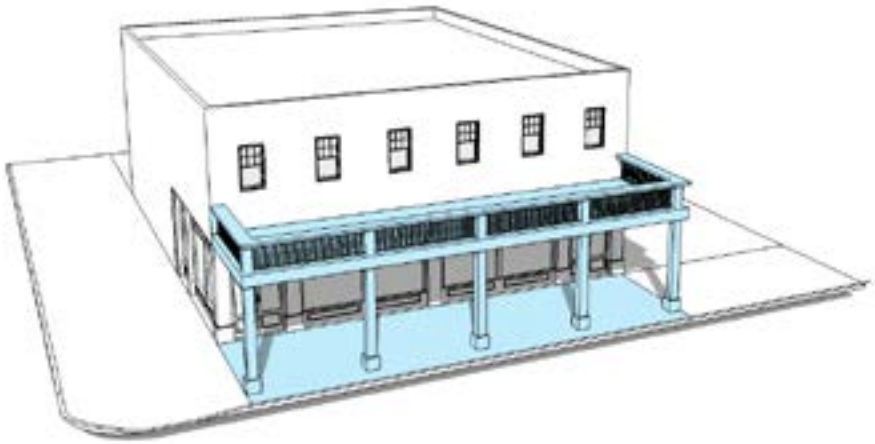




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GALLERY

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 | CD-3W | CD-3C | CD-4 | CD-4W | SD-LI

A Private Frontage conventional for Retail / Personal Service / Repair / Art / Artisan Use, wherein the Facade is aligned close to the Frontage Line with an attached cantilevered shed or lightweight colonnade extending over the Sidewalk.

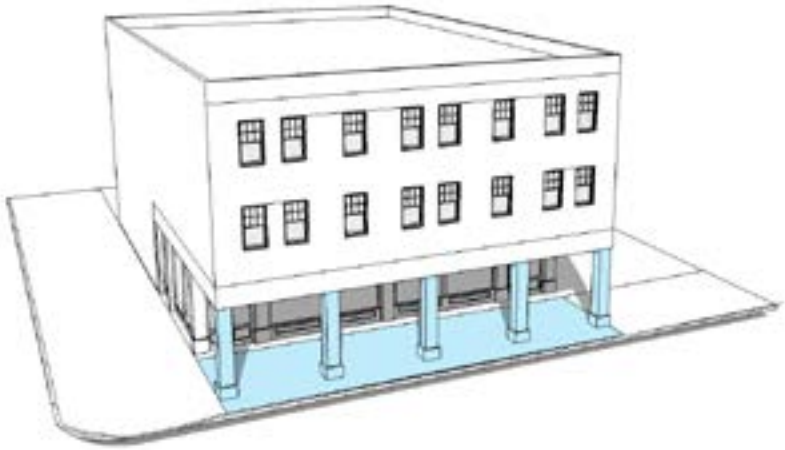




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ARCADE

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-4 CD-4W SD-LI

A Private Frontage conventional for Retail / Personal Service / Repair / Art / Artisan Use, wherein a colonnade supporting habitable space in one or more upper levels extends over the Sidewalk, while the Facade at the first Story remains at the Frontage Line.





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COMMERCIALFRONT

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 CD-3W CD-3C CD-4 CD-4W SD-LI

A Frontage wherein the Facade is aligned close to or at the Frontage Line with the Building entrance at or above Sidewalk grade. This type is conventional for general Commercial / Office Use. It may have a substantial glazing on the Facade.

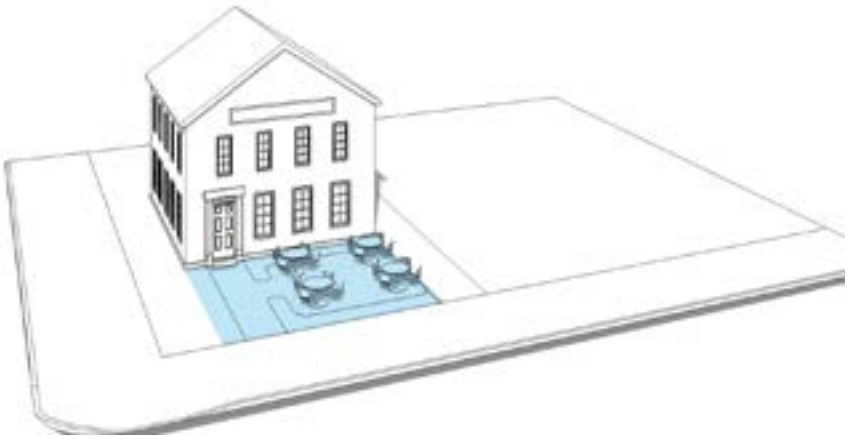




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DINING YARD

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 CD-3W CD-3C CD-4 CD-4W

A Frontage type wherein the Facade is set back from the Frontage Line with a paved area between the Building and the Sidewalk that accommodates outdoor dining or seating. This may be used with or without a fence to maintain Street spatial definition. The Dining Yard Frontage Type may be combined with a Shopfront Frontage, and is for ground floor dining or entertainment Use.

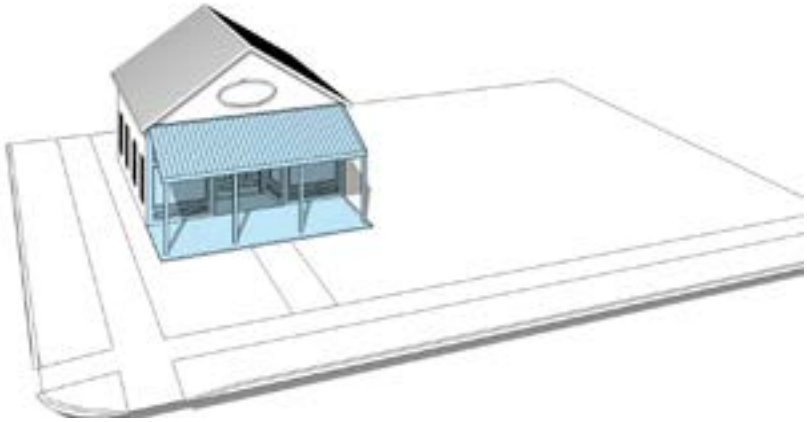




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COMMERCIAL PORCH

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 **CD-3W**

A Frontage type found in many rural commercial nodes wherein the Facade can be either set back or close to the Frontage Line with an attached Porch. The Porch is typically raised no more than six (6) inches higher than the Sidewalk, or may be level with the Sidewalk to avoid the need for a ramp. A Commercial Porch may be combined with a Shopfront Frontage, or may have windows and doors more typical of a Residential Use. This type is for ground floor commercial Use only.





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BOARDWALK

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

CD-3 CD-3W CD-4W

A Frontage type only available for Watercourse Lots or Building Sites per Section 4.3.3(D) for the Frontage that fronts the water. The Building is raised above the water with a boardwalk along the water front with the Facade typically at the back of the boardwalk. The boardwalk may be connected between multiple Lots or Building Sites and may be combined with Porch, Commercial Porch, Shopfront, Gallery, or Arcade Frontages.

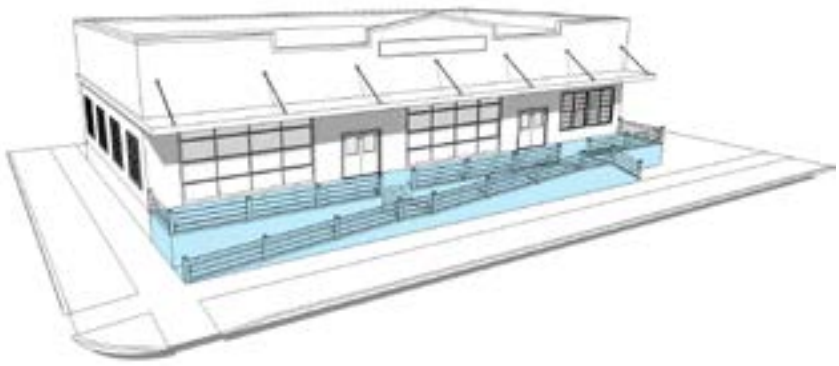




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LOADING DOCKFRONT

TABLE 4.3.7.A PRIVATE FRONTAGE TYPES



Permitted Districts

SD-LI

A Frontage type conventional for Industrial Use wherein a loading dock is attached to the Facade at the Frontage Line. This type may be combined with a Shopfront Frontage.





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TABLE 4.3.8.A PRINCIPAL BUILDING TYPES – SUMMARY

Principal Building Type		Permitted Districts
	**Cottage** A small Building, less than 1,200 square feet, designed as a Single-Family Detached Residential Dwelling, situated on a small Lot or Building Site with a yard on all sides, often shared with an Accessory Building in the rear.	CD-1L, -1M, -1S & CD-2, CD-3, -3W & -3C, SD-IC
	**House** A medium-sized Building, between 1,200 – 2,400 square feet, designed as a Single-Family Detached Dwelling, situated on a medium or large Lot or Building Site with a yard on all sides,, often shared with an Accessory Building in the rear.	CD-1L, -1M, -1S & CD-2, CD-3, -3W & -3C, SD-IC
	**Estate House** A large Building, greater than 2,400 square feet, designed as a Single-Family Detached Residential Dwelling, situated on a large Lot or Building Site with a yard on all sides, often shared with an Accessory Building in the rear.	CD-1L, -1M, -1S & CD-2, SD-IC
	**Duplex** A small- to medium- sized Principal Building, other than a manufactured housing unit, situated on a small-to-medium sized Lot or Building Site with a yard on all sides or along the side, which Building contains two Dwelling Units with separate entrances at least one of which faces the street. Both Dwelling Units, whether side-by-side, front-to-back, or over-and-under, are contained within a single Building Massing.	CD-2, CD-3, -3W & -3C
	**Townhouse** A Principal Building in a collection of very narrow- to medium-sized attached Buildings on contiguous Lots or Building Sites with a back yard (or yard along the side if an end unit), which collection consists of side-by-side Dwelling Units with individual entries facing the street. Each Building occupies the full Frontage Line of its Lot or Building Site and shares at least one party wall with another Building of the same type.	CD-3, -3W & -3C, CD-4 & -4W, SD-MC
	**Small Multi-Family Building** A Principal Building that incorporates between three (3) and six (6) side-by-side and/or horizontally stacked Dwelling Units, typically with one or more shared entries.	CD-3, -3W & -3C, CD-4 & -4W
	**Large Multi-Family Building** A Principal Building that incorporates seven (7) or more side-by-side and/or horizontally stacked Dwelling Units, which may have one or more shared entries.	CD-3 & -3C, CD-4 & -4W
	**Live/Work Building** A small- to medium-sized attached or detached Principal Building, which includes a flexible space for Commercial Use and an internally connected Residential Dwelling Unit above and/or behind the flexible space.	CD-3, -3W & -3C, CD-4 & -4W, SD-LI, SD-MC, CV

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TABLE 4.3.8.A PRINCIPAL BUILDING TYPES – SUMMARY

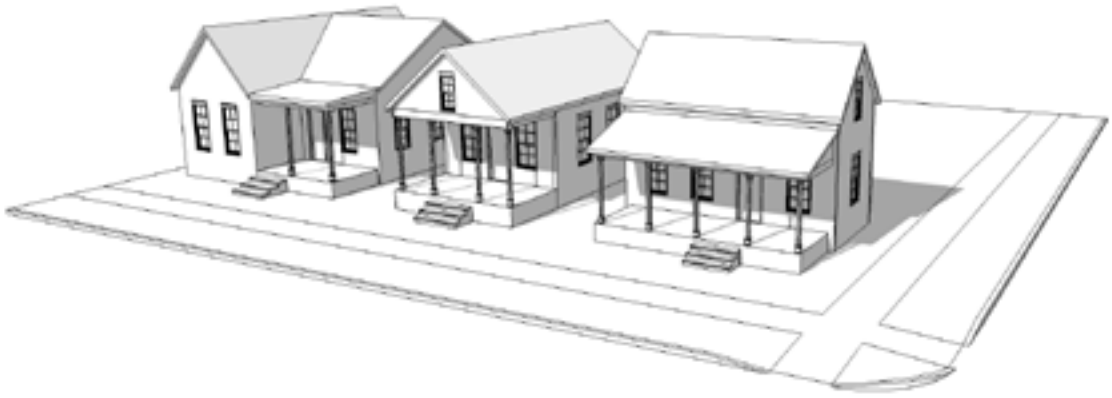
Principal Building Type		Permitted Districts
	**Jewel Box** A small, temporary, or permanent Building intended to facilitate Retail/Personal Service, Commercial or Civic Uses.	CD-3 & -3W, CD-4W, SD-LI, SD-MC, CV
	**Commercial Building** A small- to medium-sized attached or detached non-Residential Building, typically designed to facilitate pedestrian-oriented Retail / Personal Service / Repair / Art / Artisan Uses and Office Uses.	CD-3 & -3C, CD-4 & -4W, SD-MC
	**Mixed-Use Building** A typically attached Principal Building, which provides a vertical and/or horizontal mix of Uses typically designed to facilitate pedestrian-oriented Retail / Personal Service / Repair / Art / Artisan, Lodging, or Office Uses on the ground floor, with upper floors typically designed for Residential or Office Uses.	CD-3, -3W & -3C, CD-4 & -4W, SD-LI, SD-MC
	**Flex Building** A large footprint Principal Building designed to accommodate either a single Use or a vertical or horizontal mix of Uses.	CD-3 & -3C, CD-4 & -4W, SD-H, SD-LI, SD-HI, SD-MC
	**Mid-Rise Building** An attached or detached Building that may provide a vertical and/or horizontal mix of Uses, typically designed to facilitate pedestrian-oriented Retail/Personal Service, Lodging, Business/Commercial, or Office Uses on the ground floor, with upper floors typically designed for Residential or Office Uses.	CD-3C, CD-4 & -4W
	**Large-Scale Commercial Building** A Building of 50,000 square feet or more that is mostly commonly associated with a large-format retailer. It has in-line Retail services, Retail Sales, or Liner Buildings along the front of the Building.	CD-3C
	**Civic Building** A medium- to large-sized attached or detached Principal Building, which is operated by a governmental entity dedicated to Civic activities, and is designed to stand apart from its surroundings due to the specialized nature of its Civic purpose. Examples include Libraries, Places of Assembly, Courthouses, schools, centers of government, Performing Arts Venues, and Museums. Civic Buildings are often the most prominently sited and architecturally significant Buildings in a community.	CD-1L, -1M, -1S & CD-2, CD-3, -3W & 3C, CD-4 & -4W, SD-LI, SD-MC, CV

Illustrations are provided for illustrative purposes only.

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COTTAGE

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-1L | CD-1M | CD-1S | CD-2 | CD-3 | CD-3W | CD-3C | SD-IC

General Description

A small Building, less than 1,200 square feet, designed as a Single-Family Detached Residential Dwelling, situated on a small Lot or Building Site with a yard on all sides, often shared with an Accessory Building in the rear.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	1 max.

Allowed Private Frontages

Common Yard	P
Fence	P
Porch	P
Stoop	P

Building Size and Massing

Height

2.5 Stories max

Width

Not Regulated

Pedestrian Access

Main Entrance Location	Principal Frontage

LEGEND
The following notations are utilized in this table.

P Permitted

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HOUSE

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-1L | CD-1M | CD-1S | CD-2 | CD-3 | CD-3W | CD-3C | SD-IC

General Description

A medium-sized Building, between 1,200 – 2,400 square feet, designed as a Single-Family Detached Dwelling, situated on a medium or large Lot or Building Site with a yard on all sides,, often shared with an Accessory Building in the rear.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	1 max.

Allowed Private Frontages

Common Yard	P
Fence	P
Porch	P
Stoop	P

Building Size and Massing

Height

2.5 Stories max

Width

Not Regulated

Pedestrian Access

Main Entrance Location	Principal Frontage

LEGEND
The following notations are utilized in this table.

P Permitted

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ESTATE HOUSE

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-1L | CD-1M | CD-1S | CD-2 | SD-IC

General Description

A large Building, greater than 2,400 square feet, designed as a Single-Family Detached Residential Dwelling, situated on a large Lot with a yard on all sides, often shared with an Accessory Building in the rear.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	1 max.

Allowed Private Frontages

Common Yard	P
Fence	P
Porch	P
Stoop	P

Building Size and Massing

Height

2.5 Stories max.

Width

Not Regulated

Pedestrian Access

Main Entrance Location	Principal Frontage

LEGEND
The following notations are utilized in this table.

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DUPLEX

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-2 | CD-3 | CD-3W | CD-3C

General Description

A small- to medium-sized Principal Building, other than a Manufactured Home, situated on a small-to-medium sized Lot or Building Site with a yard on all sides or along the sides, which Building contains two Dwelling Units with separate entrances at least one (1) of which faces the street. Both Dwelling Units, whether side-by-side, front-to-back, or over-and-under, are contained within a single Building Massing.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units / Building	1 / each of 2 attached Buildings

Allowed Private Frontages

Common Yard	P
Fence	P
Porch	P
Stoop	P

Building Size and Massing

Height

2.5 Stories max.

Width

48 ft. max.

Pedestrian Access

Main Entrance Location Principal Frontage

At least one unit must have an individual entry at the Principal Frontage in the form of a Porch, portico or similar architectural feature. If both units' individual entries are located at the Principal Frontage, then each entry shall be in the form of a Porch, portico, or similar architectural feature.

LEGEND
The following notations are utilized in this table.

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TOWNHOUSE

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3 | CD-3W | CD-3C | CD-4 | CD-4W | SD-MC

General Description

A Principal Building in a collection of very narrow- to medium-sized attached Buildings on contiguous Lots or Building Sites with a back yard (or a yard along the side if an end unit), which collection consists of side-by-side Dwelling Units with individual entries facing the street. Each Building occupies the full Frontage Line of its Lot or Building Site and shares at least one party Wall with another Building of the same type.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Townhouse	1 max.
Number of Townhouses connected to other Townhouses	3 min.

Allowed Private Frontages

Porch	P

Allowed Private Frontages (continued)

Stoop	P
Terrace/Lightwell	P

Building Size and Massing

Height

Per Community District Height Standards

Width

12 ft. min. – 36 ft. max. per Townhouse

Pedestrian Access

Main Entrance Location	Principal Frontage

LEGEND
The following notations are utilized in this table.

P Permitted

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SMALL MULTI-FAMILY

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3 | CD-3W | CD-3C | CD-4 | CD-4W

General Description

A Principal Building that incorporates between three (3) and six (6) side-by-side and/or horizontally stacked Dwelling Units, typically with one (1) or more shared entries.

Lot

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	3 min., 6 max.

Allowed Private Frontages

Porch	P
Stoop	P
Forecourt	P
Terrace/Lightwell	P

Building Size and Massing

Height

Per District Height Standards

Width

Per District Lot/Building Site Width and Side Setback / Setback Area Standards

Pedestrian Access

Main Entrance Location	Principal Frontage

LEGEND
The following notations are utilized in this table.

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LARGE MULTI-FAMILY

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3 | CD-3C | CD-4 | CD-4W

General Description

A Principal Building that incorporates seven (7) or more side-by-side and/or horizontally stacked Dwelling Units, which may have one or more shared entries.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	7 min.

Allowed Private Frontages

Porch	P
Stoop	P
Forecourt	P
Terrace/Lightwell	P

Building Size and Massing

Height

Per District Height Standards

Width

Per District Lot/Building Site Width and Side Setback / Setback Area Standards

Pedestrian Access

Main Entrance Location	Principal Frontage

LEGEND
The following notations are utilized in this table.

P Permitted

ARTICLE 4

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LIVE/WORK

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3 | CD-3W | CD-3C | CD-4 | CD-4W | SD-LI | SD-MC

General Description

A small- to medium-sized attached or detached Principal Building, which includes a flexible space for Commercial Use and an internally connected Residential Dwelling Unit above and/or behind the flexible space.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	1 Residential unit per 1 flexible space

Allowed Private Frontages

Stoop	P
Terrace/Lightwell	P
Shopfront	P
Commercialfront	P

Building Size and Massing

Height

Per District Height Standards

Width

18 ft min. - 36 ft max.

Pedestrian Access

Main Entrance Location	Principal Frontage

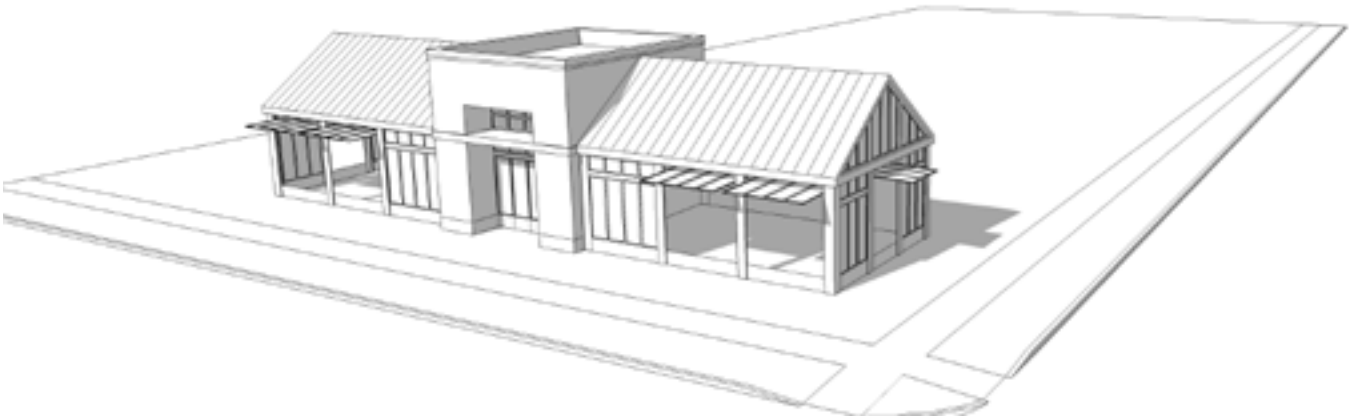
LEGEND
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JEWEL BOX

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3 | CD-3W | CD-4W | SD-LI | SD-MC | CV

General Description

A small Building intended to facilitate Retail/Personal Service, Commercial or Civic Uses.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	1 unit

Allowed Private Frontages

Stoop	P
Terrace/Lightwell	P
Shopfront	P
Commercialfront	P

Building Size and Massing

Height

2 stories max

Width

18 ft min. – 36 ft max.

Pedestrian Access

Main Entrance Location	Principal Frontage

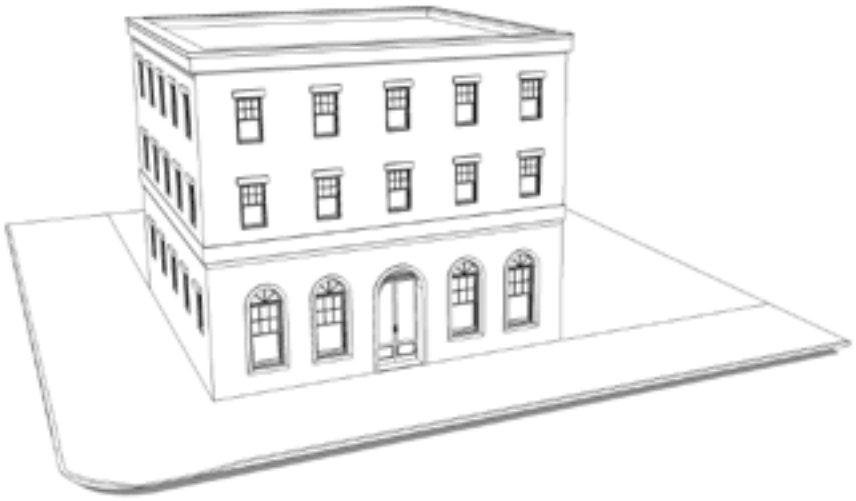
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COMMERCIAL

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3 | CD-3C | CD-4 | CD-4W | SD-MC

General Description

A small- to medium-sized attached or detached non-Residential Building, typically designed to facilitate pedestrian-oriented Retail / Personal Service / Art / Artisan Uses and Office Uses.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	Not Applicable

Allowed Private Frontages

Stoop	P
Terrace/Lightwell	P
Shopfront	P
Commercialfront	P

Building Size and Massing

Height

Per District Height Standards

Width

Per District Lot/Building Site Width and Side Setback Standards

Pedestrian Access

Main Entrance Location	Principal Frontage

LEGEND
The following notations are utilized in this table.

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MIXED USE

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3 **CD-3W** **CD-3C** **CD-4** **CD-4W** **SD-LI** **SD-MC**

General Description

A typically attached Principal Building, which provides a vertical and/or horizontal mix of Uses typically designed to facilitate pedestrian-oriented Retail / Personal Service / Art / Artisan, Accommodations / Lodging, or Office Uses on the ground Story, with upper Stories typically designed for Residential or Office Uses.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	2 min., which must accommodate different Principal Uses

Allowed Private Frontages

Stoop	P	**Terrace**	P
Forecourt	P	**Commercialfront**	P
Terrace/Lightwell	P	**Gallery**[1]	P
Shopfront	P	**Arcade**[1]	P

Allowed Private Frontages (continued)

[1]May only be used in conjunction with a Shopfront or Commercialfront Frontage type.

Building Size and Massing

Height

2 Stories min.; 3.5 Stories max. in CD-3; 6 Stories max. in CD-4

Width

Per District Lot/Building Site Width and Side Setback Standards

Pedestrian Access

Ground Story Units	Principal Frontage
Upper Story Units	Principal or Secondary Frontage

Upper Story units must be accessed by a common entry

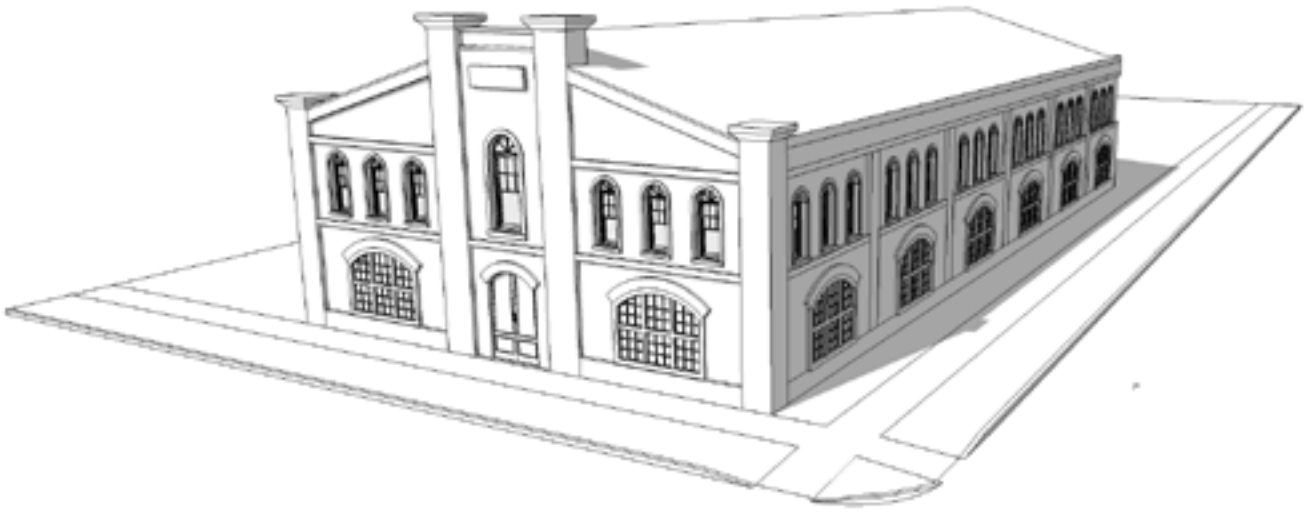
LEGEND
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FLEX

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3 **CD-3C** **CD-4** **CD-4W** **SD-H** **SD-LI** **SD-HI** **SD-MC**

General Description

A large footprint Principal Building designed to accommodate either a single Use or a vertical or horizontal mix of Uses.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Not Regulated

Allowed Private Frontages

Stoop	P	**Terrace**	P
Forecourt	P	**Commercialfront**	P
Terrace/Lightwell	P	**Gallery**[1]	P
Shopfront	P	**Arcade**[1]	P

[1]May only be used in conjunction with a Shopfront or Commercialfront Frontage type.

Building Size and Massing

Height

Minimum as prescribed for applicable Community District; 3 stories max.

Width

Per District Lot/Building Site Width and Side Setback Standards

Pedestrian Access

Main Entrance Location	Principal Frontage

LEGEND
The following notations are utilized in this table.

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MID-RISE

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3C | CD-4 | CD-4W

General Description

An attached or detached Building that may provide a vertical and/or horizontal mix of Uses, typically designed to facilitate pedestrian-oriented Retail / Personal Service / Art / Artisan, Accommodations / Lodging, Commercial, or Office Uses on the ground Story, with upper Stories typically designed for Residential or Office Uses.

Lot / Building Site

Width	Per District Lot/Building Site Width

Number of Units

Units per Building	2 min., which may be Residential or non-Residential

Allowed Private Frontages

Stoop	P	**Terrace**	P
Forecourt	P	**Commercialfront**	P
Terrace/Lightwell	P	**Gallery**[1]	P
Shopfront	P	**Arcade**[1]	P

Allowed Private Frontages (continued)

Pocket Park	P[2]

[1]May only be used in conjunction with a Shopfront or Commercialfront Frontage type.

[2]May only be used in accordance with Table 4.3.7.A and Section 4.3.3.E

Building Size and Massing

Height

4 Stories min.; 8 Stories max, except as otherwise provided within the District

Width

Per District Lot/Building Site Width and Side Setback Standards

Pedestrian Access

Ground Story Units	Principal Frontage
Upper Stories Units	Principal or Secondary Frontage

Upper Stories units must be accessed by a common entry

LEGEND
The following notations are utilized in this table. P = Permitted

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LARGE SCALE COMMERCIAL

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-3C

General Description

A Building of 50,000 square feet or more that is most commonly associated with a large-format retailer. It has in-line retail or liner Buildings along the front of the Building.

Lot

Width	Per District Lot/Building Site Width

Number of Units

N/A

Allowed Private Frontages

Stoop	P	**Terrace**	P
Forecourt	P	**Commercialfront**	P
Terrace/Lightwell	P	**Gallery**[1]	P
Shopfront	P	**Arcade**[1]	P

[1]May only be used in conjunction with a Shopfront or Commercialfront Frontage type.

Building Size and Massing

Height

Per District Building Height Standards

Width

Per District Lot/Building Site Width and Side Setback Standards

Pedestrian Access

Main Entrance Location	Principal Frontage

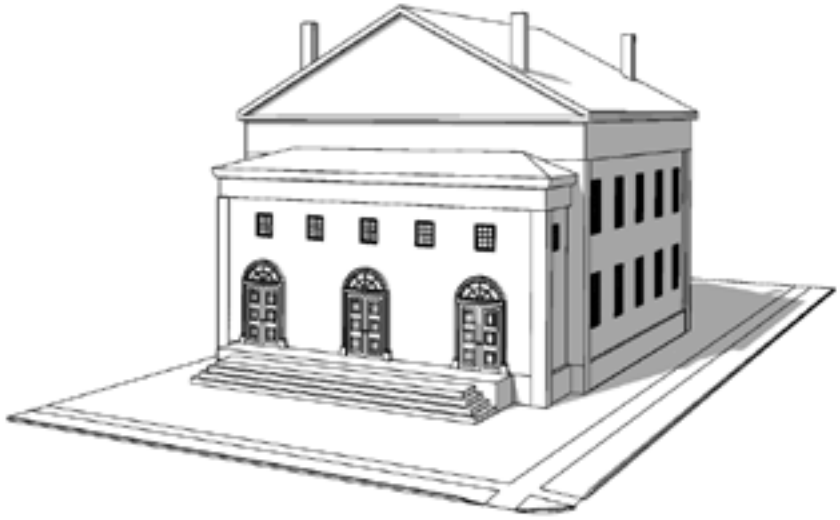
LEGEND
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CIVIC

TABLE 4.3.8.B PRINCIPAL BUILDING TYPES
SPECIFIC STANDARDS



Permitted Districts

CD-1L | CD-1M | CD-1S | CD-2 | CD-3 | CD-3W | CD-3C | CD-4 | CD-4W | SD-LI | SD-MC | CV

General Description

A medium- to large-sized attached or detached Principal Building, which is operated by a governmental entity dedicated to Civic activities, and is designed to stand apart from its surroundings due to the specialized nature of its Civic purpose. Examples include Libraries, Places of Assembly, Courthouses, City Halls, schools, centers of government, Performing Arts Venues, and Museums. Civic Buildings are often the most prominently sited and architecturally significant Buildings in a community.

Lot / Building Site

Width	N/A

Number of Units

N/A

Building Size and Massing

Height

The height of Civic Buildings shall be limited to 20 additional feet above the maximum allowed Height in any Adjacent District.

Width

Not Regulated

Pedestrian Access

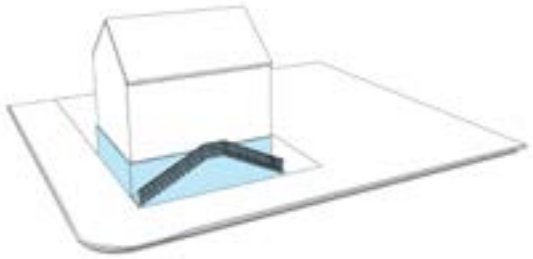
Except as specifically provided in this Article, Civic Buildings are not subject to the Building, Lot / Building Site or Private Frontage requirements of this Article.

LEGEND
The following notations are utilized in this table.

P Permitted

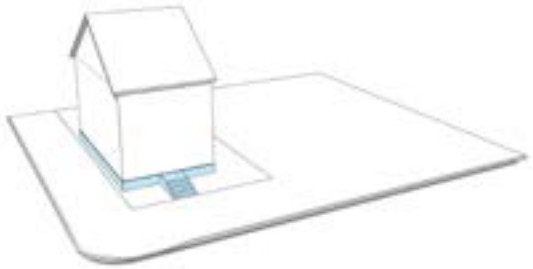
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ILLUSTRATION 4.3.7.C.3 (GRAND STAIR STRATEGY)



4. Base Strategy. In this strategy the Lowest Floor is raised with a stoop and stair, as illustrated generally in **Illustration 4.3.7.C.4 (Base Strategy)**. The location along the Facade will be based on the Principal Entrance location. This strategy is generally used for Residential Uses, but may be considered for Commercial Uses.

ILLUSTRATION 4.3.7.C.4 (BASE STRATEGY)



4.3.8 Building Types

A. General.

Principal Buildings must be of one or more of the Principal Building Types specified for such District in **Table 4.3.8.A (Principal Building Types – Summary)** and **Table 4.3.8.B (Principal Building Types – Specific Standards).**

4.3.9 Uses

A. General.

1. Buildings and Lots or Building Sites must comply with the Use standards and requirements of this Section 4.3.9.

2. Principal Uses, Accessory Uses, and Temporary Uses are Permitted by Right ("P"), Permitted by Right with Limitations ("PL"), as Special Permit Uses ("SPU"), or Not Permitted ("NP") within each District, in each case as indicated in **Table 4.3.9.A (Building, Lot & Building Site Principal Uses)**, **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)**, and **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)**.

3. Principal Uses, Accessory Uses, or Temporary Uses, as applicable, of Buildings and Lots or Building Sites which are indicated in **Table 4.3.9.A (Building & Lot Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), or Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Permitted ("P"), Permitted by Right with Limitations ("PL"), or as Special Permit Uses ("SPU"), are permitted within each District, subject to compliance with all applicable standards, conditions and requirements thereof and obtaining all applicable approvals and permits therefor, including without limitation in the case of Uses Permitted by Right with Limitations ("PL") and Special Permit Uses ("SPU"), compliance with the applicable Use standards of Section 4.3.11.F, and in the case of Special Permit Uses ("SPU"), a Special Permit pursuant to Section 8.4.8.

4. Without limitation, Accessory Uses must be subordinate and customarily incidental to a permitted Principal Use on the Lot.

5. Multiple Principal Uses that are allowed within a District may exist within a single Building, Lot, or Building Site, subject to compliance with all other applicable standards and requirements.

B. Uses Permitted by Right.

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Principal Uses, Accessory Uses, or Temporary Uses, as applicable, of Buildings, Lots, and Building Sites, which are indicated for each District in **Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses),** or **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Permitted ("P") are allowed by right, subject to compliance with all other applicable provisions of these Regulations.

C. Additional Standards for Uses of a certain size.

In addition to the Use standards listed in **Table 4.3.9.A (Building, Lot & Building Site Principal Uses)** and **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses):**

1. Any proposed Building, with a Footprint of 5,000 sqaure feet or more or a gross Floor Area of 20,000 square feet or more shall be subject to Section 8.4.5, Site Plan Review, unless a Special Permit is required in which case the Building is subject to Section 8.4.8, Special Permits.

2. Any change in Use with a gross Floor Area of twenty thousand (20,000) square feet or more shall be subject to Section 8.4.5, Site Plan Review, unless a Special Permit is required in which case the Use is subject to Section 8.4.8, Special Permits.

D. Prohibited Uses.

Except as otherwise determined by the Planning and Zoning Director pursuant to Section 8.2.1 with respect to a Use that is not specifically listed as Permitted ("P"), Permitted by Right with Limitations ("PL"), or as a Special Permit Use ("SPU") in **Table 4.3.9.A (Building & Lot Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses),** or **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)**, and any Use that is specifically listed Not Permitted ("NP") in such applicable Table or is otherwise prohibited pursuant to any other provision of the City Code, is prohibited.

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
RESIDENTIAL															
Boarding or Rooming Houses	NP	NP	NP	NP	SPU	SPU	SPU	SPU	SPU	NP	NP	SPU	NP	NP	NP
Community Residences	NP	NP	SPU	SPU	SPU	SPU	SPU	SPU	SPU	NP	NP	NP	NP	NP	NP
Congregate Housing	SPU L **	SPU L	SPU L	SPU L	P <12 units; SPU 12+ units	NP	SPU	SPU	SPU	NP	NP	NP	NP	SPU	NP
Dormitory	NP	NP	NP	NP	PL	NP	PL	PL	NP	NP	NP	NP	NP	NP	P
Elderly Housing Units	NP	NP	SPU L	SPU L	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Group Home	PL	PL	PL	PL	SPU	NP	SPU	SPU	NP	NP	NP	NP	NP	NP	NP
Halfway House	PL	PL	PL	PL	PL	NP	NP	PL	NP	NP	NP	NP	NP	NP	NP
Large Multifamily Building	NP	NP	NP	NP	PL	NP	PL	PL	PL	NP	NP	NP	NP	SPU	NP
Residential Portion of Flex Building Type	NP	NP	NP	NP	P	NP	PL	P	P	NP	NP	PL	NP	PL	NP
Residential Portion of Live/Work Building Type	NP	NP	NP	NP	P	P	P	P	P	NP	NP	PL	NP	PL	NP
Residential Portion of Mid-Rise Building Type	NP	NP	NP	NP	NP	NP	PL	PL	PL	NP	NP	NP	NP	NP	NP
Residential Portion of Mixed Use Building Type	NP	NP	NP	NP	PL	PL	PL	PL	PL	NP	NP	PL	NP	PL	NP
Single-Family Detached Dwelling	P *	P	P	P	P	P	P	NP	NP	NP	P	NP	NP	NP	NP
Small Multifamily Building	NP	NP	NP	NP	PL	PL	PL	PL	PL	NP	NP	NP	NP	SPU	NP
Townhouse	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	SPU L	NP
Two-Family Detached Dwelling	NP	NP	NP	P	P	P	P	NP	NP	NP	NP	NP	NP	NP	NP

LEGEND The following notations are utilized in this table.
L Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
LODGING															
Bed & Breakfast	SPU L	SPU L	SPU L	SPU L	P	P	P	P	P	NP	NP	NP	NP	NP	NP
Extended Stay Hotel	NP	NP	NP	NP	NP	NP	SPU L	PL	NP	NP	NP	NP	NP	NP	NP
Hotel	NP *	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	SPU	NP
Inn	NP *	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	NP	NP
Lodge	SPU L	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Motel	NP	NP	NP	NP	NP	NP	P	NP	NP	NP	NP	NP	NP	NP	NP
OFFICE															
Business Service Establishment	NP	NP	NP	NP	PL	PL	P	P	P	NP	NP	P	NP	SPU	NP
Financial institutions	NP	NP	NP	NP	PL	PL	P	P	P	NP	NP	PL	NP	NP	NP
Government Agencies & charitable organizations	NP	NP	NP	NP	P	P	P	P	P	P	NP	PL	NP	P	P
Medical office	NP	NP	NP	NP	PL	PL	P	P	P	P	NP	PL	NP	NP	SPU
Offices	NP	NP	SPU L	SPU L	PL	PL	P	P	P	P	NP	PL	NP	P	P
COMMERCIAL															
RECREATIONAL & ENTERTAINMENT USES															
Adult Day Care Facility	NP	NP	NP	NP	P	P	P	P	P	P	NP	P	NP	NP	NP
Amphitheater	NP	NP	NP	NP	PL	PL	PL	SPU	SPU	NP	NP	PL	NP	NP	P
Automobile Trailer Park	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
Commercial Recreation Establishment	NP	NP	NP	NP	NP	NP	PL	PL	PL	NP	NP	NP	NP	NP	NP
Event Space	SPU ***	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Golf Club	SPU	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU

LEGEND The following notations are utilized in this table.

[L] Limitations also required

*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay

**Not Permitted in Silvermine Tavern Village District Overlay

***Permitted by Special Permit in Silvermine Tavern District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Health Club	NP	NP	NP	NP	PL	PL	P	P	P	NP	NP	P	NP	NP	NP
Social clubs	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	NP	P
Theater	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	NP	P
PARKING															
Parking Lot	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P
Parking Structure	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P
DINING & ALCOHOLIC BEVERAGE ESTABLISHMENTS															
Brew Pub/Distillery	NP	NP	NP	NP	P	P	P	P	P	NP	NP	P	P	NP	NP
Restaurant	NP*	NP	NP	NP	PL	PL	P	P	P	NP	NP	NP	NP	P	SPU L
RETAIL & PERSONAL SERVICE USES															
Animal Care Center	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	SPU L	SPU L	NP	NP
Artist Live/Work	NP	NP	NP	NP	SPU L	SPU L	SPU L	SPU L	SPU L	NP	NP	SPU L	NP	SPU L	P
Artist Studio or Workspace	NP	NP	NP	NP	P	P	P	P	P	NP	NP	P	P	P	P
Cannabis Delivery Service	NP	NP	NP	NP	NP	NP	PL	NP	NP	NP	NP	PL	PL	NP	NP
Cannabis Dispensary Facility	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
Cannabis Hybrid Retailer	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
Cannabis Retailer	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
Development Park	NP	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP
Funeral Home	NP	NP	NP	NP	SPU	NP	SPU	NP	NP	NP	NP	NP	NP	NP	NP
Medical Marijuana Dispensary	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	NP	NP	NP	NP

LEGEND The following notations are utilized in this table.
[L] Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Personal Service Establishment	NP	NP	NP	NP	PL	PL	P	P	P	NP	NP	P	NP	P	NP
Printing Establishment	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	P	NP	NP
Retail Sales	SPU L	SPU L	SPU L	SPU L	PL	PL	P	P	P	NP	NP	NP	NP	NP	NP
Tobacco/Vape shop	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
ADULT USES															
Adult Use Establishment	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	PL	NP	NP	NP
CIVIC															
RELIGIOUS FACILITIES															
Religious Facilities	SPU L	SPU L	SPU L	SPU L	P	P	P	P	P	NP	NP	NP	NP	P	NP
CIVIL SUPPORT															
Cemetery	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P
Firehouse/Police Station	P **	P	P	P	P	P	P	P	P	NP	NP	P	P	P	P
CULTURAL & ENTERTAINMENT															
Amphitheater	NP	NP	NP	NP	PL	PL	PL	SPU	SPU	NP	NP	PL	NP	NP	P
Auditorium, Community Center, or other Place of Assembly	NP	NP	NP	NP	PL	PL	PL	PL	PL	P	NP	NP	NP	NP	P
Library	NP	NP	NP	NP	P	P	P	P	P	P	NP	NP	NP	NP	P
Maritime Center	NP	NP	NP	NP	NP	P	P	P	P	NP	NP	NP	NP	P	P
Museum	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	P	PL
Performing arts theater	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	P	PL
RECREATION															
Community Garden	P	P	P	P	P	P	P	P	P	NR	NR	NR	NR	NR	P

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Green	P	P	P	P	P	P	P	P	P	NR	NR	NR	NR	NR	P
Open Space	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR
Park	P	P	P	P	P	P	P	P	P	NR	NR	NR	NR	NR	P
Playground	P	P	P	P	P	P	P	P	P	NR	NR	NR	NR	NR	P
Plaza	NP	NP	NP	NP	P	P	P	P	P	NR	NR	P	NR	NR	P
Pocket Park	P	P	P	P	P	P	P	P	P	NR	NR	P	NR	NR	P
Sport Field	P	P	NP	NP	P	NP	NP	NP	NP	NR	NR	NP	NR	NR	P
Square	NP	NP	NP	NP	P	P	P	P	P	NR	NR	P	NR	NR	P
TRANSPORTATION															
Boat Terminal	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	SPU	SPU	P
Bus Storage Terminal	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	P	NP	NP
Municipal Public Parking	NP	NP	NP	NP	P	P	P	P	P	NP	NP	P	P	P	P
Railroad Station	NP	NP	NP	NP	SPU	NP	SPU	SPU	SPU	NP	NP	SPU	SPU	SPU	P
Transportation Terminals	NP	NP	NP	NP	SPU	SPU	SPU	SPU	SPU	NP	NP	SPU	SPU	SPU	P
OTHER CIVIC USES NOT SPECIFICALLY LISTED UNDER ANY CATEGORY	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P
AGRICULTURAL															
Farmers market	NP	NP	NP	NP	P	P	P	P	P	NP	NP	P	NP	NP	P
Landscape Nursery	NP	NP	NP	NP	NP	NP	P	NP	NP	NP	NP	P	NP	NP	NP
INSTITUTIONAL															
HEALTHCARE															

LEGEND The following notations are utilized in this table.
[L]Limitations also required
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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Convalescent/Nursing/ Rest Home	SPU L	SPU L	SPU L	SPU L	SPU	SPU	SPU	SPU	SPU	P	NP	SPU	NP	NP	NP
Hospital	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	NP	NP	NP	NP	NP
EDUCATION															
Child Day-Care Center	SPU L	SPU L	SPU L	SPU L	PL	PL	PL	PL	PL	PL	NP	NP	NP	PL	PL
College or University	NP	NP	NP	NP	SPU	SPU	SPU	SPU	SPU	SPU	NP	NP	NP	NP	SPU
Elementary or Secondary School	SPU L	SPU L	SPU L	SPU L	SPU	NP	P	P	P	SPU	NP	NP	NP	NP	SPU
School or Institution for the disabled	SPU L	SPU L	SPU L	SPU L	SPU	SPU	SPU	SPU	SPU	SPU	NP	SPU	NP	NP	SPU
Trade or Vocational School	NP	NP	NP	NP	PL	PL	PL	PL	PL	PL	NP	PL	PL	SPU L	PL
Youth Day Camp	NP	NP	NP	NP	P	P	P	P	NP	SPU	NP	NP	NP	NP	P
MARINE & VESSEL USES															
MARINE															
Boat-Building facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Boat repair and service facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Boat sales, rental or leasing	NP	NP	NP	NP	NP	P	P	NP	P	NP	NP	P	P	P	NP
Boat storage	NP	NP	NP	NP	NP	P	P	NP	P	NP	NP	P	P	P	NP
Commercial boat dock	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Commercial fishing facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Finfish and shellfish processing plant	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	SPU	P	P	NP

LEGEND The following notations are utilized in this table.
L Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Harbor/Port Facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
INDUSTRIAL PROCESSING FACILITIES DEPENDENT ON WATERBORNE TRANSPORTATION FOR THE SUPPLY OF PRODUCTS	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	NP	NP
Marina	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Marine Enforcement Facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Marine Research Laboratory	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Marine Supply Store	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Recreational boating or fishing facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Sail Loft	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	NP	NP	P	NP
Ship Chandlery	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Shipyard	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Waterfront Club	SPU L	SPU L	SPU L	SPU L	SPU L	PL	SPU L	SPU L	PL	NP	NP	NP	NP	PL	PL
OTHER WATER-DEPENDENT USES NOT SPECIFICALLY LISTED UNDER ANY CATEGORY	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	NP	NP	P	NP
AUTOMOTIVE USES															
Car Club	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP
Motor Vehicle Body Shop	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	SPU	NP	NP	NP

LEGEND The following notations are utilized in this table.
[L] Limitations also required
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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Motor Vehicle Maintenance, Repair, Fuel Sales, Service or Cleaning	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	SPU L	NP	SPU	NP
Motor Vehicle Sales, Rental or Leasing	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
INDUSTRIAL & UTILITIES															
INDUSTRIAL															
Building Materials Storage Yards	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P <20,000 SF / SPU >20,000 SF	NP	NP
Cannabis Cultivator	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP
Cannabis Food & Beverage Mfg.	NP	NP	NP	NP	NP	NP	PL	SPU L	NP	NP	NP	PL	PL	NP	NP
Cannabis Product Manufacturer	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP
Cannabis Micro Cultivator	NP	NP	NP	NP	NP	NP	SPU L	SPU L	NP	NP	NP	PL	PL	NP	NP
Cannabis Producer	NP	NP	NP	NP	NP	NP	SPU L	SPU L	NP	NP	NP	PL	PL	NP	NP
Cannabis Product Packager	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP
Cannabis Transporter	NP	NP	NP	NP	NP	NP	PL	NP	NP	NP	NP	PL	PL	NP	NP
Commercial Vehicle Storage Yard	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	P	NP	NP
Composting Centers	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	SPU	NP	NP
Concrete Plants	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Distribution (Fulfillment) Facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP

LEGEND The following notations are utilized in this table.
LLimitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Earth Processing and Contractor's Materials Storage Yard	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Indoor Contractor Facility	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	PL	P	NP	NP
Junkyard	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	NP	NP
Manufacturing & Processing, Boutique	NP	NP	NP	NP	SPU	SPU	PL	P	P	NP	NP	P	P	NP	NP
Manufacturing & Processing, Light	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	PL	P	NP	NP
Manufacturing & Processing, Heavy	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	NP	NP
Natural Gas Storage	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Oil or Petroleum Storage Facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Propane Gas Storage	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Recycling Operations	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	SPU	NP	NP
Research and Development Facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	P	NP	NP
Robot Competition Venue	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	SPU L	NP	NP	NP
Rock Crushing/ Processing Facility (Indoor only)	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Self-Storage Facility	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
Solid Waste Transfer Station	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Warehouse	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP

LEGEND The following notations are utilized in this table.
[L] Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
UTILITIES															
Municipal Sewage Treatment Facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	NP	NP
Municipal Utility Plant or Storage Yard	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	SPU	NP	NP
Public Utility Supply and Storage	SPU L	SPU L	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU
Wireless Telecommunications Facility	SPU	NP	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU

E. Accessory Uses.

1. Accessory Uses are Permitted by Right ("P"), Permitted by Right with Limitations ("PL"), as Special Permit Uses ("SPU"), or Not Permitted ("NP"), as indicated in **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)**.

2. Those Uses shown in **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)** as "P" (Permitted Accessory Use) are permitted in the applicable District, as indicated, if subordinate and customarily incidental to a permitted Principal Use existing on the Lot or Building Site.

3. Those Uses shown in **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)** as "SPU" (Special Permit Use) are permitted in the applicable District, as indicated, if compliant with all applicable standards, requirements and conditions of Section 4.3.9.F, and subject to issuance of a Special Permit pursuant to Section 8.4.8.

4. Those Uses shown in **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)** as "PL" (Permitted by Right with Limitations) are permitted

5. In the applicable District, as indicated, if compliant with all applicable standards, requirements and conditions of Section 4.3.9.F.

LEGEND The following notations are utilized in this table.
L Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.D BUILDING, LOT & BUILDING SITE ACCESSORY USES

ACCESSORY USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Accessory Dwelling Unit	PL	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	NP
Automated Parking	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	NP	NP	NP
Boathouses, Boat Landings, and Boat Docks (when not conducted as a business)	P	P	P	P	NP	P	NP	NP	P	NP	NP	NP	NP	P	NP
Boat Storage	PL	PL	PL	PL	PL	PL	PL	NP	PL	NP	PL	PL	PL	PL	P
Boutique Manufacturing	NP	NP	NP	NP	PL	PL	PL	PL	PL	P	NP	P	P	NP	NP
Cellular Antenna	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL
Commercial Communication Antenna	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL
Drive-Through Facilities	NP	NP	NP	NP	NP	NP	PL	NP	NP	P	NP	NP	NP	NP	NP
Electric Power Generator	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL
Emergency Communication Antenna	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL
Family Day-Care Home	P	P	P	P	P	P	P	NP	NP	NP	NP	NP	NP	NP	NP
Garage	P	P	P	P	P	P	P	P	P	NP	NP	NP	NP	NP	NP
Greenhouse	P	P	P	P	P	P	P	P	P	NP	NP	P	P	NP	NP
Green Roof	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Group Day-Care Home	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	NP	NP	NP

LEGEND The following notations are utilized in this table.
[L]Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.D BUILDING, LOT & BUILDING SITE ACCESSORY USES

ACCESSORY USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Helicopter Landing Site	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP
Home Office, Occupation, or Business	PL	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	PL	NP	PL	NP
Industrial office and/or showroom space	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP
Live Music	NP *	NP	PL	NP	PL	PL	PL	PL	PL	NP	NP	PL	NP	PL	P
Municipal Motor Vehicle repair facility as part of municipal off-street public parking facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU
Neighborhood Clubhouse	P	P	P	P	P	P	P	P	NP	NP	NP	NP	NP	NP	NP
Nursery School within Religious Institution	SPU	SPU	SPU	SPU	P	P	P	P	P	NP	NP	NP	NP	P	NP
Outdoor Dining	PL	PL	PL	PL	PL	PL	PL	PL	PL	P	NP	PL	NP	PL	NP
Parking Area	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Parking Structure	NP	NP	NP	NP	P	P	P	P	P	P	NP	P	P	P	P
Retail Sales of goods manufactured, warehoused, or distributed on premises	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	NP	PL	PL	NP	NP
Rooftop Garden	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Ship Storage	SPU L	SPU L	SPU L	SPU L	NP	PL	PL	NP	PL	NP	PL	PL	PL	PL	P
Solar Panels – Freestanding	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	P
Sports Court	PL	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	NP

LEGEND The following notations are utilized in this table.
[L] Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.D BUILDING, LOT & BUILDING SITE ACCESSORY USES

ACCESSORY USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Solar Panels – Roof Mounted	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	P
Storage of commercial vehicle(s)	PL **	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	SPU L	PL	PL	NP
Storage of not more than one unregistered vehicle	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Warehousing	NP	NP	NP	NP	PL	PL	PL	PL	PL	NP	NP	PL	PL	PL	PL
Other Accessory Uses which are incidental to, subordinate to, and customarily associated with a Principal Use	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P

F. Temporary Uses

1. Temporary Uses indicated in **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Permitted ("P") are allowed by right, subject to the issuance of a Temporary Use Permit.

2. Temporary Uses indicated in **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Permitted by Right with Limitations ("PL") are allowed by right provided that the applicable standards and requirements are met, subject to the issuance of a Temporary Use Permit.

3. Temporary Uses indicated in **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Not Permitted ("NP"), not allowed as Permitted ("P") or allowed as a Permitted by Right with Limitations ("PL"), or otherwise prohibited by these Regulations are prohibited as Temporary Uses.

LEGEND The following notations are utilized in this table.
[L] Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.E BUILDING & LOT/BUILDING SITE TEMPORARY USES

TEMPORARY USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Portable Storage Container	PL **	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	P
Seasonal Uses or Uses for Unusual Non-Recurrent Events, for no more than 30 days	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Tag/Garage/Yard Sale	PL **	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	NP

G. Uses Permitted with Limitations.

1. Any Principal Use, Accessory Use, or Temporary Use shown for the applicable District as Permitted by Right with Limitations ("PL") or permitted as a Special Permit Use with Limitations (SPU-L) on **Table 4.3.9.A (Building & Lot Principal Uses)**, **Table 4.3.9.D (Building & Lot Accessory Uses)**, or **Table 4.3.9.E (Building & Lot Temporary Uses)**, is allowed subject to compliance with all applicable conditions and requirements imposed by this Section 4.3.9.F.

2. The conditions and requirements applicable to any Use Permitted by Right with Limitations or permitted as a Special Permit Use with Limitations (SPU-L) shall be enforceable, and failure to comply with any condition or requirement shall subject such Use to revocation pursuant to Section 8.5.2

3. A Use permitted as a Special Permit Use with Limitations (SPU-L) **Table 4.3.9.A (Building & Lot Principal Uses)**, **Table 4.3.9.D (Building & Lot Accessory Uses)**, or **Table 4.3.9.E (Building & Lot Temporary Uses)** or as a Special Permit Use (SPU) shall be subject to review, approval, and issuance of a Special Permit pursuant to Section 8.4.8.

4. The following standards shall apply only to those Districts and Uses where the "PL" or "SPU-L" is designated on the applicable **Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)**, or **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)**, as applicable:

LEGEND The following notations are utilized in this table.
[1]Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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a. Accessory Dwelling Units shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The Accessory Dwelling Unit is located on the same Lot as a Single-Family Dwelling;

(2) A property shall be limited to one (1) Accessory Dwelling Unit;

(3) Any proposed detached Accessory Dwelling Units require a Site Plan approval from the Planning and Zoning Commission as indicated in Section 8.4.5.1

(4) The Accessory Dwelling Unit shall not be located closer to the front Lot/Building Site line than the single-family Dwelling;

(5) Shall meet the minimum Side and Rear Setbacks for Principal Structures within the District, except that detached Accessory Buildings in existence prior to the effective date of these Regulations that are within the Side and/or Rear Setback are permitted to be used as an Accessory Dwelling Unit provided that all other standards are met;

(6) The owner of the property must reside on the premises;

(7) The minimum rental duration shall be no less than six (6) months; and

(8) Properties utilizing public sewer and/or water shall be subject to approval by the Norwalk WPCA and the local water authority. Properties utilizing private water and/or septic systems shall be subject to approval by the Norwalk Health Department; and

(9) Accessory Dwelling Units shall not exceed fifteen (15) feet in height when located less than twenty (20) feet from a Side and Rear Lot/Building Site Line, or twenty (20) feet in height when located twenty (20) feet or more from a Side and Rear Lot/Building Site Line; and

(10) Attached Accessory Dwelling Units shall not exceed 1,000 square feet in floor area; and

(11) Detached Accessory Dwelling Units shall not exceed 700 square feet; and

(12) An Accessory Dwelling Unit, whether attached or detached, shall be designed to maintain the architectural design, style, and appearance of the existing single-family Dwelling located on the property; and

(13) All Accessory Dwelling Units must be located on and affixed to a permanent foundation; and

(14) Mobile homes, recreational vehicles, travel trailers, shipping containers, storage containers and any other wheeled or transportable Structures shall not be used as an Accessory Dwelling Unit; and

(15) That one (1) additional off-street Parking space shall be provided for the Accessory Dwelling Unit and that no existing conforming Parking spaces that are required to meet the minimum parking requirements for the zone shall be removed as part of the application; and

(16) Applications for Accessory Dwelling Units shall be subject to approval by the Planning and Zoning Director; and

(17) A certificate in the form of an affidavit which verifies that the owner continues to reside on the premises, the minimum rental duration and all other conditions met at the time of the original application remain unchanged shall be submitted to the Planning and Zoning Director by January 31 of each year.

b. Adult Use Establishment shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No Adult Use Establishment shall be allowed within one thousand (1,000) feet of another existing Adult Use Establishment. The one thousand (1,000) feet shall be measured as a straight airline distance, without regard to

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intervening terrain or the actual means of travel between the two (2) points, from the entrance of the proposed Adult Use Establishment to the Lot/Building Site line of an existing Adult Use Establishment, as certified by a licensed surveyor;

(2) No Adult Use Establishment shall be located within five hundred (500) feet of an existing place of worship, school or community center. The five hundred (500) feet shall be measured as a straight airline distance, without regard to intervening terrain or the actual means of travel between the two points, from the entrance of the proposed Adult Use Establishment to the Lot/Building Site line with an existing place of worship, school or community center, as certified by a licensed surveyor;

(3) No Adult Use Establishment shall be located within two hundred (200) feet of a residence zone. The two hundred (200) feet shall be measured as a straight airline distance, without regard to intervening terrain or the actual means of travel between the two points, from the entrance of the proposed Adult Use Establishment to the boundary of the residence zone;

(4) No Adult Use Establishment shall be conducted in any manner that permits the observation from any public right-of-way of any material depicting, describing or relating to the adult use activities or products located therein, specifically those activities or products in the adult use definition; and

(5) Shall require approval of a Special Permit pursuant to Section 8.4.8.

c. Amphitheater (Civic) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) It shall comply with the City of Norwalk Noise Control Ordinance;

(2) Any lighting provided at such facilities shall be designed so that no direct light falls on Adjacent Residential property.

d. Amphitheater (Commercial) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) It shall comply with the City of Norwalk Noise Control Ordinance;

(2) Any lighting provided at such facilities shall be designed so that no direct light falls on Adjacent Residential property.

e. Animal Care Center shall be permitted in accordance with the applicable Use Table provided that facilities that provide overnight boarding of dogs are subject to the following:

(1) It shall be fully enclosed within a Structure located on a lot a minimum of two (2) acres in size;

(2) The Structure is located a minimum of two hundred (200) feet from a Residential Structure as certified by a licensed surveyor;

(3) That adequate provisions are made to control noise and odors emanating from the facility; and

(4) Shall require approval of a Special Permit pursuant to Section 8.4.8.

f. Artist Live/Work shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) They are part of a rehabilitation, preservation or addition to an existing Structure listed on a local, state or national historic inventory;

(2) The Commission shall refer the Application to the Arts Commission for review and consideration. If the Arts Commission does not endorse the Application, a 2/3 majority vote of the Planning and Zoning Commission is

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required for approval;

(3) Each unit is consistent with the provisions of the Housing Code, Fire Marshal Code and Building Code;

(4) Units are at least seven hundred fifty (750) square feet in size;

(5) Artist Live/Work spaces are subject to Workforce Housing requirements in accordance with Section 6.12.

(6) The Use, including storage of materials or products, shall occur only within an enclosed Building;

(7) All noise, vibration, smoke, dust or other particulate matter, heat, humidity, glare or other effect shall comply with City standards relating to noise, light, dust and odors; and

(8) Shall require approval of a Special Permit pursuant to Section 8.4.8.

g. Auditorium, Community Center or other Place Of Assembly shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The locations, size and design of such facilities shall be situated so that the proposed Development shall be compatible with the Development within the surrounding area thus reducing the impact upon the surrounding area;

(2) Any lighting provided at such facilities shall be designed so that no direct light falls on Adjacent Residential property; and

(3) Accessory Uses may be permitted in conjunction with the Principal Use of the property provided that such uses are physically designed as a part of or within the Principal Structure. Such Uses may include food sales, beverage sales, gift or souvenir shops, and similar activities.

h. Automobile Trailer Park shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No new Automobile Trailer Parks are permitted. Any expansion or alteration of an existing Automobile Trailer Park, shall require approval of a Special Permit pursuant to Section 8.4.8.

i. Bed & Breakfasts shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) They are only located on parcels that contain 1.5 times the minimum Lot Area for the underlying zone,

(2) The Building Typology is consistent with the permitted Structures in the zone,

(3) No more than six (6) rooms shall be offered for overnight guest accommodations,

(4) All parking is located to the rear of the Structure and is not visible from Abutting Parcels,

(5) Parking shall not be located within any Yard Setbacks,

(6) There is a minimum ten (10) foot landscape buffer between the subject Parcel and any Abutting residential Parcel.

j. Boat Storage shall be permitted in accordance with the applicable Use Tabl, subject to the following:

(1) May be accessory to any Marine & Vessel Use as listed in Table 4.3.9.A subject to the following:

(a) The area dedicated to Boat Storage shall be in the Rear Yard only and must be Screened from Frontage and Civic Space by Building(s), Streetscreen, or landscaping.

(2) May be accessory to a Single-Family

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Detached Dwelling or a Two-Family Detached Dwelling/Duplex subject to the following:

(a) No more than two (2) Boats shall be stored on a Property which may include a Trailer/towing mechanism for transport (not more than one (1) Trailer/towning mechanism per allowed Boat).

(b) All Boats shall be stored in the Rear Yard only.

k. Boutique Manufacturing (Accessory Use) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Boutique manufacturing shall be allowed as an Accessory Use to a permitted retail Use, subject to compliance with the following requirements:

(a) Such boutique manufacturing shall not exceed three thousand (3,000) square feet in area and shall be directly related to the Principal permitted retail Use; and

(b) All manufacturing activity, including the storage of all equipment, materials and products, shall occur inside the Building; no outside storage of any kind is permitted; and

(c) Only manufacturing processes that are not offensive with regard to noise, light, dust and odors, and which have the same or lesser impact than the Principal retail Use are permitted; and

(d) The manufacturing activity shall occupy an area of no more than sixty percent (60%) of the gross floor area occupied by the associated retail establishment; and

(e) The manufacturing process is principally artisan or fabrication by hand, and shall not include mass production or assembly line operations; and

(f) The manufacturing operations will not generate excessive traffic volumes or truck traffic in excess of that typically occurring in the adjacent District or neighborhood; all loading activity shall occur during daytime hours only.

l. Business Service Establishment shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) 2,500–5,000 square feet requires Site Plan Review, if greater than 5,000 square feet it shall require approval of a Special Permit pursuant to Section 8.4.8.

m. Cannabis Cultivator shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to

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the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

n. Cannabis Delivery Service shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to

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the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Delivery Services and Transporters located within an industrial zone shall be permitted and subject to the same conditions as Commercial Vehicle parking.

(16) Said facilities comply with all applicable Site Plan standards of these regulations.

(17) Delivery Services and Transporters shall be considered a warehousing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

o. Cannabis Dispensary Facility shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as

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may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Within the City, there shall be a maximum of

(a) Three (3) Retailers; or

(b) Three (3) Hybrid Retailers; or

(c) Two (2) Retailers and one (1) Hybrid Retailer; or

(d) One (1) Retailer and two (2) Hybrid Retailers.

(16) Said facilities shall be located and accessed from a Commercial Thoroughfare street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(17) Said facilities shall be located on a parcel that meets the minimum lot standards for the zone.

(18) Said facilities comply with all applicable Special Permit standards pursuant to Section 8.4.8. of these regulations.

(19) Retailers, Dispensary Facilities and Hybrid Retailers shall be considered a retail use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(20) Dispensary Facilities, Hybrid Retailers, and Retailers shall operate only between the hours of Monday through Saturday 9:00 AM to 8:00 PM, and on Sundays from 9:00 AM to 6:00 PM.

(21) No Dispensary Facilities, Hybrid Retailer, or Retailer shall be located within one-thousand (1,000) feet of a child day care center, nursery/pre-kindergarten, kindergarten, elementary or secondary school, college or university, or within five hundred (500) feet of any charitable institution, including any offices thereof, whether supported by public or private funds, healthcare facility, municipal building used for public gathering (City Hall, libraries, concert halls, etc.), public park, public recreation area, licensed adult day care center, dependency treatment center, shelter for the homeless, transitional housing facility, or place of worship. The distance shall be measured in a straight line from the nearest legal parcel boundary line of the land used for said purpose to the main pedestrian entrance of the cannabis hybrid

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retailer or cannabis retailer. To comply with the distance restrictions in this section, the applicant shall submit an area plan showing the location of the proposed Dispensary Facility, Hybrid Retailer or Retailer, indicating the name and address of any of the uses to which said distance restrictions apply. The area plan shall also include the name, address, and seal of the individual or firm preparing said plan; north point or arrow; graphic scale; and intervening lot lines, roads, driveways, and intersections in sufficient detail for orientation to the area, and any additional information deemed necessary by the Commission to determine compliance with this section. The area plan shall be prepared, signed and sealed by a land surveyor licensed and registered in the State of Connecticut.

(22) No lot, upon which contains a Dispensary Facility, Hybrid Retailer, or Retailer, shall be closer than one (1) mile from another lot, which contains a Dispensary Facility, Hybrid Retailer, or Retailer. The distance shall be measured in a straight line from the nearest legal parcel boundary line of one lot to the nearest legal parcel boundary line of the other lot.

(23) For up to thirty days after the opening of a Retailer or Hybrid Retailer, the Commission may require the applicant reimburse the City for reasonable costs incurred for the provision of public safety services in relation to the grand opening of the facility, including, but not limited to, public safety costs incurred to direct traffic, not to exceed fifty thousand dollars.

p. Cannabis Food & Beverage Mfg. shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy

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of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off–street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off–street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

q. Cannabis Hybrid Retailer shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of

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Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Within the City, there shall be a maximum of

(a) Three (3) Retailers; or

(b) Three (3) Hybrid Retailers; or

(c) Two (2) Retailers and one (1) Hybrid Retailer; or

(d) One (1) Retailer and two (2) Hybrid Retailers.

(16) Said facilities shall be located and accessed from a Commercial Thoroughfare street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(17) Said facilities shall be located on a parcel that meets the minimum lot standards for the zone.

(18) Said facilities comply with all applicable Special Permit standards pursuant to Section 8.4.8 of these regulations.

(19) Retailers, Dispensary Facilities and Hybrid Retailers shall be considered a retail use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(20) Dispensary Facilities, Hybrid Retailers, and Retailers shall operate only between the hours of Monday through Saturday 9:00 AM to 8:00 PM, and on Sundays from 9:00 AM to 6:00 PM.

(21) No Dispensary Facilities, Hybrid Retailer, or Retailer shall be located within one-thousand (1,000) feet of a child day care center, nursery/pre-kindergarten, kindergarten, elementary or secondary school, college or university, or within five hundred (500) feet of any charitable institution, including any offices thereof, whether supported by public or private funds, healthcare facility, municipal building used for public gathering (City Hall, libraries, concert halls, etc.), public park, public recreation area, licensed adult day care center, dependency treatment center, shelter for the homeless, transitional housing facility, or place of worship. The distance shall be measured in a straight line from the nearest legal parcel boundary line of the land used for said purpose to the main pedestrian entrance of the cannabis hybrid retailer or cannabis retailer. To comply with the distance restrictions in this section, the applicant shall submit an area plan showing the location of the proposed Dispensary Facility, Hybrid Retailer or Retailer, indicating the name and address of any of the uses to which said distance restrictions apply. The area plan shall also include the name, address, and seal of the individual or firm preparing said plan; north point or arrow; graphic scale; and intervening lot lines, roads, driveways, and intersections in sufficient detail for orientation to the area, and any additional information deemed necessary by the Commission to determine compliance with this section. The area plan shall be prepared, signed and sealed by a land surveyor licensed and registered in the State of Connecticut.

(22) No lot, upon which contains a Dispensary Facility, Hybrid Retailer, or Retailer, shall be closer than one (1) mile from another lot, which contains a Dispensary Facility, Hybrid Retailer, or Retailer. The distance shall be measured in

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a straight line from the nearest legal parcel boundary line of one lot to the nearest legal parcel boundary line of the other lot.

(23) For up to thirty days after the opening of a Retailer or Hybrid Retailer, the Commission may require the applicant reimburse the City for reasonable costs incurred for the provision of public safety services in relation to the grand opening of the facility, including, but not limited to, public safety costs incurred to direct traffic, not to exceed fifty thousand dollars.

r. Cannabis Manufacturer shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage

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Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

s. Cannabis Micro Cultivator shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers

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and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

t. Cannabis Producer shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

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(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

u. Cannabis Product Packager shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a

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manufacturing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

v. Cannabis Retailer shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Within the City, there shall be a maximum of

(a) Three (3) Retailers; or

(b) Three (3) Hybrid Retailers; or

(c) Two (2) Retailers and one (1) Hybrid Retailer; or

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(d) One (1) Retailer and two (2) Hybrid Retailers.

(16) Said facilities shall be located and accessed from a Commercial Thoroughfare street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(17) Said facilities shall be located on a parcel that meets the minimum lot standards for the zone.

(18) Said facilities comply with all applicable Special Permit standards pursuant to Section 8.4.8 of these regulations.

(19) Retailers, Dispensary Facilities and Hybrid Retailers shall be considered a retail use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(20) Dispensary Facilities, Hybrid Retailers, and Retailers shall operate only between the hours of Monday through Saturday 9:00 AM to 8:00 PM, and on Sundays from 9:00 AM to 6:00 PM.

(21) No Dispensary Facilities, Hybrid Retailer, or Retailer shall be located within one-thousand (1,000) feet of a child day care center, nursery/ pre-kindergarten, kindergarten, elementary or secondary school, college or university, or within five hundred (500) feet of any charitable institution, including any offices thereof, whether supported by public or private funds, healthcare facility, municipal building used for public gathering (City Hall, libraries, concert halls, etc.), public park, public recreation area, licensed adult day care center, dependency treatment center, shelter for the homeless, transitional housing facility, or place of worship. The distance shall be measured in a straight line from the nearest legal parcel boundary line of the land used for said purpose to the main pedestrian entrance of the cannabis hybrid retailer or cannabis retailer. To comply with the distance restrictions in this section, the applicant shall submit an area plan showing the location of the proposed Dispensary Facility, Hybrid Retailer or Retailer, indicating the name and address of any of the uses to which said distance restrictions apply. The area plan shall also include the name, address, and seal of the individual or firm preparing said plan; north point or arrow; graphic scale; and intervening lot lines, roads, driveways, and intersections in sufficient detail for orientation to the area, and any additional information deemed necessary by the Commission to determine compliance with this section. The area plan shall be prepared, signed and sealed by a land surveyor licensed and registered in the State of Connecticut, at a scale of 1" equals 60' or smaller (1"=>60') and drawn in accordance with an applicable Class A-2 Survey which complies with the 1976 code adopted by the CT Association of Land Surveyors, as amended. Area plans shall be drawn on standard sheet sizes of 24"x36" unless otherwise authorized by the Planning and Zoning Department prior to submission

(22) No lot, upon which contains a Dispensary Facility, Hybrid Retailer, or Retailer, shall be closer than one (1) mile from another lot, which contains a Dispensary Facility, Hybrid Retailer, or Retailer. The distance shall be measured in a straight line from the nearest legal parcel boundary line of one lot to the nearest legal parcel boundary line of the other lot.

(23) For up to thirty days after the opening of a Retailer or Hybrid Retailer, the Commission may require the applicant reimburse the City for reasonable costs incurred for the provision of public safety services in relation to the grand opening of the facility, including, but not limited to, public safety costs incurred to direct traffic, not to exceed fifty thousand dollars.

w. Cannabis Transporter shall be permitted in accordance with the applicable Use Table, subject to the following:

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(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning District.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Delivery Services and Transporters located within an industrial zone shall be permitted and subject to the same conditions as Commercial Vehicle parking.

(16) Said facilities comply with all applicable Site Plan standards of these regulations.

(17) Delivery Services and Transporters shall be considered a warehousing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

x. Cellular Antenna shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Accessory Use shall not exceed twenty-five feet (25') in Height.

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y. Child Day-Care Center shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-1L, CD-1M, CD-1S and CD-2:

(a) A Single-Family Detached Dwelling may contain a Child Day-Care Center provided that:

i. There shall be a maximum occupancy of eighteen (18) children.

ii. The Structure must be a Principal Building Type that is permitted within the Zone.

iii. The hours of operation shall be limited to 6:00am to 8:00pm, unless approved by the Connecticut Office of Early Childhood (OEC) for overnight care.

iv. Shall not impair traffic flow, including but not limited to the safety of neighborhood student(s) before and after school, the operation of pick up and drop off, etc.

v. The Property and Use shall be owner occupied and operated with a permitted Residential Use.

vi. The otudoor play area shall be screened from view from adjacent properties to the side and rear by screening and/or landscaped buffers.

vii. Shall require approval of a Special Permit pursuant to Section 8.4.8.

(b) Shall be permitted as an Accessory Use to the following Principal Use(s):

i. Congregate Housing; Office; Religious Facility; Elementary or Secondary School; Waterfront Club; and

ii. Shall require approval of a Special Permit pursuant to Section 8.4.8.

(c) Within the CD-3, CD-3W, CD-3C, CD-4, CD-4W, SD-H, SD-MC and CV:

i. Shall require approval of a Site Plan Review pursuant to Section 8.4.5.

z. Commercial Communication Antenna shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Commercial communication antennas are permitted as an Accessory Use when located on an existing Building or Structure, subject to the height limitation of that District, except that antennas mounted on existing Buildings which meet or exceed the height limitation of that District may extend above the existing Building height by no more than fifteen (15) feet;

(2) The color of the Building shall be incorporated into the design of the antenna; and

(3) Any equipment Structures shall meet the Building Setbacks and be effectively Screened from Adjacent properties.

aa. Commercial Recreation Establishment shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A Site Plan Application is required for any Commercial Recreation Establishment over 5,000sf in Floor Area in the CD-4 and CD-4W zones, and over 10,000sf in the CD-3C zone, pursuant to Section 8.4.5.

(2) Shall not exceed a Floor Area of 15,000sf in the CD-4 or CD-4W zones.

(3) A Special Permit is required for any Commercial Recreation Establishment over 20,000sf in Floor Area in the CD-3C zone, pursuant to Section 8.4.8.

ab. Commercial Vehicle Storage Yards shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall require a Site Plan Application pursuant to Section 8.4.5 on a lot with an area

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of <20,000 SF. Shall require a Special Permit pursuant to Section 8.4.5 on a lot with an area of >20,000 SF, subject to review an approval of an environmental impact report.

ac. Congregate Housing shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-1L shall be located on a Lot or Building Site a minimum of 3 acres;

(2) Within CD-2 shall be located on a Lot or Building Site a minimum of 1 acre; and

(3) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ad. Convalescent / Nursing / Rest Home shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-1L shall be located on a Lot or Building Site a minimum of 3 acres;

(2) Within CD-2 shall be located on a Lot or Building Site a minimum of 1 acre; and

(3) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ae. Dormitory shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The maximum Density limitations permitted within the Zoning District shall apply to Dormitory rooms;

(2) Within the CD-3, any Development between fourteen (14) and twenty-nine (29) Dormitory rooms shall require a Site Plan Review application pursuant to Section 8.4.5 and any Development greater than twenty-nine (29) Dormitory rooms shall require a Special Permit pursuant to Section 8.4.8.

(3) Within the CD-3C, any Development between thirty (30) and one hundred and forty-nine (149) Dormitory rooms shall require a Site Plan Review application pursuant to Section 8.4.5 and any Development greater than one hundred and forty-nine (149) Dormitory rooms shall require a Special Permit pursuant to Section 8.4.8.

(4) Within the CD-4, any Development greater than twenty-nine (29) Dormitory rooms shall require a Site Plan Review application pursuant to Section 8.4.5.

af. Drive-Through Facilities shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Where no street separates the Use and a Residentially zoned or Residentially used property, at least 40 feet of separation shall be maintained between such Residential Lot/Building Site line and the Drive-Through facility;

(2) Drive-through Facilities must be located in the Rear Yard and the location of drive-through facilities and associated facilities (for example: communications systems and access aisles) shall be identified on all submitted Plans;

(3) Any speaker systems associated with a drive-through facility shall be designed and located so as not to be audible beyond the Lot or Building Site on which the drive-through facility is located;

(4) Vehicular access to a Drive-Through facility that is between a street or Internal Drive and a Building shall require a Lot/Building Site Buffer pursuant to Section 4.3.11 if such access is within fifty feet (50 ft.) of, and visible from, the street or Internal Drive. Such Buffer shall be installed and maintained along the entire length of such vehicular access and the Adjacent street or Internal Drive

(5) Vehicle stacking areas shall be provided in accordance with Section 4.3.12.H.

ag. Development Parks shall be permitted in accordance with the applicable Use Table,

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subject to the following:

(1) A Development Park is only permitted within the O-MSVD.

(2) Such development is in accordance with an approved Master Plan, which contain:

(a) An A-2 survey of the proposed Development Park;

(b) A Site development plan that shows the proposed Uses, locations of proposed Buildings, Streets, anticipated lighting, walkways, Open Space, natural features, and Signage;

(c) A preliminary traffic impact analysis;

(d) A preliminary drainage analysis of existing conditions and anticipated sitewide Improvements;

(e) A zoning table indicated compliance with the Bulk and Height standard for each proposed Structure;

(f) Architectural renderings and elevations depicting the bulk and height of the proposed structures.

(g) An architectural and site Design Manual to be approved by the Commission in consultation with the Peer Review consultant.

(3) Each phase (individual application) of the Master Plan is subject to §8.45, Site Plan Review and to the following additional Limitations:

(a) Such site and building design is consistent with the Master Plan Design Manual, as verified by the Commission's peer review consultant(s).

(b) The site development plans include a zoning table indicating compliance with the Master Plan, including each bulk and height standard.

(c) Residential density does not exceed 1 unit per 500 square feet of the entire Development Park

(d) Lot/Building Site Width, Lot/Building Site Enfrontment, Minimum building frontage buildout and Block Perimeter shall be in accordance with the approved Master Plan.

(e) Maximum front setback shall not exceed 15 feet; however, buildings shall be located as close to the street as possible, except to allow for building articulation and design consideration and public improvements.

(f) Retaining walls may exceed a maximum height of 4', provided they are engineered and all required permits are obtained.

(g) Sustainability requirements approved as part of the Master Plan.

(h) No individual Building shall exceed fifteen (15) Stories, as measured from the average grade; provided, the Commission may permit up to an additional two (2) Stories in accordance with the Development Park Design Manual.

(i) A minimum of one hundred fifty (150) square feet of recreation area per Dwelling Unit be provided, which may include courtyards, indoor recreation facilities, landscaped Roofs and outdoor recreation areas.

(j) A minimum of thirty percent (30%) of the total acreage of the Office Park Development Park is Open Space land either as private recreation space or publicly available Open Space, provided that a minimum of twenty percent (20%) of the overall Site is publicly available Open Space, as approved by the Commission. A public access easement shall be placed on the land, to be held by the Commission.

(k) The Site is designed with the following minimum Low Impact Development (LID) or

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Green Development techniques:

i. All Buildings must provide a minimum of twenty–five percent (25%) of either green roofs, blue roofs, or contain Solar Panels for that portion of such Roof not used for recreation area Improvements or utilities.

ii. All surface water shall be handled through on–Site retention. The use of rain gardens and bioswales is recommended and encouraged where feasible.

iii. All Parking Lots and Parking Structures must include electric vehicle charging stations, in an amount determined to be acceptable by the Commission.

iv. Sheltered bike Parking and storage must be provided, in an amount determined to be acceptable by the Commission.

v. All Landscaping shall be native species, except that the perimeter Screening may contain alternate species as approved by the Commission.

(l) Individual parcels may exceed the maximum allowable Residential Density and/or Building coverage for their individual Site(s) and have less than the minimum required Public Realm, Open Space for that Site(s), provided that the Residential density and/ or Building coverage is not exceeded for the Development Park and the required Public Realm and Open Space are met within the Development Park.

(m) Individual parcels may have less than the minimum required Parking for that Site(s), subject to Section 4.3.12.B.6. 8. Each Building containing Residential Dwelling Units complies with Section 6.12, Workforce Housing, if applicable.

(n) All Improvements within a Development Park Master Plan made subsequent to the effective date of an Development Park Master Plan approved by Special Permit shall comply with the conditions of approval, plans, and documents filed on the Norwalk Land Records.

ah. Earth Processing & Contractor's Materials Storage Yards shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The parcel is less than 20,000 square feet;

(2) All such equipment and material shall be stored in an environmentally safe manner behind the Front Setback line and no closer than five feet (5') to the Side or Rear Lot/ Building Site lines, or ten feet (10') when abutting a Residential District;

(3) All such stockpiles shall be limited to a maximum Height of twenty feet (20') and covered when not in use. When in use, adequate measures to control dust must be employed;

(4) Native, vegetative Screening shall be utilized to ensure that materials and equipment and vehicles are Screened from Adjacent properties;

(5) Any Accessory retail sales of materials, such as topsoil, plant material, etc., is clearly incidental to the Principal Use;

(6) The storage of empty refuse containers that are used exclusively for the collection and disposal of construction debris in the construction trade are located within one hundred feet (100') of an existing Solid Waste Transfer Station that has been approved by the Department of Energy and Environmental Protection (DEEP) or its predecessor, the Department of Environmental Protection (DEP); and

(a) Neither the Contractor's Storage Yard nor the Solid Waste Transfer Station are Adjacent to Residentially zoned property; and

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(b) Neither the Contractor's Storage Yard nor the Solid Waste Transfer Station are located within one thousand five hundred feet (1,500') of Interstate 95 (I-95).

ai. Elderly Housing Units shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-1S:

(a) The subject property(ies) has a minimum of two (2) acres of Lot Area, as of the date of the adoption of these regulations; and

(b) The Residential Density shall not exceed one (1) unit per 6,250 square feet of Lot Area; and

(c) Structures shall be limited to Cottage, House, Estate House and/or Duplex Building Types; and

(d) The Structures shall comply with all Lot Occupation, Setback, and Building Height requirements of the CD-1S; and

(e) A minimum of twenty-five percent (25%) of the property must be set aside as Conservation area, which may be in the form of an easement in favor of the City and total of forty percent (40%) of the Site is Open Space, Public Realm or Civic Space; and

(f) Stormwater shall be mitigated using Low Impact Development (LID) techniques; and

(g) All Dwellings or Principal Structures shall have rooftop solar installed, unless it is determined to be not feasible as determined by a feasibility report.

(2) Within the CD-2:

(a) The subject property is an existing or former School, as herein defined; and

(b) The subject property has a minimum of one-and-a-half (1.5) acres of Lot Area; and

(c) The Residential Density shall not exceed one (1) unit per 1,400 square feet of Lot Area.

aj. Electric Power Generator shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Only permitted for emergency or peak shaving purposes as defined herein;

(a) Emergency – A condition where the local municipal utility company is experiencing a power outage in its distribution system, or is not receiving power from the electric grid or has been notified by the power grid operator of an impending emergency which likely will result in a power supply emergency as defined by Independent System Operator – New England (ISO-NE) OP-4 step 12, or any similar system reliability and status index;

(b) Peak Shaving – A program designed by the local municipal utility in which an electric power generator equipped customer is authorized by contract to reduce the load on the local electrical distribution system and the regional electric grid during periods of peak monthly demand by running on-site generation equipment at the request and direction of the local utility;

(2) One (1) electric power generator powered by natural gas only and located on the roof of a Building a minimum of six (6) stories in height, shall be permitted provided such generator does not exceed the maximum load required for the Building's operation by more than fifty percent (50%), as certified by a registered professional engineer, subject to confirmation by the Building Inspector. The operation of such generators shall be limited to no more than two hundred (200) hours per calendar year and to the operating hours of 7:00 am until 11:00 pm only, except in the case of an emergency, as herein defined. Such generators shall demonstrate compliance with the City of Norwalk Noise Ordinance and, in addition, shall show compliance with the ordinance when the decibel level of the generator in operation

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is measured at the highest occupied level of adjacent Building(s) and with applicable Connecticut Department of Environmental Protection air quality standards;

(3) Such generators shall not be taller than twelve (12) feet in height, shall be setback a minimum of ten (10) feet from the edge of the roof on which it is located, and shall be screened from public view, subject to the satisfaction of the Planning and Zoning Commission; and

(4) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ak. Elementary or Secondary School shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The Height provisions of these Regulations shall not prevent the erection of a public School to a Height not exceeding four (4) Stories and sixty-five (65) feet.

(2) All Buildings shall be Setback from front, side, and rear Lot/Building Site boundaries by an amount not less than the minimum Setback specified in the District, plus six (6) inches for each foot of Building length in excess of forty (40) feet, such length measured parallel to the Lot/Building Site boundary.

(3) Buildings Setback from a side Lot/Building Site line shall not be required to exceed forty (40) feet and the Building Setback from a front Lot/Building Site line shall not be required to exceed twice the minimum Front Setback standard as that required in the District.

(4) Notwithstanding anything in these Regulations to the contrary, public Schools shall be required to provide no more than eighty (80) foot Front and Rear Setbacks and no more than a forty (40) foot Front Setback for all off-street Parking and Loading Facilities, including all Parking aisles and backup spaces.

(5) Shall require approval of a Special Permit pursuant to Section 8.4.8.

al. Emergency Communications Antenna shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Accessory Use shall be located on an existing public utility structure and may extend above the existing structure by no more than twenty-five (25) feet.

(2) The color of the utility structure shall be incorporated into the design of the antenna and any equipment structures shall meet building setbacks and be effectively screened from adjacent properties.

am. Extended Stay Hotel shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The maximum Density limitations permitted within the Zoning District shall apply to Extended Stay Hotel rooms;

(2) No Extended Stay Hotel rooms shall be rented, leased, or otherwise let for a duration exceeding thirty (30) consecutive days.

(3) Within the CD-4, any Development greater than twenty-nine (29) Extended Stay Hotel rooms shall require a Site Plan Review application pursuant to Section 8.4.5.

an. Family Day-Care Home shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A maximum of 6 clients may be served at any one time;

(2) Overnight accommodation shall not be permitted;

(3) No outdoor public address systems shall be allowed; and

(4) When the facility is located within a Non-Residential area, the Fire Marshall shall review

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the proposal prior to approval and make a recommendation.

ao. Financial Institutions shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall not be located on the ground floor of a Building.

ap. Government Agencies & charitable organizations shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall not be located on the ground floor of a Building.

aq. Group Day-Care Home shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Seven (7) to Twelve (12) clients may be served at any one time;

(2) Overnight accommodation shall not be permitted;

(3) No outdoor public address systems shall be allowed; and

(4) When the facility is located within a Non-Residential area, the Fire Marshal shall review the proposal prior to approval and make a recommendation.

ar. Group Home shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No Group Home shall be constructed or located within 1,000 feet of another Group Home; and

(2) Shall require approval of a Special Permit pursuant to Section 8.4.8.

as. Halfway House shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No Halfway House shall be constructed or located within 1,000 feet of another Halfway House;

(2) Within CD-2 shall provide no less than 250 square feet of living area per person and allow a maximum of 12 persons;

(3) Within all other permitted Districts shall provide no less than 200 square feet of living area per person and allow a maximum of 20 persons;

(4) Shall require approval of a Special Permit pursuant to Section 8.4.8.

(5) Halfway houses for persons under the jurisdiction of the Department of Corrections shall not be permitted

at. Health Club shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A Site Plan Application is required for any Health Club between 2,500 SF and 5,000 SF.

(2) Health Clubs greater than 5,000 SF require a Special Permit pursuant to Section 8.4.8.

au. Helicopter Landing Site shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The landing site shall be a minimum of 300 feet from a Residence zone and flight operations shall be restricted to the hours of 7:00 am to 7:00 pm only;

(2) The Planning and Zoning Commission may approve a helicopter landing site that exceeds the height provisions of these Regulations if it is located on top of a mechanical or habitable penthouse; and

(3) Shall require approval of a Special Permit pursuant to Section 8.4.8.

av. Hotel and Inn shall be permitted in accordance with the applicable Use Table,

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subject to the following:

(1) Within the Silvermine Tavern Village District Overlay only permitted in an existing Structure a minimum of 100 years old with Additions up to 50 years old (Inn built 1790 & mill in 1800); and

(2) Shall require approval of a Special Permit pursuant to Section 8.4.8.

aw. Home Office, Occupation, Or Business shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Limited to no more than one (1) per Dwelling;

(2) Such Use shall not alter the Residential Character of the Structure; and

(3) The owner must reside within the Principal Building.

(4) That the following are Not Permitted as a Home Office, Occupation, or Business:

(a) Clinic, Hospital, barbershop, beauty shop, Restaurant, Animal Care Center or any use involving the boarding of animals, antique dealer, Retail sales on the premises, or loading of ammunition.

ax. Indoor And Outdoor Storage Of Passenger Motor Vehicles shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No on-site motor vehicle repair, or retail or wholesale sales of motor vehicles or motor vehicle parts shall be permitted; and

(2) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ay. Indoor Contractor Facility shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No outside storage of commercial vehicles or materials on the premises;

(2) No outside operation, repair or maintenance of equipment or vehicles;

(3) A minimum of 10,000 square feet of Lot Area when Abutting a Residential District, and a minimum of ten feet (10') of landscaped Buffer between the Lot/Building Site line and any Site Improvements.

az. Industrial office and/or showroom space (Accessory Use) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) May be located on the ground floor as an ancillary use, provided that such Use does not comprise more than 50% of the ground floor area.

ba. Junkyard shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All premises used as a junkyard or for storage of motor vehicles shall be maintained in strict accordance with the Regulation Concerning the Licensing of and Operation of Motor Vehicle Junk Yards, issued by the Commissioner of Motor Vehicles, State of Connecticut, as now in effect or as hereafter revised; and

(2) Shall require approval of a Special Permit pursuant to Section 8.4.8.

bb. Large Multifamily Building shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-3, any Development between fourteen (14) and twenty-nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than twenty-nine (29) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(2) Within the CD-3C:

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(a) Large Multifamily Building Types shall not be permitted on a Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended, unless:

i. The Frontage Buildout is compliant and at least fifty percent (50%) of the required Frontage Buildout contains a permitted non-residential Use; and

ii. The remaining portion of the Frontage Buildout contains either tenant amenity space, Artist Live/Work, and/or Townhouse(s) with a Stoop or Terrace/ Lightwell Private Frontage Type and separate entrance for each Townhouse unit, or any combination thereof.

(b) any Development between thirty (30) and one hundred and forty-nine (149) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than one hundred and forty-nine (149) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(3) Within the CD-4:

(a) Large Multifamily Building Types shall not be permitted on a Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended, Water Street, Belden Avenue, Commerce Street or within the O-MSVD, unless:

i. The portion of the Building Enfronting the Street contains Townhouse(s) with a Stoop and separate entrance for each unit, or below-grade units Enfront the Street with Terrace/Lightwell(s) and the Lot or Building Site Enfronts Martin Luther King Jr. Boulevard; or

ii. The Frontage Buildout is compliant and at least fifty percent (50%) of the required Frontage Buildout contains a permitted non-residential Use; and

iii. The remaining portion of the Frontage Buildout contains either tenant amenity space, Artist Live/Work, and/or Townhouse(s) with a Stoop or Terrace/ Lightwell Private Frontage Type and separate entrance for each Townhouse unit, or any combination thereof.

(b) Any Development greater than twenty-nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5.

bc. Live Music shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Live Music is permitted as an Accessory Use to Restaurant, Brew Pub/Distillery, Retail (except in the Residential zones), Car Club, Silvermine Tavern Village District Overlay Uses and Waterfront Club Uses, subject to documentation verifying that the Live Music will comply with the City of Norwalk Noise Control Ordinance, as amended.

bd. Lodge shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall be located on a Parcel with a minimum Lot Area of 60 acres.

(2) A minimum of 30 acres of the property is conserved.

(3) Buildings shall not exceed three (3) stories.

(4) Special events shall be governed by specific conditions of the Special Permit approval.

be. Manufacturing & Processing, Boutique shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The operations and activities are not noxious or offensive due to emission of noise, pollutants or waste;

(2) Subject to review and approval of an environmental impact report;

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(3) Warehousing and retail sales/showroom space is accessory to the Principal manufacturing Use; and

(4) Office Use supporting the Principal Use cannot be located on the ground Floor.

bf. Manufacturing & Processing, Light shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The operations and activities are not noxious or offensive due to emission of noise, pollutants, or waste;

(2) Such Use is subject to review and approval of an environmental impact report;

(3) Warehousing and Retail Sales/showroom space is Accessory to the Principal Manufacturing Use; and

(4) Office Use, supporting the Principal Use, cannot be located on the ground Floor.

bg. Medical Office shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-3 Zone:

(a) unless located on a Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O-EVTZ, Medical Office may only be located on corner lots, or Building Sites.

(b) A Site Plan Application is required for Medical Office between 2,500 SF and 5,000 SF.

(c) Medical Office over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(2) Within CD-3W:

(a) A Site Plan Application is required for Medical Office between 2,500 SF and 5,000 SF.

(b) Medical Office over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(3) Within SD-LI:

(a) Shall not be located on the ground floor of a Building.

bh. Motor Vehicle Maintenance, Repair, Fuel Sales, Service or Cleaning shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Service Station shall not be permitted within CD-3.

(2) Except with the permission of the Commission, under appropriate conditions and safeguards, no zoning approval shall be issued for the erection of a service station for more than five (5) motor vehicles or a motor vehicle service station or fuel sales station, or for the conversion of any premises not so used to be used for such purposes, in any business or industrial zone, if any part of the lot or plot in question is situated within a distance of two hundred (200) feet as measured along the public street of or within any portion of a street between two (2) intersecting streets, between two (2) intercepting streets, or between an intersecting or intercepting street in which portion there exists:

(a) Schools.

(b) A hospital maintained as a charitable institution or a private hospital maintaining at least fifteen (15) beds for patients.

(b) A church with a meeting capacity of three hundred (300) persons.

(c) A theater containing at least three hundred (300) seats.

(d) A public library.

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(3) No existing garage for more than five (5) motor vehicles, a group of garages for more than five (5) motor vehicles or a motor vehicle service station or fuel sales station shall be deemed to become a nonconforming Use through the subsequent erection of such a school, hospital, theater or library, as defined above, within the aforesaid prescribed area;

(4) So as to reduce traffic generation and traffic hazards, after the effective date of these Regulations, no fuel sales station shall be constructed or located within two thousand (2,000) feet of an existing fuels sales station. This provision shall not, however, make nonconforming uses of fuel sales stations otherwise conforming as of the effective date thereof;

(5) In accordance with Section 14-54 of the Connecticut General Statutes, as revised, and any additional requirements herein, the Planning and Zoning Commission shall review and act on requests for certificates of approval of locations for licenses for dealing in or repairing of motor vehicles;

(6) Pumps shall be located in the Rear Yard;

(7) Fuel pumps shall be located at least 15 feet from any Lot/Building Site line;

(8) Any repair, servicing, maintenance or other work on vehicles shall be conducted within an enclosed Structure;

(9) No outdoor storage shall be allowed;

(10) Storage of vehicles for more than 24 hours is prohibited;

(11) A spill prevention and counter measures plan shall be provided prior to construction plan approval that includes, at a minimum:

(a) Clean up procedures for fuel (or other hazardous material) spills occurring inside and outside the Building;

(b) Counter measures for use in preventing fuel (or other hazardous material) spills from entering the stormwater collection system;

(c) Routine cleanup procedures for work area and Parking Areas; and

(d) Washdown water shall not be permitted to enter the stormwater collection system.

(12) No maintenance, repair, or service station shall be located in CD-3; and

(13) Within CD-3 and CD-3C shall require approval of a Special Permit pursuant to Section 8.4.8.

bi. Motor Vehicles Sales, Rental or Leasing shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Junk Vehicles or inoperable vehicles or equipment shall be within a completely enclosed Building;

(2) Vehicle or equipment repairs made on-site shall be subject to the restrictions under "Motor Vehicle Maintenance, Repair, Fuel Sales, Service or Cleaning";

(3) Adequate on-site area shall exist for the loading and unloading of vehicles from car carriers to ensure that no such loading or unloading occurs in any Right-of-Way;

(4) No vehicles shall be displayed in required landscaping or in Rights-of-Way;

(5) Vehicle sales, leasing, and rental facilities shall meet the following Parking Area landscaping standards rather than those of Section 4.3.12.C:

(a) Trees shall be planted at the rate of one (1) tree per 50 linear feet, and shrubs at the rate of one (1) shrub per five (5) linear feet of display area.

(b) Plants may be grouped together, provided that at least 250 square feet of contiguous growing area, not encroached upon by

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impervious surfaces, surrounds each planted tree.

(6) Shall require approval of a Special Permit pursuant to Section 8.4.8.

bj. Museum shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CV, must be owned by a Governmental Agency.

bk. Offices shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-1M:

(a) Property shall be a minimum of fifteen (15) acres;

(b) Such Office Building shall be in existence prior to 2022; and

(c) Such Use is only for businesses and professional establishments other than those primarily providing services to customers or clients on the premises.

(2) Within CD-3 Zone:

(a) unless located on a Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O-EVTZ, Offices may only be located on Corner Lots or Building Sites.

(b) A Site Plan Application is required for Offices between 2,500 SF and 5,000 SF.

(c) Offices over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(3) Within CD-3W:

(a) A Site Plan Application is required for Offices between 2,500 SF and 5,000 SF.

(b) Offices over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(4) 7) Within SD-LI:

(a) Shall not be located on the ground floor of a Building.

bl. Outdoor Dining shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Compliance with Chapter 45 Article IV Outdoor Dining, as amended.

(2) Within the CD-1L, CD-1M, CD-1S and CD-2:

(a) Shall be permitted as an Accessory Use to Waterfront Club and Retail Uses.

bm. Outdoor Storage shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Outdoor Storage shall be located only in the Rear Yard at least fifteen feet (15') from the public right-of-way and any Abutting Residential Use or Residential District.

bn. Parking Lot shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No storage, repair, or sales of vehicles shall be allowed on the site;

(2) Shall comply with all parking standards within these Regulations; and

(3) A wall or fence no more than 30 inches in height shall be placed around the perimeter of the Parking area to prevent Encroachment of vehicles into the surrounding area.

bo. Performing Arts Theater shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CV, must be owned by a Governmental Agency.

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bp. Personal Service Establishment shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-3 Zone:

(a) unless located on a Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O-EVTZ, Offices may only be located on Corner Lots or Building Sites.

(b) A Site Plan Application is required for Personal Service Establishment between 2,500 SF and 5,000 SF.

(c) Personal Service Establishment over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(2) and CD-3W:

(a) A Site Plan Application is required for Personal Service Establishment between 2,500 SF and 5,000 SF.

(b) Personal Service Establishment over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

bq. Portable Storage Container shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall be permitted for a maximum period of one (1) month in any calendar year;

(2) Shall be limited to one (1) such container placed on an individual property at any one time; and

(3) Such container shall not exceed eight (8) feet in height or one hundred and sixty (160) square feet in size.

br. Public Utility Supply and Storage shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The facility is operated by a licensed contractor who works exclusively for and in support of public utility companies;

(2) The subject property has a minimum of eleven (11) acres;

(3) The property shall have direct ingress and egress to a state highway;

(4) All equipment shall disable backup alarms while on the property or utilize another backup warning system that does not amplify sound; and

(5) While on property, all vehicles must comply with CT DOT Idling rules; and

(6) All such equipment and material shall be stored in an environmentally safe manner no closer than twenty-five feet (25') to the side or rear Lot/Building Site lines and not within the front Setback;

(7) Any stockpiles of materials shall be limited to a maximum height of ten feet (10') and shall be effectively screened from view from a public road and from adjacent properties;

(8) The owner shall comply with Chapter 68 of the Noise Ordinance, and, except in emergencies, the hours of operation shall be limited to weekdays from 6:00 am to 6:00 pm;

(9) All lighting shall be fully shielded and shall not trespass onto adjoining properties and a photometric plan provided to confirm that no illumination shall exceed 0.3 foot candles at the Lot/Building Site line and all lights shall be directed away from surrounding Residential properties; and

(10) Shall require approval of a Special Permit pursuant to Section 8.4.8.

bs. Recycling Operations shall be permitted in accordance with the applicable Use Table,

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subject to the following:

(1) Recycling Operations proposed to include motor oil, chemicals, household appliances, and/or tires, must obtain all necessary federal, state and local permits required for the collection, processing, recycling, and transfer of these items and must be submitted to the Planning & Zoning Department prior to the approval of any Special Permit application, and must be maintained by the applicant while the Special Permit is active.

(2) Motor vehicles and parts may also be recycled at a Recycling Facility provided all federal, state, and local permits have been obtained and are maintained by the operator including, but not limited to, the Connecticut Department of Motor Vehicles (DMV) recycler (dismantler) license as such license type may be revised or amended.

(3) Entities that demanufacture, process, segregate, sort, and/or ship recyclable, non-decayable materials including vehicles, equipment, ferrous and non-ferrous materials/ metals, and plastics are permitted if they hold required DMV and other similar permits and licenses when these regulations are enacted.

(4) Long-term storage of solid waste or reclaimed material is not permitted.

(5) No materials stored at the site shall be visible from the public right-of-way or from an abutting property.

(6) When abutting a residential zone, there shall be a vegetated buffer, a minimum of ten (10) feet in width, which may include solid fencing.

(7) Any activities that create excessive dust or shall be conducted within an enclosed facility that meets all applicable standards for ventilation.

bt. Religious Facilities shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The Lot size is twice that of the minimum required within the applicable District.

(2) All Buildings shall be Setback from front, side, and rear Lot/Building Site boundaries by an amount not less than the minimum Setback specified in the District, plus six (6) inches for each foot of Building length in excess of forty (40) feet, such length measured parallel to the Lot/Building Site boundary.

(3) Shall require approval of a Special Permit pursuant to Section 8.4.8.

bu. Residential Portion of Flex Building Type shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Use is not permitted on the ground Floor in SD-MC or SD-LI.

(2) Within SD-LI:

(a) The ground floor contains another permitted principal or Special Permit Use.

(b) A minimum of 50% of the total Building gross floor area is dedicated to a Site Plan or Special Permit Use(s).

(c) There is not more than one (1) Dwelling Unit per 1,650 square feet of Lot area; except that Artist Live/WorkSpace(s) shall be exempt from the density calculation, provided that the application is referred to the to the Arts Commission for review and consideration. If the Arts Commission does not endorse the application, a 2/3 majority vote of the Zoning Commission is required for approval.

(d) Dwelling Units are located within the same Structure(s) as the Principal Use on the property.

(e) Such units are subject to workforce housing requirements.

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bv. Residential Portion of Live/Work Building Type shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Use is not permitted on the ground Floor in SD-MC or SD-LI.

(2) Within SD-LI:

(a) The ground floor contains another permitted principal or Special Permit Use.

(b) A minimum of 50% of the total Building gross floor area is dedicated to a Site Plan or Special Permit Use(s).

(c) There is not more than one (1) Dwelling Unit per 1,650 square feet of Lot area; except that Artist Live/WorkSpace(s) shall be exempt from the density calculation, provided that the application is referred to the to the Arts Commission for review and consideration. If the Arts Commission does not endorse the application, a 2/3 majority vote of the Zoning Commission is required for approval.

(d) Dwelling Units are located within the same Structure(s) as the principal use on the property.

(e) Such units are subject to workforce housing requirements.

bw. Residential Portion of Mid Rise Building Type shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-3C, any Development between thirty (30) and one hundred and forty nine (149) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than one hundred and forty nine (149) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(2) Within CD-4, any Development greater than twenty nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5

bx. Residential Portion of Mixed Use Building Type shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Use is not permitted on the ground Floor in SD-MC or SD-LI.

(2) Within SD-LI:

(a) The ground floor contains another permitted principal or Special Permit Use.

(b) A minimum of 50% of the total Building gross floor area is dedicated to a Site Plan or Special Permit Use(s).

(c) There is not more than one (1) Dwelling Unit per 1,650 square feet of Lot area; except that Artist Live/WorkSpace(s) shall be exempt from the density calculation, provided that the application is referred to the to the Arts Commission for review and consideration. If the Arts Commission does not endorse the application, a 2/3 majority vote of the Zoning Commission is required for approval.

(d) Dwelling Units are located within the same Structure(s) as the principal use on the property.

(e) Such units are subject to workforce housing requirements.

(3) Within CD-3, any Development between fourteen (14) and twenty nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than twenty none (29) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(4) Within CD-3C, any Development between thirty (30) and one hundred and forty nine (149) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any

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Development greater than one hundred and forty nine (149) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(5) Within CD-3W, any Development between three (3) and six (6) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than six (6) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(6) Within CD-4 and CD-4W, any Development greater than twenty nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5.

by. Restaurant shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CV:

(a) A full-service, all-season Restaurant shall be permitted in a public park having one hundred twenty-five (125) acres or more and which has a standard eighteen-hole golf course;

(b) A full-service, all-season Restaurant shall be permitted in a public park having thirty (30) acres or more which adjoins Long Island Sound;

(c) Shall require approval of a Special Permit pursuant to Section 8.4.8.

(2) Within the Silvermine Tavern Village District Overlay:

(a) only permitted in an existing Structure a minimum of 100 years old and a minimum of ten thousand (10,000) square feet, except that no drive-in or take-out Restaurants shall be permitted; and

(b) Shall require approval of a Special Permit pursuant to Section 8.4.8.

(3) Within CD-3:

(a) unless located on a Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O-EVTZ,, Restaurants may only be located on Corner Lots or Building Sites.

(b) A Site Plan Application is required for Restaurants between 2,500 SF and 5,000 SF.

(c) Restaurants over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(4) Within CD-3W:

(a) A Site Plan Application is required for Restaurants between 2,500 SF and 5,000 SF.

(b) Restaurants over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

bz. Retail Sales shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the Silvermine Tavern Village District Overlay:

(a) only permitted in an existing Structure a minimum of 80 years old and up to three (3) Multi-family Dwelling Units or four (4) Inn rooms (store built 1920); and

(b) Shall require approval of a Special Permit pursuant to Section 8.4.8.

(2) Within CD-1L, CD-1M, CD-1S and CD-2:

(a) Package Stores and Tobacco/Vape Shops and sales are prohibited.

(b) The hours of operation are limited to 6:00am EST to 8:00pm EST .

(c) The building typology is consistent with the permitted structures in the zone.

(d) The property Enfronts a Neighborhood Connector, Urban Corridor, and/or Main Street street typology per the City of Norwalk Complete Streets Design Guide, as

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amended.

(e) The property is located on a Lot that does not exceed the minimum Lot area for the zone.

(f) There shall be a minimum of 1,000 feet between any retail establishment.

(g) The total Footprint of the Structure does not exceed 2,500 square feet.

(h) The Principal Building is located no further than 20 feet from the Principal and Secondary Frontage.

(i) The Principal Entrance is accessed from the Neighborhood Connector, Urban Corridor, and/or Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(j) The area between the Building and Street(s) may be Improved with an outdoor seating area, not to exceed 250 sf, with the remainder of the area being landscaped with native plantings.

(k) All parking is located to the side or rear of the structure and is not visible from Abutting Parcels.

(l) There is a minimum ten (10) foot landscape buffer between the subject Parcel and any Abutting residential Parcel.

(m) The amount of parking provided is consistent with Retail use, as required in Table 4.3.12.B–1 and be located and screened as required in Article 4.3.12.

(n) In addition to signage allowed in Article 7, a Post Sign is permitted and one (1) Blade Sign or one (1) Wall Sign is also permitted.

(o) Signs shall not be internally illuminated and may only be lit by downward facing decorative lighting.

(p) No temporary signs, portable signs or banners shall be installed.

(q) A maximum of two (2) Dwelling Units are permitted as accessory units to the principal use.

(3) Within CD–3 Zone:

(a) unless located on aa Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O–EVTZ, Retail Sales may only be located on Corner Lots or Building Sites.

(b) A Site Plan Application is required for Retail Sales between 2,500 SF and 5,000 SF.

(c) Retail Sales over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(4) and CD–3W:

(a) A Site Plan Application is required for Retail Sales between 2,500 SF and 5,000 SF.

(b) Retail Sales over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

ca. Retail Sales of goods manufactured, warehoused, or distributed on premise shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) May be located on the ground floor as an ancillary use, provided that such Use does not comprise more than 50% of the ground floor area.

cb. Robot Competition Venue shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The subject property is at least 1.5 acres in Lot Area.

(2) A traffic and parking management plan

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shall be required.

(3) All events shall obtain approval from the Norwalk Fire Marshal.

cc. School or Institution for the disabled shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The Height provisions of these Regulations shall not prevent the erection of a School or Institution for the disabled to a Height not exceeding four (4) Stories and sixty-five (65) feet.

(2) All Buildings shall be Setback from front, side, rear Lot/Building Site Lines by an amount not less than the minimum Setback specified in the District, plus six (6) inches for each foot of Building length in excess of forty (40) feet, such length shall be measured parallel to the Lot/Building Site boundary.

(3) Buildings Setback from a side Lot/Building Site Line shall not be required to exceed twice the minimum Front Setback standard as required in the District.

(4) Notwithstanding anything in these Regulations to the contrary, Schools or Institutions for the disabled shall be required to provide no more than eighty (80) feet Front and Rear Setbacks and no omre than a forty (40) foot Front Setback for all off-street Parking and Loading Facilities, including all Parking aisles and backup spaces.

(5) Shall require approval of a Special Permit pursuant to Section 8.4.8.

cd. Self-Storage Facility shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The facility is located on a parcel a minimum of seven (7) acres in size;

(2) Such facility is located more than two hundred and fifty (250) feet from the centerline of Westport Avenue, Connecticut Avenue, Main Avenue, or Main street

(3) Any facility does not exceed 125,000 square feet.

ce. Ship Storage shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) May be accessory to any Marine & Vessel Use as listed in Table 4.3.9.A subject to the following:

(a) The area dedicated to Ship Storage shall be in the Rear Yard only and must be Screened from Frontage and Civic Space by Building(s), Streetscreen, or landscaping.

cf. Single-Family Detached Dwelling shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) In addition to the traditional Single-Family Detached Dwelling, clustered Single-Family Dwellings shall also be permitted within the Silvermine Tavern Village District Overlay subject to the following:

(a) A Special Permit is received for the clustered Single-Family Dwellings.

(b) A maximum of eleven (11), single-family dwellings, which may be clustered, with no more than

i. four (4) dwellings on 1 River Road,

ii. one (1) dwelling with a Detached Accessory Dwelling Unit on 192 Perry Avenue,

iii. no more than six (6) dwellings on 3 and 5 River Road and 1032 Silvermine Road,

iv. a total Parcel area containing a minimum of six (6) acres.

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(c) New clustered Dwellings shall not exceed a maximum of four thousand four hundred (4,400) square feet of gross Floor Area per unit including a minimum of one thousand one hundred and fifty (1,150) square feet of basement floor area, and shall not exceed one and one half (1 1/2) stories and a maximum height of thirty (30) feet to the peak of a pitched roof.

cg. Small Multifamily Building shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall comply with the Workforce Housing standards Section 6.12.

(2) Within the CD-4, Small Multifamily Building Types shall not be permitted on a Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended, Water Street, Belden Avenue, Commerce Street or within the O-MSVD, unless:

a. The Lot or Building Site Area is less than or equal to 5,000 square feet; or

b. The Frontage Buildout is compliant and at least fifty percent (50%) of the required Frontage Buildout contains a permitted non-residential Use; and

c. The remaning portion of the Frontage Buildout contains either tenant amenity space, Artist Live/Work, and/or Townhouse(s) with a Stoop or Terrace/Lightwell Private Frontage Type and separate entrance for each Townhouse unit, or any combination thereof.

ch. Solar Panels – Roof Mounted And Freestanding shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall comply with the standards for Solar Panels Section 6.11.2.B.

ci. Sports Courts shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No Sports Court shall be located between the front lot line (i.e. the street right-of-way) and the dwelling as shown in the hatched area(s) below:

(2) Sports Courts are subject to double (two times) the required side and rear accessory structure setbacks.

(3) The sale of food, beverages (including alcoholic and non-alcoholic beverages), cigarettes, and other retail items is prohibited on any residential property in a residential zone containing a Sports Court.

(4) Sports Courts in residential areas are not to be operated for profit or as a commercial use.

(5) A solid fence or screen shall be installed surrounding the Sports Court, or portion thereof.

(6) All artificial lighting used to illuminate any Sports Court shall be so arranged that all direct rays from such lighting shall fall only on such Sport Court. All other relevant lighting standards as outlined in these regulations still apply.

(7) Public Address systems are prohibited on any residential property in a residential zone containing a Sports Court.

(8) Any Sports Court larger than 1,500 square feet is subject to Special Permit.

cj. Storage Of Commercial Vehicle(s) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-1L, CD-1M, CD-1S, CD-2, CD-3, CD-3W, CD-4 and CD-4W zones:

(a) No more than one (1) Commercial Vehicle shall be stored on the Property.

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(b) The Commercial Vehicle shall be stored in the Rear Yard only.

(c) The Commercial Vehicle shall not exceed a Gross Vehicle Weight Rating (GVWR) of 15,000lbs or a Payload Capacity of 8,000lbs; also see "Commercial Vehicle" definition.

(2) Within the CD-3C, CD-4W, SD-H, SD-LI, SD-HI and SD-MC zones:

(a) The area dedicated to Storage of Commercial Vehicle(s) shall be in the Rear Yard only and shall be screened from Frontage and Civic Space by Building or Streetscreen; or by Building, wall, hedge or fence not at Frontages or Adjacent to Civic Space.

ck. Tag/Garage/Yard Sale shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Not to exceed three (3) per calendar year per property,

(2) Shall be allowed as an Accessory Use to a permitted Residential Use, provided that each tag sale event shall be limited to a maximum of three (3) days and is operated during daytime hours only by a resident of the property.

cl. Tobacco/Vape Shop shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No TobaccoVape Shop shall be closer than one (1) mile from another Lot which contains another Tobacco/Vape Shop use. The distance shall be measured in a straight line from the nearest legal Lot or Building Site Line of one Lot to the nearest legal Lot or Building Site Line of the other Lot.

(2) Tobacco/Vape Shops shall post clear signage on the entrance(s) to their establishment that any person(s) under the age of eighteen (18) years old shall not enter the premises unless accompanied by a parent or legal guardian.

(3) Tobacco/Vape Shops shall not serve alcohol, have a "bring your own beverage" policy, or allow patrons to consume alcohol within their establishment.

(4) Tobacco/Vape Shops shall not display any e-nicotine delivery and/or vapor products within ten (10) feet of the façade glazing of their establishment.

(5) Said business must also obtain an electronic nicotine delivery system certificate of dealer registration from the Connecticut Department of Consumer Protection and provide that to the City prior to obtaining a Certificate of Zoning Compliance.

cm. Trade Or Vocational Schools shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Training or educational programs shall be certified by the State of Connecticut

(2) Use of a Trade or Vocational School shall be limited to members of the trade or profession enrolled in apprenticeship and upgrading programs as defined in Chpater 557, Part Ia, Section 31-22m to 31-22q of the Connecticut General Statutes, as amended.

cn. Warehouse shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A Site Plan Review, pursuant to Section 8.4.5, shall be required in accordance with Section 4.3.9.C and/or when on a Lot or Building Site that abuts a residential Zoning District.

(2) A Special Permit, pursuant to Section 8.4.8, shall be required for a Warehouse Use and/or Structure that exceeds twenty thousand (20,000) square feet in gross Floor Area.

(3) Motor Vehicle Storage is Permitted within

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a Warehouse, provided that:

a. There is not on-site motor vehicle repair which requires a K-7 license from the Connecticut Department of Motor Vehicles.

b. There is no retail or wholesale sales of motor vehicles or motor vehicle parts.

co. Warehousing shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Warehousing shall only be Accessory to the following Use(s):

a. Cannabis Delivery Service; Cannabis Food & Beverage Mfg.; Cannabis Transporter; Manufacturing & Processing, Boutique; Manufacturing & Processing, Light; Brew Pub/Distillery; Boat-Building facility; Boat repair and service facility; Commercial fishing facility; Finfish and shellfish processing plant; Harbor/Port Facility; Marina; Ship Chandlery; Shipyard; Research and Development Facility; Municipal Utility Plant or Storage Yard; Warehouse

(2) A Site Plan Review, pursuant to Section 8.4.5, shall be required in accordance with Section 4.3.9.C and/or when on a Lot or Building Site that abuts a residential Zoning District.

cp. Waterfront Clubs shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-1L, CD-1M, CD-1S and CD-2 zone(s):

(a) The total Building Coverage shall not exceed 25% of the Lot or Building Site Area.

(b) The total Impervious Surface Coverage shall not exceed 50% of the Lot or Building Site Area.

(c) The total Impervious Surface Coverage may be increased to 75% of the Lot or Building Site Area provided that:

(i) 75% or more of the Lot or Building Site's stormwater is retained on-site through Low Impact Development (LID) practices; and

(ii) At least 25% of the Lot or Building Site Area, excluding the beach area landward of the mean high-water line shall be landscaped with native, climate-tolerant species.

(d) Waterfront Clubs, including parking and loading facilities, shall be effectively screened from view from adjacent streets and properties.

(e) The number of Principal Buildings may exceed one (1), provided that the total Building Coverage does not exceed 25% of the Lot or Building Site Area.

(f) Auditorium, Community Center, or other Place of Assembly; Child Day-Care Center; Youth Day Camp; Restaurant; Office; Government Agencies & charitable organizations; Library; Community Garden; Green; Park; Playground; Pocket Park: Sport Field; Famers Market; Boathouses, Boat Landings, and Boat Docks; Live Music; Outdoor Dining; Rooftop Garden; Solar Panels – Freestanding; Sports Court; Solar Panels – Rooftop use(s); and seasonal employee housing shall be permitted as Accessory Use(s).

(2) Within the CD-3, CD-3C, and CD-4 zone(s):

(a) All other Use(s) that are permitted within the Zone shall be permitted as Accessory Use(s) to a Waterfront Club, in accordance with the applicable Use Table.

(b) Shall be subject to Section 8.4.8 Special Permit.

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(3) Within the CD-3W, CD-4W, SD-MC and CV zone(s):

(a) All other Use(s) that are permitted within the Zone shall be pemritted as Accessory Use(s) to a Waterfront Club, in accordance with the applicable Use Table.

(b) Shall be subject to Section 8.4.5, Site Plan Review.

(4) Waterfront Clubs shall be exempt from installing EV charging stations below the Base Flood Elevation.

H. General Performance Standards for All Uses.

1. Any activity which releases smoke, particulate matter, gases or contaminants into the atmosphere shall comply with all applicable federal and State regulations.

2. All activities shall comply with the City Fire Codes.

3. All activities shall comply at a minimum with all applicable State and federal regulations as well as the appropriate County Health Department regulations and City and County fire department regulations for hazardous materials and wastes.

4. All activities shall control electromagnetic frequencies so that there is no interference in the operation of equipment off-site and no adverse effects to persons off-site.

5. Any activity which discharges material or liquids into sanitary sewers shall conform to all federal, state and local discharge and release regulations. City sanitation ordinances may also apply. The drainage of waste or stored materials onto adjacent properties or directly into creeks and watercourses or into the stormwater conveyance system is prohibited. Only uncontaminated stormwater runoff may be discharged into the stormwater conveyance system.

6. All activities shall comply with all federal and State regulations which apply to the handling, storage, and disposal of nuclear material.

7. All activities shall comply with all City regulations which pertain to the emanation of sound waves.

4.3.10 Encroachments.

Encroachments of Building Elements are allowed within each District and Civic District only as set forth in **Table 4.3.10 Encroachments.**

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TABLE 4.3.10 ENCROACHMENTS

Encroachments – Required Setbacks*

**Encroachments shall not violate Section 4.3.3.G, Visibility.*

Encroachment Type	Front/street	Side	Rear
Steps to Building Entrance	P	P	P
Open Porches, including steps, and Stoops	P By no more than 10 ft.	NP	NP
Patios	NR	NR	NR
Openwork Fire Escapes & Fire Balconies	NP	P by no more than 6 ft.	P by no more than 6 ft.
Chimney flues, sills, belt courses, cornices, buttresses eaves and other Architectural Features	P by no more than 2 ft	P by no more than 2 ft	P by no more than 2 ft
Mechanical equipment, including HVAC	NP	P by no more than 2 ft	P by no more than 2 ft
Underground utility lines, wires and associated Structures (e.g. poles)	NR	NR	NR
Fences, hedges, walls (not including Retaining Walls), Shrubbery, and other landscape features	NR Subject to 4.3.3.G.1 (sight lines)	NR Subject to 4.3.3.G.1 (sight lines)	NR Subject to 4.3.3.G.1 (sight lines)
Parking Areas and Loading Areas	NP* *except as permitted in Section 4.3.12.B.4	P Shall be no closer than 3 ft. to the Side Lot or Building Site Line	P Shall be no closer than 3 ft. to the Side Lot or Building Site Line
Bicycle Parking	NR	NR	NR
Balconies and Bay Windows	P by no more than 2 ft	P by no more than 2 ft	P by no more than 2 ft
Awnings or canopies without support other than integral or wall support	P	P	P
Signs permitted by Article 7 (Signs)	P	P	P
Eaves, gutters or downspouts	P By no more than 24 in. or 20% of Setback	P By no more than 24 in. or 20% of Setback	P By no more than 24 in. or 20% of Setback
Mailboxes	NR	NR	NR
Sculptures or similar artistic objects	NR	NR	NR

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Encroachments – Required Setbacks & Yards (continued)			
Street furniture, such as benches, drinking fountains, trash receptacles, ash trays, and lighting standards	P	P	P
Driveways	P *Shall be no closer than 3 ft. to Side Lot or Building Site Line	P *Shall be no closer than 3 ft. to Side Lot or Building Site Line	P *Shall be no closer than 3 ft. to Side Lot or Building Site Line
Sidewalks	NR	NR	NR
Outdoor Dining	P	P	P

LEGEND The following notations are utilized in this table.			
	P	Permitted	NP Not Permitted

4.3.11 Screens, Streetscreens, & Lot/Building Site Buffers

A. Compliance with Standards.

Any Screen, Streetscreen, or Buffer required under these Regulations shall comply with the applicable standards and requirements in **Tables 4.3.1-A – 4.3.1-O (District Standards)**, and this Section 4.3.11.

B. When Screening Required.

Screening of the items and conditions indicated shall be provided as required for each applicable District in **Tables 4.3.1-A – 4.3.1-O (District Standards)**, and this Section 4.3.11, except in each case, at any Driveway.

C. Location of Streetscreen.

Any Streetscreen must be located as set forth in **Tables 4.3.1-A – 4.3.1-O (District Standards).**

D. Wall Screen / Streetscreen Material.

A Wall Screen or Streetscreen shall be constructed of the materials specified in **Tables 4.3.1-A – 4.3.1-O (District Standards).**

E. Fence Screen / Streetscreen Material.

A Fence Screen or Streetscreen shall be constructed of the materials specified in **Tables 4.3.1-A – 4.3.1-O (District Standards).**

F. Hedge Screen / Streetscreen Standards.

A hedge Screen or Streetscreen shall consist of plants meeting the standards of **Tables 4.3.1-A – 4.3.1-O (District Standards).**

G. Openings in Streetscreens.

Streetscreens shall have openings no larger than necessary to allow vehicular and pedestrian access.

H. Lot/Building Site Buffer Requirements.

1. For Project Buffers applicable to Development Parcels, see Section 5.6.

2. If a Project Buffer exists or is required pursuant to Section 5.6, a Lot or Building Site Buffer is not required under this Section 4.3.11.H.

3. Except as provided in paragraph 4.3.11.H.2 or as

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otherwise specifically provided in these Regulations, a Lot or Building Site Buffer must be provided for any new Commercial or Industrial Development or Structure within Districts CD-3C, SD-LI, SD-HI, SD-H, or SD-MC along the common Lot or Building Site boundary on which a Single-Family Dwelling or Two-Family Detached Residential Dwelling is located. Except as otherwise specifically provided in these Regulations, all Lot or Building Site Buffers required under this Article 4 must meet the following requirements:

TABLE 4.3.11.H-1 LOT/BUILDING SITE BUFFER

District of New Dev/ Structure	Buffer Depth	Buffer Design
CD-3C	25 ft.	Min. 90% opacity 3 ft. from ground and up; Evergreen plants > 2.5 in. caliper measured 3 ft from ground & 10 ft tall @ installation & 20 ft. tall @ maturity, planted < 10 ft. o.c.
SD-LI, SD-HI, SD-H, or SD-MC	25 ft.	Same

4. The Buffer design shall be subject to the approval of the Planning and Zoning Director. Fences, Walls, berms, existing vegetation or natural changes in grade may supplement planted material or be considered in lieu thereof when, in the opinion of the Planning and Zoning Director, the intent of this Regulation is adequately served. The Planning and Zoning Director shall consider the extent to which the treatment of the Buffer screens noise, glare, smoke, and visibility from Adjacent properties.

4.3.12 Parking

A. General.

1. Within each District, all Parking Areas, Parking Structures, Parking Lots, Garages, and other Parking accommodations shall be provided, located, designed, accessed, constructed, maintained, operated, and otherwise meet the standards and requirements specified for the applicable District in **Tables 4.3.1-A – 4.3.1-O (District Standards), Table 4.3.12.B-1 (Vehicular Parking Requirements)** and **Table 4.3.12.C-1 (Off-street Vehicular Parking Space Dimensions)** or **Table 4.3.12.C-2 (Off-street Compact Vehicular Parking Space Dimensions),** except as they may be modified by the handicapped Parking regulations found in Section 4.3.12.B.15 and 4.3.12.B.16.

2. Where, as of the effective date of these regulations, off-street motor vehicle parking and loading facilities are provided conforming in part or in whole with Section 4.3.12 inclusive, such off-street parking and loading facilities shall not be reduced in quantity, reduced in area or otherwise altered below the requirements set forth herein. All off-street parking and loading facilities of five (5) or more spaces shall be subject to approval by the Planning and Zoning Director.

B. Parking Required.

1. Vehicular Parking shall be provided in accordance with this Section 4.3.12 and **Table 4.3.12.B-1 (Vehicular Parking Requirements)**, shall comply with and be located and in accordance with **Tables 4.3.1-A – 4.3.1-O (District Standards)** and shall be designed in accordance with Section 4.3.12.C and **Table 4.3.12.C-1 (Off-street Vehicular Parking Space Dimensions)**.

2. A Building in existence at the time of adoption of these Regulations may continue to be used without adequate Parking and loading as required **Table 4.3.12.B-1 (Vehicular Parking Requirements).** However, should such Building be increased in area or changed in Use so as to require additional parking or loading, such additional Parking or loading shall be determined by applying the standards set forth in this Section, except in the follow situations:

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a. No off-street parking shall be required for a change of Use within an existing Structure provided the Structure is no more than one thousand (1,000) feet from a municipal parking facility, as measured along a public right-of-way.

3. Vehicular Parking required for each Lot or Building Site shall be determined based on the quantity of Principal Use(s) of the Lot or Building Site and the number of spaces available to the Lot or Building Site, as determined by Section 4.3.12.B and **Table 4.3.12.B-1 (Vehicular Parking Requirements).**

4. In addition to the Parking required in Table 4.3.12.B.1, each Lot or Building Site within the CD-1L, CD-1M, CD-1S and CD-2 zones may provide one (1) additional Parking Space for each Dwelling Unit(s) provided that:

a. For Lots or Building Sites with a Lot Area less than 10,000 square feet, a max. of 50% of the Front Yard may be dedicated to Driveway and Parking; except that Two-Family Detached Dwellings and Duplexes may have a max. of 60% of the Front Yard dedicated to Driveway and Parking.

b. For Lots or Building Sites with a Lot Area greater than or equal to 10,000 square feet, a max. of 35% of the Front Yard may be dedicated to Driveway and Parking.

c. There is a max. of one (1) Parking Space or backup area per Dwelling Unit.

d. Each additional Parking Space or backup area does not exceed 200 square feet.

e. No additional Parking Space or backup area shall be located within ten (10) feet of any Property or Building Site Line.

f. The additional Parking Space(s) or backup area(s) shall be screened from the STreet with landscaping with a min. height and width of three (3) feet.

5. The number of spaces of Parking available to a Lot/Building Site is the sum of

a. All spaces within the Lot/Building Site, and

b. If elected by the Applicant, off-street spaces within the same or an Adjacent Block within a public Parking Lot or Parking Structure or by a recorded Parking agreement, Easement or other Long-Term Instrument. The Long-Term Instrument may consist of a base term with a renewal option, provided that the total number of years identified in the instrument equals at least twenty (20) years. At the termination of the initial long-term instrument, the parking easement or lease shall be extended for another twenty (20) year period or another Long-Term Instrument must be entered into for off-premises Parking. Any renewal or new Long-Term Instrument shall be subject to approval by the Planning and Zoning Director.

c. Any fractional spaces shall be rounded down to the nearest whole number.

6. Within the CD-4 and CD-4W zones, the Commission may, by Special Permit, allow for a permanent reduction of all or a portion of the Parking Spaces required, provided that:

a. For Lots/Building Sites or Structures within 1/2 mile of the South Norwalk Train Station:

(1) The Commission shall refer the application to the Transportation, Mobility, and Parking Department for consideration; and

(2) The applicant sufficiently demonstrates that:

(a) The nature of the Building or Use and the factors which determine parking demand result in fewer parking spaces to meet actual parking needs than those required by these Regulations; and

(b) Physically locating some or all of the

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required number of parking spaces is impossible or impractical based on specific traits of the Lot/Building Site;

(c) The reduction or elimination of parking will not interfere with the orderly Development of any Abutting Property; and

(d) The proposed Development will be beneficial to the community and is consistent with the intent of these Regulations.

b. For Lots/Building Sites or Structures beyond 1/2 mile from the South Norwalk Train Station:

(1) The Commission shall refer the application to the Transportation, Mobility, and Parking Department for consideration; and

(2) The applicant shall pay a fee-in-lieu to the City for each parking space being waived, provided that:

(a) The payment of fee-in-lieu of parking for new Construction shall be determined by multiplying the number of proposed spaces x $20,000;

(b) Funds collected from such payments shall be deposited and used solely in accordance with the provisions of Section 8-2c of the Connecticut General Statutes, as amended;

(c) Any off-street parking requirement met in this manner shall constitute a covenant running with the land such that a change in ownership shall not require payment of an additional fee;

(d) Properties that are within 1,000 feet of a municipal parking facility may not obtain a Variance for the required minimum number of parking spaces from the Zoning Board of Appeals;

(e) One hundred percent (100%) of the payment due for each designated Property choosing to utilize this regulation shall be made to the City of Norwalk prior to the issuance of a Zoning Permit to the applicant;

(f) Funds paid to the City of Norwalk as a fee-in-lieu of parking shall not be refundable for any reason;

(g) Nothing herein shall be deemed to require the city to undertake the acquisition, construction, expansion or development of any particular off-street public parking facility;

(h) The nature of the Building or Use and the factors which determine parking demand result in fewer parking spaces to meet actual parking needs than those required by these Regulations;

(i) Physically locating some or all of the required number of parking spaces is impossible or impractical based on specific traits of the Lot/Building Site;

(j) The reduction or elimination of parking will not interfere with the orderly Development of any Abutting Property;

(k) The proposed Development will be beneficial to the community and is consistent with the intent of these Regulations.

7. Within the CD-4 and CD-4W zones, additions to historic Structures are exempt from providing the minimum number of Vehicular Parking spaces found in Table 4.3.12.B-1 (Vehicular Parking Requirements), provided that they comply with Section 4.3.20.2.

8. For Large Multi-Family Developments and Mixed-Use projects, the minimum required number of Vehicular Parking Spaces found in **Table 4.3.12.B-1 (Vehicular Parking Requirements)** may be further reduced in accordance with **Table 4.3.12.B-4**

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(Parking Reductions Near Mass Transit Facilities), which may be applied in any combination:

TABLE 4.3.12.B–4 PARKING REDUCTIONS NEAR MASS TRANSIT FACILITIES

	Mass Transit Facility			
	East Norwalk Station	Merritt Station	Norwalk Transit Hub	SoNo Station*
1/8 mile	10%	10%	25%	25%
1/4 mile	Not Applicable	Not Applicable	10%	10%

*Within SD–MC, Residential or Mixed–Use Development within 1/2 mile of the SoNo Station may reduce parking by 10%, provided that they comply with the Additional Standards for Residential and Mixed–Use Development in SD–MC.

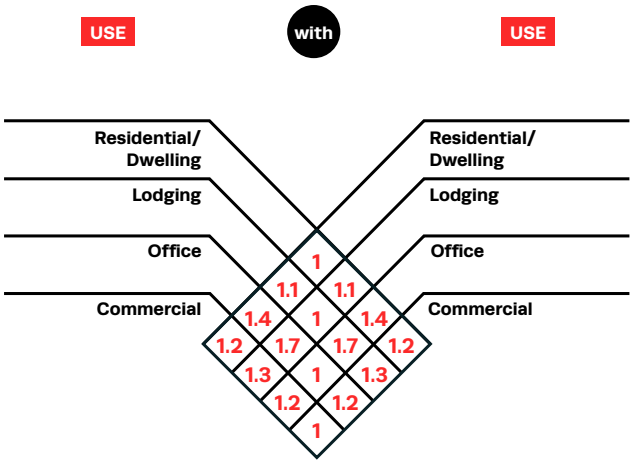
9. The number of spaces of Parking available to a Lot or Building Site must not be less than the number of spaces of Parking determined by **Table 4.3.12.B–1 (Vehicular Parking Requirements)** based on the quantity of Principal Use(s) on the Lot or Building Site, provided that the minimum number of spaces may be reduced pursuant to any applicable parking reductions within these Regulations. Further, the number of spaces of Parking available to a Lot or Building Site within the CD–3, CD–3W, CD–3C, CD–4, CD–4W, SD–LI and SD–MC zones shall not exceed the number of spaces of Parking determined by Table 4.3.12.B–1 (Vehicular Parking Requirements) based on the quantity of Principal Use(s) on the Lot or Building Site by more than 50%.

10. Any parking spaces within a Parking Area or Parking Lot provided above the minimum number of spaces required, shall be pervious, either through gravel, porous pavers, pavers with wide joints to let water seep into gravel underlayment, or porous asphalt, or other media approved by the City.

11. For purposes of this Section 4.3.12.B, the number of Parking Spaces available to a Lot or Building Site may be reduced, at the election of the Applicant, by dividing the number of spaces of Parking required to be available to the Lot or Building Site by the applicable Shared Parking Factor. For Mixed–Use Residential Developments (including Mid–Rise), the minimum number of Parking Spaces required shall be the greater of 1.3 Parking Spaces per Dwelling Unit, or after applying any otherwise permissible parking reduction(s), the total required Parking Spaces for Commercial Uses in addition to one (1) Parking Space per Dwelling Unit for Residential Units.

12. The applicable Shared Parking Factor is determined under **Table 4.3.12.B–5 (Shared Parking Factor)** for any two or more Principal Uses within the same Lot or Building Site.

TABLE 4.3.12.B–5 (SHARED PARKING FACTOR)



13. Any land Use, the major Use of which is during the weekend or evening hours, may meet fifty percent (50%) of the required parking facilities through the use of parking spaces provided for land or Buildings the major Use of which is during the weekday or daylight hours and is within the same or any Adjacent Block.

14. In determining compliance with this Section 4.3.12.B, the following shall not be counted:

a. Liner Buildings fewer than thirty (30) feet deep and no more than two (2) Stories.

15. Parking spaces to accommodate the needs

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of handicapped individuals shall be provided in accordance with the following **Table 4.3.12.B-6 (Off-street Handicapped-Accessible Parking)**, designed in compliance with Section 4.3.12.C.

TABLE 4.3.12.B-6 REQUIRED HANDICAPPED-ACCESSIBLE PARKING SPACES

# Off-street Spaces Provided	Min. # Accessible Spaces
1-200	1 per 25 required spaces
201-500	1 per 50 required spaces
501 or more	10 + 1 per 100 required spaces above 500 spaces

16. One out of every eight required handicapped accessible spaces shall be van-accessible. A minimum of one van-accessible space shall be provided.

17. Any Plan submitted under these Regulations must show the proposed types, numbers, and arrangement of Parking accommodations, including access to such areas from the Streets and Internal Drives, with spaces complying with all requirements of this Section 4.3.12.B.

18. Reasonable and appropriate off-street parking requirements for Buildings and Uses not specifically provided for shall be determined by the Planning and Zoning Director, upon consideration of all factors entering into the Parking needs of such Use and by comparison with the uses enumerated above.

19. Valet and Tandem Parking Requirements

a. Off-street Parking for a Hotel, Extended Stay Hotel and a Hotel with a separate Office space may be provided through the use of indoor valet Parking facilities, subject to approval of an operating plan by the Planning and Zoning Commission.

b. Off street parking for Residential developments , including the Residential portion of Flex, Live/Work, Mid-Rise, and Mixed-Use Building Type(s), containing more than fifty (50) Dwelling Units and located in CD-4 may be provided through the use of valet Parking, tandem spaces, compact and/or vehicle stacker devices, subject to approval by the Planning and Zoning Commission and submission of a Parking Operation and Management Plan.

c. Required Off-Street Parking Spaces for each Dwelling Unit for Two-Family Detached Dwellings and Duplexes may be provided via tandem spaces.

d. Unless as Permitted within this Section, required Parking Spaces cannot be tandem Parking Spaces.

20. Electric Vehicle Charging Station Requirements

a. Any development with twenty (20) or more parking spaces shall include electric vehicle charging stations, that are at a minimum, Level 2 chargers in at least ten percent (10%) of such parking spaces and EV-Ready in at least ten percent (10%) such parking spaces. Any multifamily Development with less than twenty (20) parking spaces shall be EV-Capable in at least ten (10%) of such parking spaces.

b. Any Development within the Flood Hazard Zone Overlay shall not be required to install electric vehicle charging stations within the Base Flood Elevation.

c. Any advertising posted on an EV charger shall not exceed one (1) square foot.

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TABLE 4.3.12.B–1 VEHICULAR PARKING REQUIREMENTS

PRINCIPAL USE	Minimum Number of Parking Spaces Available to Lot Per Unit of Measure
RESIDENTIAL USES CATEGORY	
Boarding or Rooming Houses	1 per guest bedroom + 1 per each 2 employees on the premises at one time
Community Residences	2 per Community Residence + 1 per staff member
Congregate Housing	1 per 4 Dwelling Units
Dormitory	0.5 per Dormitory Room
Elderly Housing Units	1 per Dwelling Unit
Group Home	2 per Group Home + 1 per each counselor
Halfway House	1 per bedroom + 1 per staff member
Large Multifamily Building and Small Multifamily Building	1.3 per Dwelling Unit
Residential Portion of Flex Building Type, Live/Work Building Type, Mid–Rise Building Type and/or Mixed–Use Building Type	1.3 per Dwelling Unit
Single–Family Detached Dwelling and Two–Family Detached Dwelling	2 per Dwelling Unit; except that within the CD–3, CD–3W, CD–3C, CD–4, CD–4W, SD–MC and SD–LI: 1.3 per Dwelling Unit
Townhouse	1 per Dwelling Unit
LODGING USES CATEGORY	
Bed & Breakfast	1 per Dwelling Unit + 1 per guest bedroom + 1 per each 2 employees on the premises at one time
Extended Stay Hotel	0.75 per guest room + 1 per each 2 employees on the premises at one time
Hotel	1 per guest room + 1 per each 2 employees on the premises at one time
Inn	1 per Dwelling Unit + 1 per guest bedroom + 1 per each 2 employees on the premises at one time
Lodge	1 per guest bedroom + 1 per each 2 employees on the premises at one time + 1 per 500 square feet of Usable Floor Area dedicated to event or dining facilities
Motel	1 per guest room + 1 per each 2 employees on the premises at one time
OFFICE USES CATEGORY	
All Office Uses	1 per 334 square feet of total Usable Floor Area
COMMERCIAL USES CATEGORY	
RECREATIONAL & ENTERTAINMENT USES	
Adult Day Care Facility	1 per staff member
Amphitheater	1 per 2 seats + 1 per 20 square feet of standing area
Automobile Trailer Park	2 per Automobile Trailer

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TABLE 4.3.12.B–1 VEHICULAR PARKING REQUIREMENTS

PRINCIPAL USE	Minimum Number of Parking Spaces Available to Lot Per Unit of Measure
Commercial Recreation Establishment	1 per 500 square feet of total Usable Floor Area if less than 1,500 square feet of Floor Area Subject to the submission of a traffic and parking management plan to be reviewed by the Commission if 1,500 square feet or more of Floor Area.
Golf Club	1 per 4 members, based on the maximum membership to be accommodated
Health Club	1 per 1,000 square feet of total Usable Floor Area
Theater	1 per 5 permanent seats, based on the maximum seating capacity
Social clubs	1 per 500 square feet of Usable Floor Area
DINING & ALCOHOLIC BEVERAGE ESTABLISHMENTS	
Brew Pub/Distillery	1 per 100 square feet of total Usable Floor Area
Restaurant	1 per 100 square feet of total Usable Floor Area
RETAIL & PERSONAL SERVICE USES	
Animal Care Center	1 parking space per 10 animal suites and 1 space per 200 square feet of Usable Floor Area devoted to animal grooming facilities
Artist Live/Work	0.5 per Dwelling Unit
Artist studio or workspace	1 per 500 square feet of total Usable Floor Area
Funeral Home	1 per full time employee + 15 spaces per chapel room
Medical Marijuana Dispensary	1 per 500 square feet of total Usable Floor Area
Nail Salons/Barber Shops	1 per chair/station
Personal Service Establishment	1 per 500 square feet of total Usable Floor Area
Printing Establishment	1 per employee + 1 per 500 square feet of public Usable Floor Area
Retail Sales	1 per 500 square feet of total Usable Floor Area
ADULT USES	
Adult Use Establishment	1 per 200 square feet of Usable Floor Area
CIVIC USES CATEGORY	
RELIGIOUS FACILITIES	
Religious Facilities	1 per 3 permanent seats, or 1 per each 40 square feet of seating area where fixed seating is not provided
CIVIL SUPPORT	
Cemetery	1 per full time employee
Firehouse/Police Station	Not Regulated
CULTURAL & ENTERTAINMENT	
Amphitheater	1 per 2 seats + 1 per 20 square feet of standing area

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TABLE 4.3.12.B–1 VEHICULAR PARKING REQUIREMENTS

PRINCIPAL USE	Minimum Number of Parking Spaces Available to Lot Per Unit of Measure
Auditorium, Community Center, or other Place of Assembly	1 per 5 permanent seats, based on the maximum seating capacity or 1 per 500 square feet where fixed seating is not provided
Library	Not Regulated
Maritime Center	1 per 500 square feet of total Usable Floor Area
Museum	1 per 500 square feet of total Usable Floor Area
Performing arts theater	1 per 5 permanent seats, or 1 per each 40 square feet of seating area where fixed seating is not provided
RECREATION	
Civic Space – Community Garden, Green, Park, Playground, Plaza, Pocket Park, Sport Field, Square	Not Regulated
TRANSPORTATION	
Boat Terminal	1 per 100 square feet of waiting area + 1 per 2 employees
Bus Storage Terminal	Transit vehicle storage space + 1 per 2 employees
Municipal Public Parking	Not Regulated
Railroad Station	Not Regulated
Transportation Terminals	Transit vehicle storage space + 1 per 150 square feet of waiting area + 1 per 2 employees
AGRICULTURAL USES CATEGORY	
Farmers Market	Not Regulated
Landscape Nursery	Not Regulated
INSTITUTIONAL USES CATEGORY	
HEALTHCARE	
Convalescent/Nursing/Rest Home	1 per 3 beds
Hospital	.50 per bed
EDUCATION	
Elementary or Secondary School	1 per employee
Child Day-Care Center	1 per teacher or other staff + 1 per 20 students
College or University	1 per teacher or other staff + 0.5 per student seat
School or Institution for the disabled	1 per teacher
Trade or Vocational School	1 per teacher or other staff + 1 per student seat
Youth Day Camp	Not Regulated
MARINE & VESSEL USES CATEGORY	
MARINE	
Boat-Building facility	1 per employee + 1 per work bay
Boat repair and service facility	1 per 500 square feet of total Usable Floor Area
Boat sales, rental, or leasing	1 per 200 square feet of Usable Floor Area + 1 per boat available for rental or sale + 1 per employee work

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TABLE 4.3.12.B–1 VEHICULAR PARKING REQUIREMENTS

PRINCIPAL USE	Minimum Number of Parking Spaces Available to Lot Per Unit of Measure
Boat storage	1 per 3 Boat Rack storage spaces
Commercial boat dock	0.5 per employee
Commercial fishing facility	0.5 per employee
Finfish and shellfish processing plant	1 space per 2,000 square feet of total Usable Floor Area, with a minimum of 1 space per 2 employees on premises at one time, but no fewer than 2 spaces
Harbor/Port Facility	1 per mooring or Boat Dock space
Marina	1 per 200 square feet of administrative space + 1 per 10 Boat storage spaces
Marine enforcement	Not Regulated
Marine research laboratory	1 per 2,000 square feet of Usable Floor Area, with a minimum of 2 spaces per employee on premises at one time
Marine supply store	1 per 500 square feet of total Usable Floor Area
Recreational boating or fishing facility	1 per 4 passengers based on the United States Coast Guard rating of the boat or vessel
Ship Chandlery	1 per 500 square feet of total Usable Floor Area
Shipyard	1 per employee + 1 per work bay
Waterfront Club	1 per 4 members
Sail Loft	1 per employee + 1 per work bay
AUTOMOTIVE USES CATEGORY	
Car Club	1 space per 5,000 square feet of usable floor area plus 1 space per employee; accessory event, lounge and club space – 1 space per 500 square feet of usable floor area
Motor Vehicle Body Shop	1 per work bay + 1 per employee
Motor Vehicle Maintenance, Repair, Service	1 per work bay + 1 per employee
Motor Vehicle Fuel Sales	1 per 500 square feet of total Usable Floor Area within associated Retail Sales Structure
Motor Vehicle Cleaning	10 spaces + 1 per 2 employees
Motor Vehicle Sales, Rental, or Leasing	1 per 200 square feet of Usable Floor Area + .25 per vehicle available for rental or sale + 1 per employee work
INDUSTRIAL & UTILITIES USES CATEGORY	
INDUSTRIAL	
Building Materials Storage Yards	1 per employee + 1 per 500 square feet of Retail Sales area
Commercial Vehicle Storage Yard	1 per employee + 1 per 500 square feet of Retail Sales area
Composting Centers	1 per employee
Concrete plants	Not Regulated
Distribution (Fulfillment) Facility	1 per 5,000 square feet of Usable Floor Area, with a minimum of 1 per employee on premises at one time
Earth Processing & Contractor's Materials Storage Yard	1 per employee

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TABLE 4.3.12.B–1 VEHICULAR PARKING REQUIREMENTS

PRINCIPAL USE	Minimum Number of Parking Spaces Available to Lot Per Unit of Measure
Indoor Contractor Facility	1 per 5,000 square feet of Usable Floor Area, with a minimum of 1 per employee on premises at one time
Junkyard	1 per employee + 2 per acre
Manufacturing & Processing, Boutique	1 per 500 square feet of total Usable Floor Area
Manufacturing & Processing, Light	1 space per 2,000 square feet of total Usable Floor Area, with a minimum of 1 space per 2 employees on premises at one time, but no fewer than 2 spaces
Manufacturing & Processing, Heavy	Not Regulated
Motor vehicle storage	1 per 5,000 square feet of Usable Floor Area, with a minimum of 1 per employee on premises at one time
Natural gas storage	Not Regulated
Oil or petroleum storage facility	Not Regulated
Propane gas storage	Not Regulated
Recycling Operations	1 per employee
Research and Development Facility	1 per 1,600 square feet off Usable Floor Area + 3 per 1,000 square feet of any ancillary Uses
Rock Crushing/Processing Facility (Indoor only)	Not Regulated
Self–Storage Facility	1 per 5,000 square feet of Usable Floor Area, with a minimum of 1 per employee on premises at one time
Solid Waste Transfer Station	Not Regulated
Warehouse, storage, and Wholesale Distribution Facilities	1 per worker employed at any one time + 1 per 5,000 square feet of Usable Floor Area or fraction thereof; where the number of workers cannot be determined, 1 per 500 square feet of Usable Floor Area
UTILITIES	
All Utilities Uses	Not Regulated

C. Design.

1. In all Districts, Parking Lots shall be designed in accordance with this Section 4.3.12.C and other applicable provisions of this **Article 4**.

2. Except as otherwise provided for compact vehicle Parking accommodations under Section 4.3.12.C.7, the dimensional standards set forth in **Table 4.3.12.C–1 (Off–street Vehicular Parking Space Dimensions)** are applicable to off–street Parking accommodations:

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TABLE 4.3.12.C–1 (OFF–STREET VEHICULAR PARKING SPACE DIMENSIONS)

Parking Angle (Degrees)	Space Width	Minimum Stall Length	Aisle Width
0	7 ft.	22 ft.	12 ft.
30–53	8 ft. – 9 ft.	19 ft.	13 ft.
54–74	8 ft. – 9 ft.	19 ft.	18 ft.
75–90	8 ft. – 9 ft.	19 ft.	24 ft.

3. The Parking Space width shall be measured perpendicular to the direction of parking. When columns occur along the side lines of Parking spaces located within a Building or Structure, the width of the Parking Space shall be determined by measuring the width between the column faces.

4. The aisle width dimensions as set forth in the chart in **Table 4.3.12.C–1 (Off–street Vehicular Parking Space Dimensions)** assume one–way circulation for all parking angles. At a Parking angle of ninety degrees (90˚) the same dimensions apply for two–way circulation.

5. For a Parking angle of zero degrees (0˚), add ten (10) feet to the aisle for two–way circulation.

6. Where Parking Spaces of different dimensions share the same aisle, the Parking Space requiring the greater aisle width shall govern.

7. Any ramps leading from a Street or Internal Drive to a Parking Lot, Parking Area, Garage, or Parking Structure shall be at least twenty feet (20 ft.) wide for two–way traffic and 10 feet (10 ft.) wide for one–way traffic.

8. All access drives and Parking and loading access shall be paved with an appropriate hard surface pavement that is durable, dust free and maintained in good condition. In Special Permits for Multi–family Dwellings containing twelve (12) or more units, the surface and subsurface driveways must conform with all applicable City Standards.

9. All Parking accommodations counted toward the applicable Parking requirements shall be paved and completed prior to issuance of the Final Certificate of Occupancy for the related Building(s).

10. Any Parking Area or Parking Lot of five (5) or more spaces in the Front or Side Yard shall be Screened from view in accordance with Section 4.3.11 and **Tables 4.3.1–A – 4.3.1–O (District Standards).**

11. Any Parking Area or Parking Lot having five (5) or more spaces shall include Curbs, paving, Sidewalks, drainage facilities and lighting in accordance with these Regulations and all other applicable laws, regulations and specifications.

12. The maximum slope permitted for any required Parking shall not exceed eight percent (8%).

13. Except in Districts CD–1L, CD–1M, and CD–2, all off–street Parking Spaces, aisles, crosswalks, entrances and exits shall be suitably identified with lines and arrows, subject to the approval of the Planning and Zoning Director.

14. All Parking and Loading Areas shall be suitably graded, drained and maintained to prevent erosion and stormwater runoff onto Adjacent Streets and properties. The Zoning Staff may require that drainage plans be certified by a civil engineer and, in addition, may refer said plans to the Department of Public Works for its review and recommendations.

15. All access to any City street from a Driveway shall have a concrete Driveway apron as approved by the Department of Public Works.

16. Any Parking Area or Parking Lot having ten (10) or more Parking Spaces shall conform to the following:

a. Parking Areas and Parking Lots shall contain at least one landscape island for every ten (10) Parking Spaces. Parking Lots with more than one (1) landscape island shall have such islands distributed throughout the Parking Lot.

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b. Landscape islands are permitted to be bioswales or rain gardens.

c. Interior Parking rows shall be terminated at both ends with landscape islands.

d. Each Parking island shall be of a minimum size equal to a standard Parking Space; provided that each Parking island Abutting two (2) rows of head to head Parking Spaces shall be of a minimum size and length equal to two (2) Parking Spaces.

e. Unless the parking island is covered by a solar panel, each parking island shall contain a minimum of one (1) shade tree for every single island. If a Parking island is double length or width, then two (2) shade trees shall be required.

f. Rows of Parking fronting on drive aisles including Alleys shall be provided with a minimum five feet (5 ft.) (excluding curbs) landscaped Buffer.

g. For every 2,000 square feet of Parking Area or Parking Lot, at least one tree shall be installed or preserved within the Parking Area or Parking Lot except to the extent that trees outside of the Lot containing the Parking Area or Parking Lot are allowed to satisfy this requirement as set forth below.

h. No parking space shall be more than seventy-two feet (72 ft.) from a tree within the Lot, as measured from the center of the Tree to the nearest line demarcating the space.

i. Except for trees allowed to be counted outside the Parking Area or Parking Lot, new trees shall be installed and/or existing trees preserved in tree islands provided pursuant to this Section and/or at the perimeter of the Parking Area or Parking Lot, provided that the perimeter of the Parking Area or Parking Lot where trees are installed or preserved to meet this requirement lies within the Lot on which the Parking Area or Parking Lot is located.

j. Trees outside of the Parking Area or Parking Lot located within twenty feet (20 ft.) of the closest portion of such Parking Area or Parking Lot, including but not limited to Trees within Street Rights-of-Way and Civic Spaces, may be counted toward satisfying the requirements.

k. In addition to any walkway or Sidewalk around a Parking Area or Parking Lot, each such Parking Area or Parking Lot exceeding one hundred and twenty (120) spaces shall have least one Path or Passage bisecting the Parking Area or Parking Lot and connecting to adjoining sidewalks of a minimum width of eight feet (8 ft.) that is paved differently from the parking spaces with respect to texture, material, style, and/or color.

ILLUSTRATION 4.3.12.C-3 PARKING AREA / LOT LANDSCAPING



17. Where parking and loading spaces abut sidewalks, buffer strips, planting islands or similar construction, a curb or wheel stop shall be provided to prevent vehicles from overhanging or otherwise damaging said construction..

18. Parking Area paving shall be confined to the minimum area necessary to comply with the parking requirements of this Article.

19. Any Plan submitted under this Article shall show the proposed arrangement of Parking accommodations, including access to such areas from the Streets or Internal Drives, with Parking Spaces to comply with the requirements of this Section 4.3.12.

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20. Parking Structures must be Screened from view of any Frontage by one or more Liner Buildings as set forth in **Table 4.3.1–A – Table 4.3.1–O (District Standards)**. Such Liner Buildings must be the same or greater height as the associated Parking Structure that they Screen.

21. Lighting illuminating off-street Parking accommodations in all Districts other than Districts CD–1L and CD–2 must be installed within and directed only within the applicable Parking Area, Parking Lot, Garage, or Parking Structure.

22. Handicapped-accessible Parking shall comply with the following:

a. Handicapped-accessible Parking shall be located as near as possible to the main public entrances of a single Building or centrally located in Parking Areas that serve more than one (1) Building.

b. All off-street handicapped-accessible Parking spaces shall be located in the closest Parking Area to a public entrance to the Building but no more than two hundred fifty (250) feet from such entrance.

c. No stairs or curbs are permitted between a handicapped-accessible Parking Space and the entrance which it is intended to serve, and the slope along the accessible route shall not exceed 1:12.

d. All off-street handicapped accessible Parking Spaces shall be designated by a Sign or other means accepted by State requirements. Van-accessible spaces shall be designated by a Sign indicating "Van Accessible" in addition to any other means used.

e. A minimum width of ninety-six (96) inches shall be required for all van-accessible spaces. Van- accessible spaces shall further require a minimum vertical clearance of ninety-eight (98) inches.

f. An access aisle of 60 inches in width shall be provided for all handicapped accessible spaces and an aisle of 96 inches shall be provided for all van-accessible spaces (one 96 inch aisle may serve both types of spaces. No ramps may project into this access aisle.

23. Solar Panels and/or green/blue roofs shall be required for Parking Structures in accordance with Section 6.11.2.A.

24. No required Parking accommodation shall be Encroached upon by any Building, Structure, or Use.

D. Operation & Maintenance.

1. No Parking Space required for Dwelling Units shall be rented to Persons not living on the premises. All required Parking spaces must be made available to occupants of the Dwelling Units as an integral part of their occupancy.

2. Required Parking Accommodations must be available and maintained for such period as the Use or Structure exists that the facilities are designed to serve.

3. The off-street area of any lot may be reduced by the portion thereof as is conveyed, with the approval of the Norwalk Traffic Authority, to said Norwalk Traffic Authority to be used for parking subject to the metering charges, management, control and regulations of such Authority.

E. Access.

1. All Parking Areas, Parking Structures, and Garages shall be accessed by rear Alleys, when such are available on the Zoning Map or otherwise available. Where Rear Alleys are not available, access shall be confined to less active, secondary Streets and shall utilize a minimum of curb cuts.

2. Vehicular access to Parking Areas, Garages, and Parking Lots shall not conflict with general vehicular movement serving the site. Ingress and egress points shall comply with provisions of

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the City of Norwalk Department of Public Works Roadway Standards. Ingress and egress points onto state roads or highways shall comply with the applicable requirements of the State Department of Transportation.

3. In all Districts, vehicular entrances and exits shall be designed to be easily identifiable by drivers and pedestrians. Any signage must be simple, clear, and concise. Any gates, arms, or booths must be set back at least 20 feet from the Frontage.

4. Within the CD-3, CD-3W, CD-3C, CD-4, CD-4W, SD-LI, SD-HI, SD-MC and SD-H zones, each Parking space shall provide adequate backup space to avoid backing directly onto a Street.

5. A Driveway or Internal Drive must be provided for off-street Parking accommodations in all Districts.

6. Driveways and entrances and exits for off-street Parking accommodations in all Districts oshall be offset from a street or Internal Drive at an intersection by the minimum distance(s) provided in the Complete Streets Design Guide, as amended, specific to the intended use of the driveway.

7. Except in Districts CD-1L, CD-1M, CD-1S, and CD-2, cross-access Easements must be provided between abutting parcels.

8. In all Districts, Driveways at Frontages must be no wider in the Front Yard than the width specified for the applicable District in **Table 4.3.1-A – 4.3.1-O (District Standards).**

9. Within the CD-1L, CD-1M, CD-1S and CD-2 zones, Driveways shall not be located within three (3) feet of a Side Building Site Line or Rear Building Site Line unless a shared Driveway is used, except that Driveways for Two-Family Detached Dwellings with a detached and/or non-street facing Garage(s) are exempt from this requirement.

10. No Driveway curb return shall extend beyond an Adjacent Side Building Site Line or Rear Building Site Line or more than one-half (1/2) the distance to a Driveway located on the same property. This provision may require increased separation from Adjacent properties over the minimum indicated in Sections 4.3.12.E.9 or 4.3.12.E.10 above.

11. In all Districts, pedestrian exits from all Parking Lots, Parking Areas, Garages, and Parking Structures must conform to **Table 4.3.1-A – 4.3.1-O (District Standards)**, except for underground Parking accommodations.

12. Single-Family Detached Dwellings, located on Neighborhood Connector or Urban Corridor street typologies per the City of Norwalk Complete Streets Design Guide, as amended, within the CD-1L, CD-1M, CD-1S and CD-2 zones, shall provide adequate backup space with a minimum depth of ten (10) feet, which may be used as an alternate Parking Space, to avoid backing directly onto a Street.

F. Parking Restrictions.

1. Domestic and recreational vehicles such as boats, camper trailers, and utility trailers shall be stored off – street, subject to the location requirements of **Table 4.3.1-A – 4.3.1-O (District Standards)**.

2. Parking of buses on the site of and directly associated with a permitted Non Residential Use shall be permitted.

3. Parking of heavy equipment or tractor trailers (including trailers as storage) shall not be permitted. This requirement shall not prohibit commercial vehicles from making deliveries. Trailers may be permitted for temporary storage in association with a construction with a Temporary Use Permit Section 8.4.6.

4. Loading Areas on a Street or Internal Driveway shall not be occupied by single or double axle trucks that exceed 90 inches in width and are greater than 12 feet in height are prohibited from Parking on a Street for more than four (4) consecutive hours,

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unless it is related to performing a service for a property owner, ie. construction, remodeling, etc.

5. Junk Vehicles shall not be stored in any on-street or off-street Parking Space. Any Junk Vehicles shall be kept in a fully enclosed Building.

6. Required Parking spaces and loading facilities shall not be used for the storage or sale of merchandise, vehicle storage, vehicles for sale, or vehicle repair. Non-required spaces proposed for these uses shall be designated on a Site Plan or on a Sketch Plan submitted with an Application for Zoning Permit for Exempt Development or Construction.

7. Notwithstanding the standards established in Section 4.3.12.F.5, the private sale or storage of one vehicle per Dwelling Unit may be permitted as an Accessory Use in association with a Residential Use.

8. Any area designated for required off-street Parking or loading shall not be changed to another use until adequate Parking and/or loading facilities in conformance with this Article have been established.

9. Required Parking Spaces may be temporarily used for uses other than Parking and loading with the issuance of a Temporary Use Permit pursuant to Section 8.4.6; provided such Use does not negatively impact adjacent roadways, neighborhoods, or other uses and is clearly temporary in nature.

10. Except as otherwise specifically permitted elsewhere in these Regulations, there shall be no Parking of any tractor trailer or part thereof, truck, van, pickup truck, or taxicab between the hours of 6:00 p.m. and 6:00 a.m. on weekdays, all day Saturdays, Sundays and holidays, or any Outdoor Storage of any such vehicle, except that:

a. Two vans or pickup trucks having a manufacturer's certified gross vehicle weight of less than 6,600 pounds may be parked in the Rear Yard of each Lot or Building Site, so long as the same are kept and maintained by an occupant of the premises; and

b. Up to two taxicabs may be parked in the Rear Yard of a Lot or Building Site so long as they are registered to an occupant or occupants of the residence.

This Section 4.3.12.F.10 shall not apply to vehicles making deliveries or to service or emergency vehicles while the operator is engaged in such activity on the site.

G. Drive-Through Locations & Standards.

1. Any drive-through facilities must be located and designed and comply with all standards as specified for the applicable District as set forth in **Tables 4.3.1-A – 4.3.1-O (District Standards)**. See **Illustration 4.3.12.G (Drive-Throughs).**

2. Any drive-through locations must be accessed by rear Alleys when such are available.

3. Off-street vehicular stacking spaces shall be provided for all drive-through facilities in accordance with Section 4.3.12.H.

ILLUSTRATION 4.3.12.G DRIVE-THROUGH



Illustration is provided for illustrative purposes only.

H. Stacking Spaces.

1. Off-street vehicular stacking spaces shall be provided in accordance with **Table 4.3.12.H (Stacking Spaces)** for the activity type indicated as follows:

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TABLE 4.3.12.H (STACKING SPACES)

Activity Type	Min. # Stacking Spaces	Measured From
Automated teller machine	4	Machine
Drive-through	3	Teller
Bank teller drive through	4	Teller or Window
Car wash bay, full-service	6	Bay
Car wash bay, self-service	3	Bay
Dry cleaning/ laundry drive-through	3	Cleaner/ Laundry Window
Gasoline Pump Island	2	Pump Island
Gatehouse, staffed	4	Gatehouse
Gate, unstaffed	2	Gate
Pharmacy Pickup	3	Pharmacy Windows
Restaurant Drive-through	8	Pick up window
Valet Parking	3	Valet Stand
Other as determined by Planning and Zoning Director in consideration of an approved study prepared by a Connecticut Professional Engineer with expertise in Transportation Engineering.		

2. Required stacking spaces shall be subject to the following design and layout standards:

a. Stacking spaces shall be a minimum of eight feet in width by 25 feet in length.

b. Stacking spaces by shall not impede on- or off-site traffic movement or movement into or out of off-street Parking spaces.

c. Stacking spaces for each type of activity or accommodation shall be subject to any location standards applicable to the activity or accommodation itself.

d. Stacking spaces shall be separated from other drive aisles, Driveways, or Internal Drives by raised medians if deemed necessary by the Department of Public Works for traffic movement and safety.

4.3.13 Bicycle Parking

Bicycle Parking shall be provided within a Lot or Building Site as set forth in **Table 4.3.13 (Bicycle Parking).**

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TABLE 4.3.13 BICYCLE PARKING

Use Type	Parking Requirement
RESIDENTIAL/DWELLING USES	
Single-family Dwellings	None required
Two-family Dwellings	None required
Multi-family Dwellings	1 Bicycle Parking Space shall be provided for every 10 Dwelling Units; Developments greater than 10 units must provide sheltered spaces
LODGING USES	
All uses	1 space per 10 guest rooms
EDUCATIONAL/INSTITUTIONAL/CIVIC USES	
All uses	1 space per 5,000 sq. ft. Floor Area
MEDICAL USES	
All uses	1 space per 10 examination or patient rooms
COMMERCIAL, RETAIL, PROFESSIONAL & SERVICE USES	
All uses	1 space per 2,000 sq. ft. Floor Area
OFFICE USES	
All uses	1 space per 4,000 sq. ft. gross floor area; Offices greater than 50,000 square feet must provide sheltered spaces
INDUSTRIAL USES	
All uses	1 space per 20,000 sq. ft. Floor Area or 1 per 10 vehicle Parking Spaces provided, whichever is greater
AGRICULTURAL USES	
All uses	None required
UTILITY USES	
All uses	None required
PUBLIC OR PRIVATE PARKING	
All uses	1 space per 10 vehicle parking spaces

4.3.14 Loading Space

A. General.

1. Loading spaces shall be provided, designed, accessed, and located in accordance with this Section and **Table 4.3.14.B (Loading Space Requirements)** and **Tables 4.3.1-A – 4.3.1-O (District Standards)**.

2. Loading areas must be accessed by rear Alleys, when such are available on the Zoning Map or otherwise available.

B. Loading Space Required.

1. Each Lot or Building Site shall have the minimum number of loading spaces per quantity of the indicated Use as set forth in **Table 4.3.14.B (Loading Space Requirements).**

TABLE 4.3.14.B (LOADING SPACE REQUIREMENTS)

Principal Use Category in District	Quantity of Use	# of Loading Space(s)	Size of Loading Space(s)
Residential – Multifamily Building	≥100 Dwelling Units	1	10 ft. W x 50 ft. L x 15 ft. H
Commercial, Office, Retail/ Personal Service/ Industrial	>3,000–25,000SF	1	10 ft. W x 50 ft. L x 15 ft. H
	25,001–80,000SF	2	
	≥80001SF	2+1 for ea additional 100,000SF	
Other	NA	NA	NA

2. Without limitation to the other requirements of this Section, loading spaces shall be provided for

ARTICLE 4

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each delivery bay, loading dock or delivery entrance.

3. Loading spaces must be available at all times without conflict with any Plan or Improvement element.

4. Space allocated to any loading area or access thereto shall not be used to satisfy the requirements for any Parking or garbage, recycling, or trash facilities.

5. Parking spaces may not be used or counted as meeting loading requirements.

6. No required loading space shall be Encroached upon by Buildings, Structures, Open Storage or any other Use.

7. Required loading facilities may be temporarily used for uses other than loading with the issuance of a Temporary Use Permit pursuant to Section 8.4.6, provided such Use does not negatively impact adjacent roadways, neighborhoods, or other uses and is clearly temporary in nature.

C. Location, Design & Access.

1. Except as otherwise provided in subparagraph 4.3.14.C.2 below, all required loading spaces shall be provided within the applicable Lot or Building Site.

2. In Districts CD-3, CD-3C, CD-4, and CD-4W, required loading spaces may be provided either within the applicable Lot or Building Site or in the parking lane of the Enfronting street or Internal Drive.

3. Off-street loading spaces shall be located in accordance with **Tables 4.3.1-A – 4.3.1-O (District Standards)**.

4. Off-street loading areas must be accessed by rear Alleys, when such are available.

5. No loading facility shall be located within 30 feet of a Street or Internal Drive intersection.

6. Off-street loading areas shall include Curbs, paving, drainage facilities, and lighting in accordance with these Regulations, as well as any other applicable laws, regulations and specifications.

7. Each required loading space shall have the minimum dimensions set forth in **Table 4.3.14.B (Loading Space Requirements)**.

8. Loading facilities may not obstruct facilities required for emergency access, including fire lanes.

9. Each off-street loading space shall be directly accessible from a street, Driveway, drive aisle, Internal Drive, or Alley without crossing or entering any other required off-street loading facility. Such loading spaced shall be accessible from the interior of the Building it serves and shall be arranged for convenient and safe ingress and egress by motor truck and/or trailer combination

10. The required dimensions of loading spaces shall not include any access or entrances to, or exits from, such spaces.

11. All off-street loading spaces shall be surfaced with asphalt, concrete, or other hard surfaced material, and constructed so as to support the heaviest anticipated load, including without limitation fire and sanitation equipment and delivery vehicles, and shall provide for adequate drainage, and prevent the release of dust.

12. Loading Spaces provided within a Street or Internal Drive shall meet construction requirements of provided by the Department of Public Works.

13. Each loading space shall be permanently marked and identified as a loading space in which no Parking is allowed. Permanent wheel stops or curbing shall be provided for each off-street loading space to prevent any vehicle using the loading space from Encroaching on the required Setback Areas or Adjacent property.

14. Off-street loading areas shall be Screened in conformance with Section 4.3.11.

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4.3.15 Refuse, Service, Equipment & Other Items.

A. Trash Receptacle / Dumpster Requirement

Trash receptacles and dumpsters must be provided for each Lot or Building Site and must be located in accordance with Section 4.3.15.B.

B. Trash Receptacle/Dumpster Locations & Standards.

1. Dumpsters and trash and recycling receptacles shall be located as specified for the applicable District in **Tables 4.3.1-A – 4.3.1-O (District Standards)** .

2. All dumpsters and trash and recycling receptacles shall be enclosed as required in this Section and **Tables 4.3.1-A – 4.3.1-O (District Standards)**. The enclosures shall be designed to prevent debris from leaving enclosure or being scattered by wind or animals. Except in Districts CD-1L, CD-1M, CD-1S, and CD-2, dumpsters and garbage, trash, and recycling receptacles must be placed on concrete pads. The enclosure must be kept closed at all times other than for servicing. Except in Districts CD-1L, CD-1M, CD-1S, and CD-2, bollards or posts must be placed on the interior of the enclosure to protect the walls from damage by the trash containers within.

3. Dumpsters and garbage, trash and recycling receptacle locations shall be accessed by rear Alleys, when such are available.

4. Space allocated to any off-street garbage, trash, or recycling areas, receptacles, or dumpsters shall not be used to satisfy any Parking or loading requirements.

5. All Uses that generate food-related garbage shall provide water quality treatment to mitigate runoff.

C. Equipment & Other Items Locations & Standards

1. All heating, ventilation and air-conditioning equipment, utility meters (not including water meters) and equipment, mechanical equipment, antennas and satellite equipment, communications transmitting and receiving equipment, solar panels, and swimming pool, hot tub and spa locations shall be located and meet the other standards and requirements specified for the applicable District, as required in **Tables 4.3.1-A – 4.3.1-N (District Standards)** or **Table 4.3.1-O (District Standards – Civic).**

D. Service Areas.

1. Service areas shall be located as required in **Tables 4.3.1-A – 4.3.1-N (District Standards)** and **Table 4.3.1-O (District Standards – Civic)**.

2. Service areas shall be accessed by Rear Alleys, when such are available.

4.3.16 Private Landscape Standards.

A. General.

1. Lots or Building Sites in Districts other than the Civic District, CD-1L, CD-1M, CD-1S, CD-2, and SD-IC shall be landscaped in accordance with **Table 4.3.1-A – 4.3.1-O (District Standards)** and this Section 4.3.16.

2. In Civic Districts, Lots or Building Sites shall be landscaped in accordance with **Table 4.3.1-O (District Standards – Civic)** and this Section 4.3.16. Additionally, Civic Spaces shall be designed as set forth in **Table 5.2.3-B (Civic Space –Specific Standards)**.

3. Without limitation to any other provisions of this Section 4.3.16, all Screen, Streetscreen, Buffer, and Parking Area and Parking Lot landscape standards and requirements of these Regulations must be met.

4. All bare or exposed ground on a Lots or Building Sites and/or in any other landscaped area shall be

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covered with live plant materials and/or mulch, with the following exceptions:

a. Naturally occurring river beds, rock outcroppings or similar landscape features typically lacking in vegetation.

b. Hiking trails and/or traces.

c. Clay or sand surfaces associated with recreation fields and facilities.

5. Buildings and Structures lawfully existing as of the Effective Date may be modified without providing or modifying landscaping in conformance with this Section 4.3.16, provided that the same does not constitute an Alteration and does not increase the degree by which the Building or Structure is Non-conforming. This shall not be construed as prohibiting the provision of landscaping in full conformance with these Regulations.

6. The standards and requirements herein set out for landscaping shall not apply to temporary uses or to Development or site work on relatively undeveloped sites which do not involve significant ground disturbance.

B. Maintenance of Landscaping.

1. All landscaping must be properly maintained by the property owner and his or her successors, heirs, assignees or any consenting grantee.

2. All plantings shall be maintained in an attractive and healthy condition. Maintenance shall include, but not be limited to, watering, mulching, fertilizing and pest management, mowing, weeding, removal of litter and dead plant material, and necessary pruning and trimming.

3. Any required plantings that are dead or diseased plantings shall be removed and replaced with plants meeting all requirements of these Regulations.

4. Natural water courses within a Buffer shall be maintained in a natural condition consistent with any applicable regulations.

5. A water source shall be supplied within 100 feet of any planting requiring continuing watering. Where non-native or non-drought tolerant native vegetation is incorporated in the Buffer, an irrigation system shall be required.

6. Landscape structural features such as walls, fences, berms or water features shall be maintained in a structurally safe and attractive condition.

7. Where other uses, including pedestrian, bike or other trails, are allowed within a Buffer, these uses shall be maintained to provide for their safe use.

8. If any Person responsible for landscape maintenance fails to maintain same according to the standards of these Regulations, these regulations shall be enforceable by the Planning and Zoning Director with the right to recover the cost of enforcement, including reasonable attorney fees.

9. Without limitation to Section 4.3.16.B, a maintenance bond lasting one (1) year must be provided for all plantings required under this Section 4.3.16 if such plantings are to be owned by the City.

C. Removal of Walls or Trees.

None of the following may be removed without the prior approval of the Decision-Making Authority:

1. Any existing walls or trees in the CD-3, CD-3W, CD-3C, CD-4, CD-4W, SD-H, SD-LI or SD-HI wiithin thirty (30) feet of a CD-1L, CD-1M, CD-1S, or CD-2 District boundary, which trees have a diameter of eight inches (8 in.) or more as measured three feet (3 ft.) from the base of the trunk; or

2. Walls or trees required or shown on a Site Plan or on a Sketch Plan submitted with an Application for Zoning Permit for Exempt Development or Construction.

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3. Also see Section 6.2 Grading, Tree Removal, and Drainage for additional standards and requirements.

D. Plant Material Standards and Sizes.

1. Except as otherwise required by Sections 4.3.16.D.4, 4.3.16.D.5, 4.3.16.D.8, 4.3.16.D.9 and 4.3.16.D.10, all required plant materials must meet with the minimum sizes, class and other requirements outlined in American Standards for Nursery Stock (ANSI Z60.1–2004) published by the American Nursery and Landscape Association (ANLA) or other local Nursery Association Standards.

2. Except as needed for screening purposes, plants shall be species that are native to Connecticut. Native plant status shall be determined by plant databases maintained by the Natural Resources Conservation Service of the United States Department of Agriculture.

3. When more than 20 trees are planted on a site to meet these regulations, a mix of trees (genera) shall be provided. The following table indicates the maximum percentage of same trees (same genus) that may be planted.

TABLE 4.3.16.D–2 (TREES–# PER GENERA)

Planted on Site	Minimum Number of Genera Required	Maximum Percentage of Any Genera
20 trees or less	1	not applicable
21 to 50 trees	2	70 percent
51 to 100 trees	3	50 percent
101 to 200 trees	4	40 percent
200 to 500 trees	5	30 percent
over 500 trees	6	25 percent

4. Shrubs shall be of species that under average conditions will reach a minimum height of 24 inches within 12 months. When planted as a hedge, the maximum spacing for shrubs shall be 40 inches on center.

5. Canopy trees shall have a planting area no less than 10 feet wide in all dimensions. Accent and substitution trees shall have a planting area no less than eight feet wide in all dimensions.

6. Plants shall be mulched a minimum of three inches deep. Where selected plant material is not tolerant of deep mulch, a specific note regarding shallower mulch shall be set forth on the final landscape plan and approved by the City as part of the landscape plan. Mulch shall be kept away from tree trunks.

7. Where specified, Building foundation planting shall meet the following requirements:

a. Foundation plantings shall be placed within five feet of the Buildings perimeter. If the Planning and Zoning Director determines that, due to site design considerations such as the location of sidewalks, plazas or service areas, this is not feasible, such plant materials may be located

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in planter boxes or in the areas of the site in a manner that enhances the overall landscape plan for the development.

b. One shrub shall be required as foundation planting for every ten (10) linear feet of Facade for Non Residential Uses.

8. Any plant materials required for Screening must be evergreen and have an opacity of at least 90% from the ground through the full height of the plant.

9. At the time of installation, trees must be a minimum two and a half inches (2.5 in.) caliper measured three feet (3 ft.) from the base of the trunk.

10. At the time of installation, Shrubs must be a three (3) gallon container minimum and a minimum height above ground level of thirty inches (30 in.).

11. Plantings must not conflict at installation or maturity with the location of any other required Building and Building Site elements or other plantings.

12. Ground vegetation or Shrub plantings with spines, thorns or needles that may present hazards to pedestrians, bicyclists or vehicles are prohibited in the first two feet (2 ft.) of the Front Yard.

E. Placement of Trees and Shrubs.

1. Proposed trees and shrubs must be placed minimally 18 in. from any Sidewalk or pavement edge, measured from the center of the plant.

2. No trees shall be planted in wet retention ponds or drainage maintenance Easements.

3. Trees and shrubs shall be installed at least five feet away from the flow line of a drainage facility unless specifically designed as water quality measures adhering to best management practices.

4. Existing trees may remain in dry retention ponds provided that the natural slope is undisturbed to the tree line, they are a species adapted to seasonal flooding and the pond is adequately maintained.

5. Accent trees and shrubs shall be allowed in access Easements, provided a minimum 20-foot wide travelway is maintained clear of vegetation, and all clear sight triangle requirements are met.

6. Trees may be planted in Easements for underground utilities with approval by the City and any applicable utility provider, provided the root Structure of the proposed tree is not anticipated to extend more than three feet below the ground. Shrubs may be planted, provided they are only within the outer three feet of the Easement. Where such trees and shrubs are planted, the property owner shall be responsible for replacement of such required vegetation if maintenance or other utility requirements require their removal.

F. Artificial Plants / Turf.

Artificial plants or artificial turf are prohibited, except on active recreation fields that are typically subject to intense use and soil compaction that prohibits the establishment of turfgrass.

G. Establishment.

All required landscape areas must be watered and fertilized as necessary to ensure establishment within the first year planted in accordance with best landscape practices.

H. Screens.

Screens must be provided in accordance with Section 4.3.11.

I. Mitigation of Wind Erosion.

Wind erosion must be mitigated and controlled through dust abatement and similar practices during the period of site work and construction.

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J. Soils.

Soil shall be uncompacted coarse loam that is a minimum of 12 inches deep. Soils shall be appreciably free of gravel, stones, rubble or trash. All compacted soil, contaminated soil or road base fill shall be removed. Under no circumstances shall soils have greater than 5% or less than 0.5% organic matter.

K. Condition of Plants.

Plants must have normal, well-developed branches and vigorous root systems.

L. Pavement of Front Yard.

The Front Yard shall not be paved, except for the following:

1. Driveways; and

2. Pavement matching the adjoining Public Frontage in Community Districts CD-4, where the Building is set back no more than five feet (5 ft.) from the Front Lot / Building Site Line.

M. Retaining Walls.

1. Retaining walls shall comply with **Table 4.3.1-A – 4.3.1-O (District Standards)** and this Section 4.3.16.M.

2. No retaining wall of any kind shall be constructed in a way so as to obstruct corner visibility, as required by Section 4.3.3.G of these Regulations, at intersections of Streets, Alleys, or other travel ways.

3. A series of retaining walls shall be separated by a distance at least twice the height of any other generally parallel retaining wall and the area between the retaining walls shall be planted or landscaped to mitigate the appearance of the retaining wall(s).

4. The construction of any proposed retaining wall shall comply with the Drain- age Certification Policy of the City of Norwalk dated July 2, 1999, as amended.

5. A retaining wall four (4) feet or higher above ground level requires the issuance of a Zoning Permit and the plans shall address construction design and drainage within ten (10) feet of the wall.

4.3.17 Private Lighting Standards.

The following standards and requirements are applicable within all Districts:

A. Areas to be Lighted.

All Parking Areas, Parking Lots, Parking Structures, and accessways within the Lot or Building Site shall be lighted.

B. Lighting Types.

1. Lighting shall comply with **Table 4.3.17.B.1 (Private Lighting Types)**

2. A lighting standard shall be of a height and design consistent with the surrounding area Buildings but in no event higher than 30 feet in Non-Residential Parking Areas and Parking Lots or 15 feet in other areas.

3. Standards shall be located at distances of four times their height.

4. The lighting source shall be completely concealed by an opaque surface and recessed within an opaque housing.

5. The same light source type must be used for the same or similar types of lighting on any single Lot, Building Site or parcel.

6. Additional standards may apply within a Historic District, Redevelopment Agency District or with respect to a Historic Structure.

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TABLE 4.3.17.B.1 PRIVATE LIGHTING TYPES

LIGHTING TYPE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
POLE TYPES															
Fiberglass Pole 	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Aluminum Pole 	NR	NR	NR	NR	P	P	P	P	P	P	P	P	P	P	P
Octagonal Concrete Pole 	NR	NR	NR	NR	P	P	P	P	P	P	P	P	P	P	P
Fluted Concrete Pole 	NR	NR	NR	NR	P	P	P	P	P	P	P	P	P	P	P
HEAD TYPES															
Cobra Head 	NP*	NP*	NP*	NP*	NP*	NP*	NP*	NP*	NP*	NP*	NP*	NP*	NP*	NP*	NP*
Colonial Head 	NR	NR	NR	NR	P	P	P	P	P	P	P	P	P	P	P
Coach Head 	NR	NR	NR	NR	P	P	P	P	P	P	P	P	P	P	P
Acorn Head 	NR	NR	NR	NR	P	P	P	P	P	P	P	P	P	P	P

*Unless required by the utility or CT DOT

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C. Illumination.

1. Illumination at all Building Site Lines must meet the standards of **Table 4.3.17.C.1 (Private Lighting Standards)**; provided that a minimum of one foot-candle (1.0 fc) of illumination must be provided throughout all Parking Areas, Parking Lots, and Parking Structures.

TABLE 4.3.17.C.1 (PRIVATE LIGHTING STANDARDS)

District	Min./Max. Lighting Level at Frontage Line (in foot-candles)
CD-1L, CD-1M, CD-1S, & CD-2	0-1.0 fc
CD-3, CD-3W & CD-3C	0-1.0 fc
CD-4 & CD-4W	1.0-2.0 fc
SD-IC	0-1.0 fc
SD-LI, SD-HI & SD-MC	1.0-2.0 fc

2. Lighting fixtures shall be mounted in a manner so that the cone of illumination is contained on-site and does not cross any property line of the site.

3. Lighting shall not be oriented so that it directs glare or excessive illumination onto Streets in a manner that may distract or interfere with the vision of drivers.

4. Any fixtures used to accent architectural features, landscaping, or art shall be located, aimed or shielded to minimize light spill into the night sky.

5. Use of illuminated tubing or light strings outlining or defining property lines, sales areas, roof lines, doors, windows or similar areas or features in a manner that is not primarily for safety purposes, as determined by the Planning and Zoning Director is prohibited. This paragraph shall not limit the use of lights illuminating outdoor dining or gathering areas.

6. To reduce off-site glare, lighting fixtures for all Parking and pedestrian areas shall be:

a. Full cut-off type fixtures, or

b. Fully shielded/recessed fixtures where the lens is recessed or flush with the bottom surface.

7. Lighting fixtures for Building security or aesthetics and any display purposes shall, except as may otherwise be approved, be:

a. Top downward (not upward or sideways), and

b. Full cut-off or fully shielded/recessed.

D. Building Spotlights.

Spotlights on Buildings shall not be used to meet the lighting requirements of these Regulations.

E. Limitation on Periods of Use.

Outdoor recreation areas Adjacent to Residential Uses or Districts shall not be illuminated after 10 PM Sunday through Thursday, and 11 PM Friday and Saturday.

4.3.18 Signage.

All Signage must comply with the standards and requirements of Article 7 (Sign Standards).

4.3.19 Public Realm Requirements.

Public Realm space(s) shall be provided within CD-3, as required in the East Norwalk Village TOD Overlay (O-EVTZ) in accordance with **Additional Standards for Village District Overlays in CD-3 – East Norwalk Village TOD Overlay,** CD-3C in accordance with **Table 4.3.1-G,** CD-4 in accordance with **Table 4.3.1-H,** and this Section 4.3.19.

Public Realm space(s) shall express Norwalk's traditional New England culture, while serving a diverse, multi-cultural population. The Public Realm space shall be safe, comfortable and respond effectively to the

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regional climate and surrounding environment.

A. Exemptions.

Within CD-4, Buildings containing less than ten (10) units and Historic Structures are exempt from Public Realm requirements. Within CD-3C, and Multifamily or Mixed-Use Development containing less than 29 Dwelling Units is exempt from Public Realm requirements.

4.3.20 Special Exception for Historic Structures.

1. To encourage the preservation of Structures that contribute positively to the community, the Commission may, by Special Permit, allow a minimum requirement, including, but not limited to yard Setback, buffer, recreation area, or Parking requirement, to be reduced, or a maximum requirement including but not limited to Height, Stories, Building area, floor area, or residential density, to be increased on the subject parcel, provided:

a. The Structure(s) to be preserved is listed on a local, state, or national historic inventory (the "historic structure"); and

b. The Commission determines that:

(1) the historic Structure contributes positively to the community or possesses a degree of historic significance (which may be evidenced by its age, architectural uniqueness, or cultural value); and

(2) if preserved, the historic Structure would represent a cultural benefit to the community; and

(3) The extent of the requirement to be reduced or increased shall be clearly identified on the application presented to the Commission; and

(4) The Commission may increase or reduce a minimum or maximum lot standard and/or bulk/Height standard under this section by no more than thirty percent (30%) from the originating standard; and

(5) Potential increases in residential density are only applicable to zoning districts that allow Multi-Family Developments; and

(6) Any Special Permit granted by the Commission shall only remain effective so long as the historic Structure is preserved and maintained. However, in the event the historic structure(s) is damaged or destroyed by flood, explosion, wind, earthquake or other natural disaster, involuntary fire, war, riot, or insurrection, the Special Permit shall not lapse, provided that the owner of the historic structure actively, in good faith pursues the restoration or the reconstruction of the historic structure or otherwise improves the property with the approval of the Commission, or converts the land where the historic structure sat to publicly accessible open space.

(7) The historic Structure shall be located on the same property; or may be on an abutting property, provided that:

(a) The owner of the historic Structure is a co-applicant of the Special Permit Application and agrees to allow a restrictive covenant to be placed on the historic property and filed on the land records for so long as the Special Permit remains effective.

(b) The proposed Development and the site containing the historic Structure are part of a unified Development.

(c) In such cases, the resulting requirements may be calculated using the aggregate of the subject property and the property on which the historic structure is sited.

c. To assist the Commission in its determinations under (ii)(a) and (ii)(b) the Commission may refer

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the application to the Historical Commission and/or the State Historic Preservation Office (SHPO) for comment on the historic significance of the structure.

d. If any Development or Alterations are proposed for the historic Structure, a narrative, prepared by a Historic Architect, shall be submitted with the Application describing in detail the proposed work to be done to the exterior of the historic Structure, and the Historic Architect shall be qualified for "Historic Architecture" as listed under 35 CFR Part 61 of the Secretary of Interior's Professional Qualification Standards and submit proof of same.

2. Within the CD-4 and CD-4W zones, changes of Use, interior alterations or additions to Structures listed on a local, state, or national historic inventory shall be exempt from meeting the minimum number of Vehicular Pakring Spaces found in Table 4.3.12.B-1 (Vehicular Parking Requirements); provided that if exterior modifications or additions are proposed, a narrative prepared by a Historic Architect, shall be submitted with the application. The Historic Architect shall be qualified for "Historic Architecture" as listed under 35 CFR Part 61 of the Secretary of the Interior's Professional Qualification Standards and proof of same. The narrative shall describe in detail the proposed work to be done to the exterior of the historic Structure, indicating that:

a. The proposed revisions are consistent with the Secretary of the Interior Standards for Rehabilitation, Section 6.7b, numbers 9 and 10, as amended:

(1) "New additions, exterior alterations, or related new construction shall not destroy historic materials that characterize the property. The new work shall be differentiated from the old and shall be compatible with the massing, size, scale, and architectural features to protect the historic integrity of the property and its enviroment.

(2) "New additions and adjacent or related new construction shall be undertaken in such a manner that if removed in the future, the essential form and integrity of the historic property and its enviroment would be unimpaired."

b. Any additions proposed above an existing Structure are sufficiently set back from the existing facade so the addition does not detract from the existing Facade and there is a clear delineation between the existing Facade and the Addition; and

c. The application otherwise complies with any applicable design standards.

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